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Personnel

OVERSEAS EMPLOYMENT

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This manual implements Department of the Air Force Policy Directive (DAFPD) 36-1, *Appropriated Funds Civilian Management and Administration*. This manual applies to all Department of the Air Force personnel, to include United States Space Force (USSF), Appropriated Fund Title 5, and Title 10 civilian employees. It does not apply to Title 32 United States Code (USC) Air National Guard Technicians, Non-Appropriated Fund employees, and Senior Executive Service (SES) (and equivalent). In collaboration with the Chief of the Air Force Reserve (AF/RE), the Director of the Air National Guard (NGB/CF), and the Deputy Chief of Space Operations for Personnel (SF/S1), the Deputy Chief of Staff for Manpower, Personnel and Services (AF/A1) develop personnel policy for overseas employment. This manual provides guidance on the recruitment and placement of the Department of the Air Force (DAF) appropriated fund positions overseas, and the rotation and return placement of United States (U.S.) appropriated fund civilian employees from positions in foreign and non-foreign overseas areas as defined in this manual. This manual also covers the processing of individuals residing in the U.S. selected for appropriated fund positions with the DAF in the overseas areas. This manual applies to all major commands (MAJCOMs), combatant commands (CCMDs), and field commands (FLDCOMs), the Air National Guard (ANG), field operating agencies (FOAs), and direct reporting units (DRUs). This manual will apply to Title 5 Air National Guard unless separate regulations are issued by Chief of the National Guard Bureau. All references to United States Air Force (USAF) terminology, units, and positions will also apply to the equivalent in the USSF, as appropriate. Additionally, all references to MAJCOMs will also apply to FLDCOMs. This manual complements Department of Defense Directive (DoDD) 1400.5, *DoD Policy for Civilian Personnel*; Department of Defense Instructions (DoDI) 1400.25, Volume 1230, *DoD Civilian Personnel Management System*: *Employment in Foreign Areas and Employee Return Rights*; DoDI

1400.25, Volume 1231, *DoD Civilian Personnel Management System: Employment of Foreign Nationals*; DoDI 1400.25, Volume 1232, *DoD Civilian Personnel Management System: Employment of Family Members in Foreign Areas*; DoDI 1400.25, Volume 315, *DoD Civilian Personnel Management System: Employment of Spouses of Active Duty Military*; DoDI 1400.25, Volume 1250, *DoD Civilian Personnel Management System: Overseas Allowances and Differentials*; Department of the Air Force Instruction (DAFI) 36-128, *Pay Setting and Allowances*; DoDI 1400.25, Volume 1261, *DoD Civilian Personnel Management System: Observance of Holidays in Foreign Areas*; Department of the Air Force Manual (DAFMAN) 36-203, *Staffing Civilian Positions*; DAFI 38-101, *Manpower and Organization*; DAFMAN 36-142, *Civilian Career Field Management and Centrally-Managed Programs*; DAFI 36-2711, *Equal Employment Opportunity: Affirmative Employment and Disability Programs*; and DAFPD 38-1, *Manpower and Organization*. This DAFMAN may be supplemented at any level; however, all supplements must be approved by the Human Resource Management Strategic Board prior to certification and approval. Refer recommended changes and questions about this manual to the office of primary responsibility (OPR), using the DAF Form 847, *Recommendation for Change of Product*; route DAF Form 847 from the field through the appropriate functional chain of command. The authorities to waive wing, unit, and delta level requirements in this manual are identified with a tier number ("T-0, T-1, T-2, T-3") following the compliance statement. See DAFMAN 90-161, *Publishing Processes and Procedures*, Table A10.1 for a description of the authorities associated with the tier numbers. Submit DAF Form 679, *Department of the Air Force Publication Compliance Item Waiver Request/Approval*, for waivers through the chain of command to the appropriate tier waiver approval authority, or alternately, to the publication OPR for non-tiered compliance items. This Instruction requires the collection and or maintenance of information protected by the Privacy Act of 1974 authorized by Department of Defense Directive (DoDD) 5400.11, *DoD Privacy and Civil Liberties Programs*. The applicable System of Record Notices (SORN) OPM/GPVT-1, General Personnel Records, is available at **http://dpcld.defense.gov/Privacy/SORNs.aspx**. Ensure all records generated as a result of processes prescribed in this publication adhere to AFI 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System.

SUMMARY OF CHANGES

This document has been revised to comply with the Department of Defense Priority Placement Program (PPP) Handbook. Other major changes include: (1) Added obligated position instructions in **Paragraph 2.8.2.5**; (2) revised employment of overseas family members guidance in **Paragraph 4.6.3**; (3) updated military spouse preference interview guidance in **Paragraph 4.7.2.1**; and (4) revised several paragraphs in the medical standards and physical requirements in **Chapter 9**.

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Chapter 1

OVERVIEW

1.1. Overview. The DAF overseas employment manual supports DoDI 1400.25, Volume 1230, to limit civilian employment in the foreign overseas areas to a period of five continuous years unless interrupted by at least two years of physical presence in the United States or a non-foreign overseas area.

1.2. Purpose. This manual governs foreign and non-foreign overseas recruitment and the orderly rotation of employees. It is designed to expand career opportunities, broaden experiences where special skills are required, and return employees from foreign overseas areas upon completion of an agreed-upon period of service.

1.3. Recruitment and Rotation Guidance. DoD and DAF policies do not provide employees with permanent employment in foreign overseas areas. DAF considers rotation of civilian employees as a healthy and essential organization tool for civilian career development.

1.4. Selection and Extension Guidance. The selection or extension of individuals in overseas areas must be based solely on merit and job-related criteria, in accordance with legitimate position requirements. These decisions shall be made without regard to race, color, religion, sex (including pregnancy), national origin, age, physical or mental disability, genetic information, marital status, parental status, lawful political or labor organization affiliation (or non-affiliation), prior Equal Employment Opportunity activity, or any other non-merit factors. Host country exclusionary policies shall not be considered a factor in the selection process.

Chapter 2

ROLES AND RESPONSIBILITIES

2.1. Assistant Secretary of the AF for Manpower and Reserve Affairs (SAF/MR). Serves as an agent of the Secretary and provides guidance, direction, and oversight for all matters pertaining to the formulation, review, and execution of plans, policies, programs, and budgets addressing overseas employment programs.

2.2. Deputy Chief of Staff of the AF, Manpower, Personnel and Services (AF/A1). Develops, coordinates, and executes personnel policy and essential procedural guidance for the management of overseas employment programs.

2.2.1. Directs, monitors, and assesses USAF and USSF compliance and adherence to this manual and requirements.

2.2.2. Collaborates with MAJCOMs/FLDCOMs on the effectiveness of the DAF's overseas employment program.

2.3. Civilian Force Management Directorate (AF/A1C). Under the authority and direction of AF/A1 develops DAF policy for the overseas employment programs and provides policy guidance and oversight on the provisions of this manual.

2.3.1. Compiles and consolidates data to support and complete Defense Civilian Personnel Advisory Service (DCPAS)/DoD/Office of Personnel Management (OPM) reports on DAF overseas employment programs.

2.3.2. Responds to inquiries from MAJCOMs/FLDCOMs on issues related to operational guidance on the overseas employment programs.

2.4. Deputy Chief of Space Operations, Personnel (SF/S1). Develops, coordinates, and executes personnel policy and essential procedural guidance for the management of overseas employment programs within USSF.

2.5. Director, Civilian Policy and Programs (SF/S1C). Provides policy guidance and oversight on the provisions of this manual and the overseas employment programs within USSF.

2.6. Air Force Personnel Center (AFPC).

2.6.1. Provides current written operational guidance, procedural guidance, periodic training and assistance to MAJCOMs/FLDCOMs/CCMDs/DRUs/FOAs, and Civilian Personnel Sections (CPS) regarding provisions of this manual.

2.6.2. Provides periodic reports on the overseas employment programs to include but not limited to hiring flexibilities, incentives, time-to-hire, spouse employment.

2.7. MAJCOM/FLDCOMs, DRUs, and FOAs will:

2.7.1. Provide guidance and support to employees and subordinate CPS on the procedures, guidelines and requirements outlined in this manual.

2.7.2. Develop supplemental guidance to this manual to ensure compliance with DoD and DAF requirement on overseas employment.

2.7.3. Ensure delegation of authority memoranda are issued to the appropriate personnel with the authority to approve Overseas Tour Extensions (OTEX).

2.7.4. Ensure personnel in an acting capacity receive appointing orders.

2.7.5. Monitor, track, and ensure compliance with this manual.

2.8. Civilian Personnel Section (CPS).

2.8.1. Continental United States (CONUS) and OCONUS CPS will:

2.8.1.1. Provide the prospective civilian employee or selectee with comprehensive medical, dental, and educational information about the overseas community where the position is located to help the employee or selectee make an informed decision about accepting the position.

2.8.1.2. Provide employees with Statement of Understanding documents for review and signature for positions located in applicable overseas locations.

2.8.1.3. Assist and advise commanders/civilian equivalents, managers, and supervisors with procedures for curtailing employees tour in the foreign overseas areas.

2.8.1.4. Maintain oversight and accountability of employees in the competitive service in foreign areas that are limited to a period of five continuous years.

2.8.1.5. Counsel employees on the requirements of the DoD Priority Placement Program (PPP) and maintain oversight and accountability of employees registered in PPP.

2.8.2. CONUS CPS will:

2.8.2.1. Provide employees with procedural guidance on overseas employment programs consistent with this manual.

2.8.2.2. Provide supervisors and managers with overseas employment programs advisory services.

2.8.2.3. Ensure there is local training for civilian personnel specialists, attorneys, and management officials for overseas employment programs.

2.8.2.4. Notify the OCONUS CPS in writing of any changes to a position with return rights.

2.8.2.5. Obligate the position information, as applicable, in the Defense Civilian Personnel Data System for each employee who accepts an assignment in a foreign area.

2.8.3. The OCONUS CPS will:

2.8.3.1. Ensure the proper overseas employment agreement is given/signed by employees or selectees for any overseas employment. Ensure those selected for foreign area employment covered by the 5-year limitation sign an overseas employment agreement to return from the foreign area in five years as a condition of employment, prior to appointment or placement in the competitive service in a foreign area position.

2.8.3.2. Notify the CONUS CPS when employees with return rights exercise their rights.

2.8.3.3. Ensure timely processing of personnel actions for employees exercising return rights or returning early from overseas locations due to performance or conduct issues.

2.8.3.4. Notify the CONUS CPS when employees with return rights are being extended beyond the five years and whether CONUS owning command will extend the return rights or not.

2.9. Supervisors, Managers, Commanders and Directors (or Equivalent) will:

2.9.1. Consider individuals for assignment to positions in foreign overseas areas based on merit factors.

2.9.2. Ensure employees selected for employment in overseas areas are assigned a sponsor located in the local commuting area.

2.9.3. Ensure assigned sponsors provide prospective civilian employees with comprehensive medical, dental, and educational information about the overseas community where the position is located, including challenges the employee may face when seeking emergency medical treatment, especially in remote locations.

2.9.4. Partner with the CPS to ensure an effective and seamless onboarding process for employees selected for positions in the overseas area.

2.9.5. Develop expectations, duties, and responsibilities for employees hired for positions overseas area.

2.9.6. Monitor and maintain accountability of civilian employees in the competitive service that are exempt and non-exempt from the 5-year limitation.

2.9.7. Submit requests for OTEX to the CPS in the time outlined in this manual.

2.9.8. Ensure tour curtailment requests are in accordance with the justifications identified in the Joint Travel Regulation (JTR). Review and route an employee's request for non-centrally managed and centrally managed positions to the appropriate approval authority for decision.

2.9.9. Ensure employees without return rights are registered in PPP at least 6 months prior to the employee's date of estimated return from overseas (DEROS).

2.9.10. Submit requests for personnel actions (RPAs) to fill positions in overseas areas in a timely manner to ensure sufficient time for recruitment and backfill of vacancy created by rotation of employees from the overseas areas.

2.10. Employees will:

2.10.1. Exercise their return rights at the end of the completed assignment for return placement in accordance with DoDI 1400.25, Volume 1230.

2.10.2. Register for placement in PPP and in accordance with DAF PPP Supplement for Managing Non-Displaced Overseas (NDOS) Employees, and the DoD PPP Handbook, unless an OTEX is granted.

2.10.3. Exercise return rights to avoid expiration or reduce the effect of a reduction in force (RIF).

Chapter 3

STAFFING OF CIVILIAN POSITIONS

3.1. Overseas Civilian Workforce.

3.1.1. When employing civilians in overseas areas is advantageous, the hiring of U.S. and non-U.S. citizens should be undertaken to the maximum extent possible. Unless specific consideration must be given to Foreign Nationals (FNs) by international or bilateral agreements, host nation law, labor agreements or other agreements, consideration is given to military spouses and family members as provided in DoDI 1400.25, Volume 1232. **(T-0)**

3.1.2. The DAF civilian staffing policies, practices, and decisions will comply with Equal Employment Opportunity Commission and Merit Systems Protection Board regulations, principles, and programs. **(T-0)**

3.2. Qualifications and Suitability for Employment. The DAF is committed to selecting qualified and suitable personnel for overseas assignments. Candidates will be provided comprehensive details regarding their destination, to include available facilities and services, job duties, employment conditions, and conduct expectations as U.S. representatives abroad. **Note**: Same-sex marriages recognized under U.S. state laws may not be recognized or granted legal status by foreign host nations. This matter is addressed in the tentative job offer questionnaire.

3.3. Pay Differentials and Allowances.

3.3.1. In accordance with applicable laws and regulations, DAF civilian employees serving in foreign overseas areas may be granted differentials and allowances appropriate to their duty location and conditions of employment.

3.3.2. Employees transferring from one OCONUS location to another may request allowances and differentials up to the maximum allowable rate for the new duty station. The gaining OCONUS CPS shall approve or disapprove these requests based on governing regulations and any applicable MAJCOM/FLDCOM guidance.

3.3.3. Overseas Allowance Determinations. The servicing CPS is responsible for ensuring that a Standard Form (SF) 1190, *Foreign Allowances Application*, *Grant and Report*, is completed for each employee. **(T-0)** The SF 1190 must be completed to document all overseas allowance determinations, whether an employee is eligible or ineligible for the foreign allowance. **(T-0)** Overseas allowance determinations must comply with the requirements of the Department of State Standardized Regulations (DSSR) and DoDI 1400.25, Volume 1250. **(T-0)** Once the SF 1190 is signed by the employee, the form must be placed in the employee's allowance file and maintained in accordance with the DSSR Section 070, *Reporting Requirements*, which may be found at **https://aoprals.state.gov**. **(T-0)**

3.4. Career Development.

3.4.1. The DAF encourages employees in CONUS, its territories, and possessions to accept overseas assignments as a part of their career development and broadening assignments.

3.4.2. This DAF manual allows for the continuous assessment of civilian workforce requirements and promotes the efficiency of worldwide operations. This manual ensures employment opportunities are available for newly assigned civilians, military spouses, and military family members, as well as for current civilian employees rotating into the overseas environment.

3.4.3. The provisions of DAFMAN 36-142 are followed when processing personnel actions for centrally managed positions. Effective force development depends on filling high-level positions with highly qualified and skilled employees who have a variety of successful work experiences at various locations throughout the DAF. These diverse and challenging work roles and responsibilities allow employees to experience the demands and requirements that are typically not available in a single position, at only one installation or organizational level. To attain appropriate depth and breadth of experience in preparation for the next level of responsibilities, employees should remain assigned to a position overseas no less or more than the prescribed overseas tour.

3.5. Rotation from the Foreign Overseas Area.

3.5.1. An employee may choose to return from an overseas assignment after completing either an initial or subsequent tour of duty. Similarly, management may elect not to request an OTEX upon the employee's completion of any tour. Any management-initiated extension to an overseas tour must be mutually agreed upon by both the employee and management. **(T-3)** Refer to **Chapter 7** for specific OTEX procedures.

3.5.2. Employees who sign an Overseas Employment Agreement in conjunction with a government-funded PCS must complete their initial tour of duty to establish eligibility for a subsequent funded PCS move. **(T-2)**

3.5.3. To comply with service agreements, an employee must complete their initial OCONUS tour of duty before becoming eligible for subsequent funded PCS travel. **(T-2)** This requirement applies to PCS moves for return rights, retirement, or new assignments, unless the employee is released early under the provisions of JTR Chapter 5, Paragraph 054912, *Acceptable Reasons for Release from a Tour of Duty*, or for a reason deemed acceptable by the MAJCOM/FLDCOM.

3.5.4. The placement of an employee returning from an overseas area may be facilitated through the exercise of statutory return rights, the conditions of a mobility agreement per DAF Form 153, *Department of the Air Force Civilian Centrally Managed Career Development Mobility Agreement*, or registration in the PPP. In cases where the employee's original position has been abolished, placement will be handled as specified in the Overseas Employment Agreement.

3.5.5. An employee completing one or more tours will exercise return rights when the position to which he or she has return rights is abolished. **(T-1)**

3.5.6. Career and career-conditional employees recruited from the CONUS for permanent positions in a foreign or in a non-foreign overseas area, shall be granted statutory return rights in accordance with DoDI 1400.25, Volume 1230, unless the employee is coming from a position on the central salary account. **(T-0)** Return rights apply to:

3.5.6.1. When the employee either moves to a position with the same DoD Component (DAF to DAF) or to a different DoD Component (e.g., DAF to Department of the Army, DAF to Defense Logistics Agency).

3.5.6.2. Both the initial movement and any subsequent movement within the 5-year period. **(T-1)** For example, the employee initially moves to a position with the same DoD Component, (e.g., DAF to DAF) and subsequently moves to another foreign area position with a different DoD Component (e.g., DAF to Army).

3.5.7. Employees who remain OCONUS beyond the original 5-year assignment will lose their statutory return rights unless the return rights are extended (administrative return rights) by the CONUS activity for which the employee has return rights. **(T-1)**

3.5.8. Positions hired with the specified hiring authorities are exempt from mandatory tour rotations. This includes clerk, translator, attorney, and interpreter overseas. See Title 5, Code of Federal Regulation (CFR), Part 213, *Excepted Service* (i.e., Schedule A) and 5 CFR, Section 315.612, *Noncompetitive appointment of certain military spouses*.

3.5.8.1. Foreign OCONUS activities shall initiate employee return rights no later than 6 months prior to DEROS. **(T-2)**

3.5.8.2. The installation commander at the foreign overseas areas may require an employee to exercise their return rights to avoid or reduce the effect of a RIF and comply with DAF workforce shaping efforts.

Chapter 4

RECRUITMENT FOR POSITIONS IN FOREIGN OVERSEAS AREAS

4.1. Scope.

4.1.1. This chapter establishes the DAF policies and procedures for recruiting and filling positions in the foreign overseas areas except for SES positions.

4.1.2. DAF employees recruited from the U.S. for an overseas assignment should be recruited in accordance with DAFMAN 36-203 and DAFMAN 36-142 for centrally managed positions, using applicable merit promotion procedures. **(T-1)**

4.2. Procedures.

4.2.1. Positions in foreign overseas areas shall be filled by local candidates to the maximum extent possible, subject to applicable treaties, laws, and host-nation agreements. This approach fulfills Congressional mandates and DAF policy to maximize employment opportunities for command-sponsored dependents of both military and civilian employees. **(T-1)**

4.2.2. When candidates are not available in the local community, refer to **Figure A2.1.**, OCONUS Order of Referral Logic Table, for the referral and selection of candidates to fill vacant positions.

4.3. Standardized Tours of Duty for DoD Civilians. Initial employment agreements and subsequent renewal agreements shall be executed for the period specified in the Per Diem, Travel and Transportation Allowance Committee (PDTATAC) Tour Lengths and Tours of Duty OCONUS document located at, **https://www.travel.dod.mil/Portals/119/Documents/JTR/Supplements/TOUR_LENGTHS_AND_TOURS_OF_DUTY_OCONUS.pdf**. **(T-0)** Additional guidance and tools are located at **https://www.defensetravel.dod.mil/Docs/AP-TL-01.pdf**.

4.4. Recruitment for Foreign Overseas Employment.

4.4.1. Employees with career or career-conditional status appointed to foreign areas are subject to the following return requirements:

4.4.1.1. Return Agreement: The employee must enter into an agreement with the DAF to return to the U.S. (specifically to the activity where they hold return rights) upon completion of their initial or subsequent tour. **(T-2)**

4.4.1.2. Five-Year Limitation: For positions subject to the DoD foreign area limitation policy, the employee must return to the U.S. no later than five years after their departure for the foreign area, unless an OTEX is formally approved. **(T-1)**

4.4.1.3. **Note on Exemptions:** Excepted service positions may be exempt from the 5-year limitation. An employee who is initially exempt may later become subject to the limitation due to a change in policy, status, or position.

4.4.2. Overseas limited appointments and OTEX are rare, and should be utilized only during severe shortages of qualified candidates for mission-critical occupations. **(T-2)** Employees serving in foreign overseas areas under an overseas limited appointment are subject to the 5-year limitation mandated by DoDI 1400.25, Volume 1230, and 5 CFR Part 301, Subpart B, *Overseas Limited Appointment.* Unless an OTEX is formally approved, these appointments will terminate at the end of the 5-year period. **(T-1)**

4.5. Employment Eligibility Under Status of Forces Agreement or Host Nation Agreements.

4.5.1. The applicable Status of Forces Agreement (SOFA) or host-nation agreement generally defines "civilian component" as civilian persons of U.S. nationality who are employed by, serving with, or accompanying the U.S. Armed Forces in the host country, but excludes individuals categorized as 'ordinarily resident' in that host nation.

4.5.2. The SOFA may include certain employees (and their dependents) of corporations organized under the laws of the U.S. Those persons who do not meet the criteria for "civilian component" are only eligible for employment as "local labor" under employment conditions established for FNs (not limited to such as pay and benefits).

4.5.3. Pay, benefits, and the employment of U.S. citizens must comply with U.S. laws, regardless of duty location. To comply with both the SOFA and U.S. law, the DAF cannot employ U.S. citizens in an appropriated fund position, those who are not eligible to be a part of the civilian component.

4.5.4. When determining whether an individual is ''ordinarily resident'' in a host country, the primary considerations are the circumstances under which the person initially entered the country and the conditions under which they remained. The Civilian Personnel Section (CPS) may seek guidance from their local Staff Judge Advocate or the applicable MAJCOM/FLDCOM.

4.5.4.1. Individuals who are eligible for employment as family members are not considered "ordinarily resident."

4.5.4.2. Individuals who entered the host nation, as members of the U.S. Armed Forces (military or civilian employees) are not considered "ordinarily resident" if they maintain continuous employment with the U.S. Armed Forces.

4.5.4.3. Indicators that a person is "ordinarily resident" may include, but are not limited to the following:

4.5.4.3.1. Entering a long-term (12 months or more) rental agreement by the applicant or applicant's spouse.

4.5.4.3.2. Employment on the economy or obtaining a work permit to work on the economy.

4.5.4.3.3. Obtaining a resident visa, work permit, or making a similar declaration that would indicate intent to remain in the foreign area (6 months or more).

4.5.4.3.4. Payment of taxes imposed on local residents.

4.5.4.3.5. Residing in the host country for more than 12 months without U.S. government affiliation (e.g., employment with the U.S. government or an equivalent organization) generally establishes a presumption of residency. The servicing CPS must confirm the specific timeframe agreed upon with the host nation by consulting the local Staff Judge Advocate. As a general rule, an established residence in the host country indicates an intent to remain, which may result in the individual being considered "ordinarily resident."

4.5.5. The servicing CPS will make eligibility determination and advise AFPC before appointment. **(T-0)**

4.5.6. Generally, individuals determined to be ''ordinarily resident'' in the host country terminate this status by departing the host country for a continuous period of at least 12 months. Factors indicating the termination of "ordinarily resident" status include, but are not limited to: terminating a long-term lease or tenancy, selling real property in the host country, relocating to another country, or shipping household goods out of the host country.

4.6. Appointment of Locally Available U.S. Citizens in Foreign Areas.

4.6.1. The employment of locally available U.S. citizens within DAF will be under the following appointment authorities. Refer to **Attachment 2**, OCONUS Order of Referral Logic Table, for the referral and selection of candidates to fill vacant positions.

4.6.2. Career and Career-Conditional Appointments. Applicants and employees with personal competitive status, applicants selected from OPM Delegated Examining Unit/Special Examining Unit certificates, OPM/DoD Interchange Agreements, and applicants appointed using Veterans' Employment Opportunities Act, will be appointed or converted with career or career-conditional tenure. **(T-0)**

4.6.3. DoDI 1400.25, Volume 1232 states applicants who are family members accompanying military or civilian personnel of U.S. government agencies to the foreign overseas areas with personal competitive status are considered to retain their career or career conditional status under this provision. According to DoDI 1400.25, Volume 315 and DoDI 1400.25, Volume 1232, the personnel action must include a second authority code on the Standard Form (SF) 50, *Notification of Personnel Action* (NPA). Refer also to **Chapter 15**. **(T-0)**

4.6.4. Other Excepted Positions. Other foreign overseas positions that are excepted from the competitive service are filled in accordance with the requirements, standards and procedures applicable to excepted service positions and in accordance with 5 CFR Part 213, and 5 CFR, Part 302, *Employment in the Excepted Service*, DAFMAN 36-203, and other applicable policy on excepted service appointments. **(T-0)**

4.6.5. Temporary or Term Appointments. When filling positions on a temporary or term basis, the appointment authority will depend on the position requirements and the selectee's status. For additional information, refer to 5 CFR Part 316, *Temporary and Term Employment*.

4.6.6. Veterans' Appointments. The use of veterans' appointment in foreign overseas areas should comply with Title 5, CFR, Part 211, *Veteran Preference*, DAFMAN 36-203, and any other applicable policy on the employment of veterans.

4.6.7. Overseas Limited Appointments. Locally available candidates, other than those indicated in **Chapter 7**, are appointed under the overseas limited appointing authority contained in 5 CFR Section 301.201, *Appointments of United States Citizens Recruited Overseas*, and may only be appointed when there is a severe shortage of available candidates after a competitive announcement. Local applicants and employees subject to the DoD rotation policy are appointed or converted to overseas limited not-to-exceed appointments.

4.6.7.1. The established not-to-exceed date will reflect the termination date of the normal tour for the location, or any approved extension date, not-to-exceed the allowable 5-year foreign area employment.

4.6.7.2. Local applicants and employees who are not family members, who do not have competitive status, appointed or converted to positions not subject to the rotation policy are appointed to overseas limited appointments of indefinite tenure. **(T-0)**

4.7. Military Spouse Preference (MSP) Program.

4.7.1. The authorities referencing the employment of military spouses are Title 10 USC Section 1784, *Employment Opportunities for Military Spouses*; 5 CFR Parts 213; 5 CFR Part 315; DoDI 1400.25, Volume 315; and DAFMAN 36-203, Chapter 5, Military Spouse Preference Program. AFPC and the CPS must refer to these regulations and manuals, as well as any policies, when implementing Military Spouse Preference at foreign overseas locations. **(T-0)**

4.7.2. When military spouses entitled to preference under applicable laws and regulations are among the "best qualified" on a competitive referral, they must be selected over all other competitive candidates unless an exception is granted. The authority to approve such exceptions is delegated to the Commander holding appointing authority at the foreign location. This authority may be further delegated to the Civilian Personnel Officer. The CPS must maintain documentation for all approved exceptions. **(T-3)** Exceptions must be rare and based solely on compelling hardship to the mission or the applicant.

4.7.2.1. Personal interviews are permitted as part of the selection process when a military spouse is referred, provided that the selection mandate for the preferred military spouse is upheld.

4.7.2.2. For foreign area assignments, MSP candidates may apply for employment up to 30 days prior to their anticipated arrival; however, preference is not applied until the spouse physically reports to the foreign area. Spouses of military sponsors who are within six months of their tour rotation date may be bypassed for continuing positions without regard to preference. To receive consideration, candidates must apply for vacancies via USAJOBS. MSP-eligible spouses may accept or decline an unlimited number of non-continuing positions without losing their preference status.

4.7.3. In foreign areas, military spouses without civil service status may be appointed non-competitively in accordance with DoDI 1400.25, Volume 315, and 5 CFR § 315.612. This authority covers positions in overseas installations when filled by dependents of military members or civilian employees of the U.S. Government residing in the area, provided all eligibility criteria are met. MSP applies to these non-competitive appointments if the military spouse is determined to be among the "best qualified" for the position.

4.7.4. Military spouses should create a USAJOBS account and upload their resumes along with all necessary employment verification documents. Recommended documentation includes college transcripts, a well-written resume, professional certifications, licenses, specialized training certificates, the sponsor's PCS orders (including any amendments), and a Member-4 copy of DD Form 214, *Certificate of Release or Discharge from Active Duty* (if also claiming veterans' preference). Applicants will not receive consideration if they fail to provide the required documentation. **(T-0)**

Chapter 5

EMPLOYMENT OF NON-U.S. CITIZENS IN FOREIGN OVERSEAS AREAS

5.1. The Authority for Appointment and Employment.

5.1.1. This chapter implements DoDI 1400.25, Volume 1231. Foreign national employment systems will vary based on international and bilateral agreements, host national laws, and labor agreements.

5.1.2. Non-U.S. citizens may be recruited in foreign areas and appointed to overseas positions without regard to competitive requirements, in accordance with DoDI 1400.25, Volume 1231. These appointments are generally made in the same manner as Schedule A Excepted Appointments (5 CFR Part 213). **(T-0)**

5.1.3. To receive preference for foreign national positions, non-U.S. citizens must be family members of individuals residing in the host country on official U.S. government orders, except when granting such preference conflicts with international or bilateral agreements, host-nation laws, or local labor agreements.

5.2. Types of Appointments. All non-U.S. citizen employees will receive either an Excepted or Excepted Not-To-Exceed (NTE) appointment, as appropriate. These appointments may be made on a full-time, part-time, or intermittent basis in accordance with international and bilateral agreements, host-nation laws, and labor agreements. Excepted appointments have an indefinite tenure. Excepted NTE appointments are generally limited to periods of one year or less; however, there is no restriction against extending these appointments for longer durations when necessary.

5.3. Dual Citizenship.

5.3.1. Employment of Individuals with Dual Citizenship. If otherwise eligible, a person with dual citizenship is employed as a U.S. citizen and provided the maximum benefits possible under laws and regulations applicable to the employment of U.S. citizens. **(T-0)**

5.3.2. U.S. law does not require a U.S. citizen to choose between U.S. citizenship and another (foreign) nationality (or nationalities). A U.S. citizen may naturalize in a foreign state without any risk to their U.S. citizenship.

5.3.3. Foreign Government Direct Hire. U.S. citizens shall not be hired into appropriated fund foreign national positions. Such employment is legally prohibited as it does not exempt the individual from U.S. labor and compensation laws. In cases where a U.S. citizen was unknowingly appointed as a foreign national, management must terminate the appointment immediately upon discovery of the individual's U.S. citizenship, as the appointment is legally unauthorized. **(T-0)**

5.3.4. Foreign Government Indirect Hire. The local government may hire a U.S. citizen under an indirect-hire system, DAF personnel must not refer, recommend, or encourage such employment. Because local employment under a foreign government can impact an individual's U.S. citizenship, candidates should be advised to consult with the local or nearest U.S. Embassy before accepting an indirect-hire position. Additionally, indirect-hire arrangements for U.S. citizens must not be utilized in countries where the host nation funds foreign national salaries. **(T-0)**

5.4. Effect of Acquiring Citizenship.

5.4.1. Employees who acquire U.S. citizenship during their overseas service—excluding those in the United States Air Forces in Europe - Air Forces Africa (USAFE-AFAFRICA) and Pacific Air Forces (PACAF) areas of responsibility—may continue to serve under their Excepted Appointment in the position they occupied when citizenship was acquired. No personnel action is required unless the employee is converted to the General Schedule, in which case a change in pay-method category must be recorded. The CPS or supervisor may not non-competitively move the employee to other competitive positions. **(T-0)** If a non-citizen employee is appointed to a General Schedule position (e.g., in Guam), the agency must take action to convert the employee to a career-conditional appointment. **(T-0)**

5.4.2. A non-U.S. citizen direct hire employee who acquires U.S. citizenship is entitled to receive the U.S. rate of pay appropriate for the position being occupied. The employee is also entitled to retirement, health, leave, and life insurance benefits afforded to U.S. citizen employees. Entitlements to travel and other allowances are determined under current criteria. The conversion to U.S. rate of pay is effected on a SF 50, *Notification of Personnel Action*, as a "Pay Adjustment." The effective date of the pay adjustment is the day following the date that the employee made known their U.S. citizenship to the CPS. Pay is established at the initial step rate unless a higher adjustment rate is appropriate based on the current rate of pay. This does not apply to non-U.S. citizens in the USAFE-AFAFRICA and PACAF area of responsibility.

5.4.3. If the position occupied by the employee was established and funded for occupancy by a foreign national, a decision must be made in accordance with the following on retention of the employee: **(T-0)**

5.4.3.1. If manning and budget approval can be obtained for continuing occupancy of the position at U.S. pay rates, the employee may remain under their current appointment. However, the employee cannot be moved to another position or converted in the current position except under **paragraph 5.4.3.3**.

5.4.3.2. If the agency cannot obtain manning and budget approval, it must apply its RIF procedures. **(T-3)** The employee's type of appointment and pay would place them in a separate competitive level and no entitlement to displace or bump another employee exists.

5.4.3.3. If the employee meets the qualification requirements and is otherwise eligible for appointment in the Civil Service as well as DAF requirements, an appointment may be made either to the current position, if authorized under **paragraph 5.4.3.1** or to another position. **Note:** Gaining U.S. citizenship does not entitle an employee to continued employment.

5.5. Determination of Positions to Which Non-U.S. Citizens will be Assigned.

5.5.1. The following factors and circumstances are considered in deciding whether to fill a position by a non-U.S. citizen:

5.5.1.1. Provisions of governing international and bilateral agreements, host nation law, and labor agreements, including its position relative to our retention of an adequate non-U.S. citizen work force in the event of military mobilization or national emergency.

5.5.1.2. Availability of qualified personnel locally or in surrounding areas.

5.5.1.3. Degree of indoctrination and training estimated to be required if locally available non-U.S. citizens are employed.

5.5.1.4. Relative cost for salary, transportation and logistical support of non-U.S. and U.S. citizen personnel.

5.5.1.5. Security requirements for individual positions.

5.5.2. The ability to retain personnel in the event of mobilization or national emergency conditions is significant in determining whether effective use can be made of non-U.S. citizen personnel. Therefore, an attempt must be made to ascertain the views of the host government prior to deciding to employ non-U.S. citizens.

5.5.3. Governing agreements provide a general assurance regarding the retention of the non-U.S. citizen workforce during mobilization or national emergency conditions. However, commanders and HR officials are advised to develop, communicate, and formalize specific implementing arrangements with the host country or territory to ensure clear, actionable measures are in place during mobilization or national security crises.

5.5.4. Non-U.S. citizen employment programs are based on international or bilateral agreements. These agreements may mandate that employment conditions, pay, and benefits be established unilaterally, negotiated with recognized labor unions, or a combination of both. In all cases, supervisors and managers must give parallel consideration to fulfilling management needs and meeting the DoD and DAF objective of operating as a 'good employer' by local host-nation standards. **(T-0)**

5.5.5. Air Force organizations with FNs (direct or indirect hires) shall follow the applicable policies for respective countries within the United States European Command (EUCOM) and Pacific Command (PACOM) AOR. **(T-0)**

5.5.6. Program Review. Continuing analysis and review of the personnel programs and the circumstances in the local areas must be made to determine:

5.5.6.1. Whether program improvements are required to increase effectiveness of administration.

5.5.6.2. Actions which can be taken within the provisions of this section to improve programs or alleviate problems.

5.5.6.3. Need for negotiation or renegotiation of agreements. In this instance, action is initiated in accordance with DoDI 1400.25, Volume 1231. In addition, information on the requirements for and significant developments in negotiations must be transmitted to AF/A1C or SF/S1C, 1040 Air Force Pentagon, Washington, D.C. 20330-1040 or **usaf.pentagon.af-a1.mbx.af-a1cp-workflow@mail.mil**. AF/A1C or SF/S1C will engage with USAFE-AFAFRICA/Directorate of Personnel Programs (A1K) and PACAF/A1K should the concern be related to a country within the EUCOM and PACOM AOR. **(T-1)**

5.5.6.4. Need for modification of, or exception to, the provisions of this section. In this case, information on the problems involved, alternative solutions, and recommendations are submitted to AF/A1C or SF/S1C. AF/A1C or SF/S1C will engage with USAFE-AFAFRICA/A1K and PACAF/A1K should the concern be related to a country within the EUCOM and PACOM AOR. **(T-1)**

5.5.6.5. Policies, Regulations, and Other Administrative Controls.

5.5.7. Employment Conditions for Non-U.S. Citizen Personnel. Employment conditions for non-U.S. citizen personnel must ensure employees are:

5.5.7.1. Compensated in accordance with locally prevailing rates of pay, or rates prevailing in the area from which recruited, unless applicable international and bilateral agreements, host nation laws, or labor agreements prevail. **(T-2)**

5.5.7.2. Provided necessary and required training to successfully perform the duties of their position, improve performance and production, and to obtain the skills needed for career advancement and progression.

5.5.7.3. Provided equitable consideration for advancement in responsibility and grade, consistent with their abilities, and assignment to higher-grade duties that do not require assignment of U.S. citizens.

5.5.7.4. Governed by conditions of employment that conform to local practices, such as payment of bonuses, separation allowances, advance payments for vacations, payment for local holidays, and local leave practices.

5.5.7.5. Permitted to participate in local social security programs or the purchase of pension, life, and health insurance from private firms is also permitted. This includes authorization to make employer contributions, withhold employee deductions, and forward such funds to the appropriate insurance companies. These practices are permitted in all areas where non-U.S. citizens are employed by the DAF under direct hire systems.

5.5.7.6. Where legal authority for adoption of any practice appears questionable, submit a request for decision to AF/A1C or SF/S1C. **(T-2)**

5.5.8. Local laws, customs, and practices form the fundamental basis for non-U.S. citizen personnel programs. DoD guidance mandates that the provisions of a foreign national employment system within any specific area must apply uniformly across all elements of the U.S. Armed Forces. Therefore, effective coordination among all U.S. human resources representatives in the host country is essential when developing or revising these systems. **(T-3)**

Chapter 6

PLACEMENT OF EMPLOYEES INTO FOREIGN AND NON-FOREIGN OVERSEAS POSITIONS

6.1. Overseas Employment Requirements.

6.1.1. The Minimum tours of duty are outlined on the Defense Travel Management Office website, https://www.travel.dod.mil/Portals/119/Documents/JTR/Supplements/TOUR_LENGTHS_AND_TOURS_OF_DUTY_OCONUS.pdf, and are used to determine the terms for return obligation or return rights. Tours of duty and tour lengths are synonymous as it means the amount of time one must complete to earn return transportation entitlements.

6.1.2. Applicants for OCONUS assignment must:

6.1.2.1. Be available for the OCONUS assignment within 65 days.

6.1.2.2. Be willing to remain in the foreign overseas area for at least one full tour of duty and be willing to return from an overseas assignment, except Alaska, Hawaii, Guam or U.S. territories or possessions, within five years after overseas employment begins.

6.1.2.3. Be willing to travel by government aircraft.

6.2. Benefits and Entitlements Counseling.

6.2.1. Benefits and entitlements are intended as recruitment and/or retention incentives.

6.2.2. The CONUS and OCONUS CPS should counsel employees on benefits and entitlements which include topics such as:

6.2.2.1. Advance pay.

6.2.2.2. Allowances which may include but are not limited to:

6.2.2.2.1. Eligibility for home leave.

6.2.2.2.2. Opportunities for employment of family members.

6.2.2.2.3. Non-foreign area entitlements.

6.2.3. The unique overseas employment conditions include available medical facilities, educational services for family members with special needs, and prevailing threat conditions that require terrorist and force protection briefings prior to PCS.

6.3. Selection Priorities. Selection priorities are the same as those established in DAFMAN 36-203 and **Attachment 2** for all DAF positions.

6.4. Notification and Selection Process.

6.4.1. AFPC will make employment offers to all selected candidates via email notification and will inform the gaining command of acceptance or declination. **(T-3)**

6.4.2. The tentative selection and job offer message from AFPC will provide preliminary information to the gaining CPS (or the CPS initiating the courtesy processing) regarding the processing of the employee. At a minimum, this information must include:

6.4.2.1. Position title, series, and grade or pay band equivalent of the position to which being assigned, and the position description or details on the major duties of the position. **(T-3)**

6.4.2.2. Duty location.

6.4.2.3. Length of the tour of duty. Refer to **Chapter 7** to verify specific tour length. Tour lengths are prescribed by the Defense Travel Management Office and are specified by PDTATAC that governs Tour Lengths and Tours of Duty OCONUS, for specific locations and not the servicing CPS.

6.4.2.4. Applicants must be provided the approved form for the certificate of medical examination and reminded that any job offer is tentative, contingent upon the satisfactory completion of this evaluation (refer to **Chapter 9**). Medical examinations are required only when specific physical requirements are clearly documented in the position description, or when there are country-specific requirements for the OCONUS location (e.g., mandatory immunizations). If physical requirements are identified in the position description, the successful completion of both the medical examination and any required physical fitness testing is a mandatory condition of employment.

6.4.2.5. Passport and Visa requirements, if applicable.

6.4.2.6. Any PCS entitlements, which may include but are not limited to travel, transportation, and allowances.

6.4.2.7. Any special requirements for the position (but not limited to drug-testing, emergency-essential, and supervisory or managerial probationary period).

6.4.2.8. Provide comprehensive medical, dental, and educational information regarding the overseas community where the position is located. This must include details on the EFMP for selectees who voluntarily identify a family member with special medical or educational needs. Additionally, ensure the required Statement of Understanding is provided for candidates selected for civilian positions in applicable overseas locations. **(T-3)**

6.5. Employment Offer.

6.5.1. When extending an employment offer, the AFPC and the CPS (if applicable) must emphasize that the offer is tentative and contingent upon the satisfactory completion of all pre-employment requirements. The selectee must be advised not to take any irreversible actions—such as selling a home or vehicle, or resigning from a current position—until all requirements are met and a firm job offer is issued and accepted. **Note**: Regardless of the recruitment source, AFPC must ensure the tentatively selected candidate meets all appointment and suitability conditions before finalizing the selection and issuing the firm job offer. **(T-0)**

6.5.2. Once the selectee accepts the tentative job offer, the gaining CPS will immediately begin pre-employment processing, to include:

6.5.2.1. Arranging for a medical examination.

6.5.2.2. Requesting passports and visas, if applicable.

6.5.2.3. Initiating any necessary background and security investigation, if applicable.

6.5.3. The gaining CPS Human Resources (HR) Specialist or AFPC HR specialist assigned to the action will obtain the following information. This information must be included in the email notification advising the OCONUS CPS or AFPC of the selectee's acceptance:

6.5.3.1. Current salary information or any within-grade increases or other projected pay changes scheduled between the time of selection and time of Entrance On Duty (EOD). **(T-3)**

6.5.3.2. A determination as to whether the selectee will have return rights, and the requirement to sign an Overseas Employment Agreement. (**T-3)**

6.5.3.3. State Criminal History Record Check and Installation Record Check clearance dates, if applicable. **(T-3)**

6.5.4. If the losing CPS is another OCONUS location, also provide:

6.5.4.1. Overseas rotation information including, DEROS. **(T-2)**

6.5.4.2. A copy of DD Form 1614, *Request/Authorization for DoD Civilian Permanent Duty or Temporary Change of Station Travel* and DD Form 1617, *Department of Defense (DoD) Transportation Agreement: Transfer of Civilian Employees Outside the Continental United States (OCONUS)* including the date eligible for subsequent PCS, if applicable. (**T-2)**

6.5.4.3. A copy of return rights agreement including the return rights position, location, and expiration date. (**T-2)**

6.5.4.4. 5-year foreign area limit date and extension date beyond five years, if applicable.

6.5.4.5. Last renewal agreement travel date, if applicable. **(T-3)**

6.5.5. The losing CPS, if applicable, must verify the employee's last two years of service. They must provide the gaining CPS with a statement confirming whether the employee has met (or will meet) the requirement for two years of physical presence in the United States or a non-foreign area prior to the EOD. Additional restrictions regarding eligibility for subsequent centrally funded PCS moves may apply in accordance with DAFMAN 36-142.

6.5.6. Finally provide the in-processing package to the losing CPS, at a minimum include:

6.5.6.1. The position description.

6.5.6.2. The appropriate overseas employment agreement and service agreement.

6.5.6.3. Housing information.

6.5.6.4. Information on healthcare, educational services, and early intervention childcare services within the local community if applicable.

6.5.6.5. The assigned sponsor contact information. Sponsors are responsible for providing the selectee and their family with essential local-area information, special instructions, and required forms to help prepare them for the overseas move. For a complete list of required actions, refer to the *Overseas Processing Instruction Checklist (CONUS CPS)* at **Attachment 5**, **Figure A5.1**.

6.5.7. Provide e-mail notification to the selectee and include, as attachments:

6.5.7.1. A copy of the position description, core document, or Standard Core Personnel Document.

6.5.7.2. Overseas area information pamphlet.

6.5.7.3. Information benefits, EFMP, if applicable.

6.5.7.4. Statement of Understanding for Employees and Candidates Selected for Civilian Positions in applicable overseas locations.

6.5.7.5. PCS entitlements including shipment of privately-owned vehicle, housing information, and other information on the local area necessary to prepare the selectee and family for the move to the overseas area. As a source for additional information, the CPS can provide the web page addresses of the DAF OCONUS installation and the Military and Family Readiness centers.

6.5.8. The losing CPS and AFPC are responsible for items on the overseas processing displayed in **Figure A5.2**., *Overseas Processing Instruction Checklist (OCONUS CPS)*. **(T-3)**

6.6. Medical Evaluation. When the position description identifies specific physical requirements, successful completion of the required physical fitness testing and medical examination is a mandatory condition of employment. The medical evaluation referral must be initiated as soon as possible to ensure timely onboarding.

6.7. Passport and Visa. AFPC and/or the gaining Civilian Personnel Section (CPS) will assist the selectee in applying for an official, no-fee passport and visa (if applicable) for the selectee and their eligible family members through the local passport office. All passport and visa appointments must be scheduled as soon as possible after receipt of approved and funded PCS orders. However, civilian employees (excluding dependent family members) may submit a copy of their firm job offer in lieu of PCS orders; their passport processing should not be delayed pending receipt of the full in-processing package. Passport processing timelines are controlled by the U.S. Department of State. For additional information on no-fee passports, visit **https://travel.state.gov/content/travel/en/passports/have-passport.html**. Additionally, selectees are required to comply with all clearance requirements identified in the DoD Foreign Clearance Guide for their specific OCONUS location. **(T-0)**

6.8. Travel and Transportation. Upon receipt of the complete and required in-processing package, the travel orders are processed according to applicable procedures and policies.

6.9. Security Investigations. If a tentative selectee does not possess the required security clearance, the OCONUS CPS will initiate the background investigation immediately and notify the AFPC upon completion. For positions requiring a Secret or Top Secret clearance, the investigation must be completed with satisfactory results before the selectee may enter travel status, unless the gaining CPS authorizes an interim clearance or waiver in accordance with security program management procedures.

6.10. Counseling Employees on Overseas Employment Requirements.

6.10.1. The OCONUS CPS should document in writing any counseling sessions held with prospective employees and selectees regarding the unique conditions of the host-nation community. This documentation must include details regarding the availability of medical, dental, and educational services at the local installation. **(T-3)**

6.10.2. The CPS shall provide full and accurate information to prospective employees and selectees on medical, dental, and educational services available at the local installation. For example, the type of medical services or facilities, services that will be available, the nature of the work to be performed, the conditions of their employment, host country position on same-sex couples, as applicable, and their responsibilities to the DAF. **(T-3)**

6.10.3. Providing comprehensive information to selectees with family members who have special medical or educational needs is essential. HR representatives should provide detailed information regarding the availability of medical, educational, and early intervention resources in the prospective overseas location. This ensures selectees can make informed decisions as to whether the assignment is appropriate for their family's specific needs. For more details on overseas medical standards and requirements, refer to **Chapter 9**.

6.11. Setting Entrance on Duty (EOD) Dates.

6.11.1. CONUS to OCONUS moves: When a candidate is recruited from CONUS to an OCONUS location, the EOD for overseas employment is established on a Sunday, the first day of a pay period, as documented on the PCS orders. Travel day commences on the gaining installation's time, on the first duty day after the EOD (Monday). The employee reports for duty at the new assignment on Tuesday or Wednesday, depending on the number of travel days authorized by the most direct route as determined by the authorized mode of transportation.

6.11.2. OCONUS to CONUS moves: When an employee is returning to CONUS after completing the transportation agreement from an OCONUS assignment, expenses will be paid in accordance with the requirements established within the JTR, and the EOD for the CONUS assignment is set on a Sunday, the first day of a pay period. Travel from the OCONUS location commences on the losing installation's time, on the Thursday or Friday before the EOD date, depending on the number of travel days authorized by direct route as determined by the authorized mode of transportation. The employee is expected to report to their duty location on the first duty day after the EOD (Monday). Coordination of expenses and transportation arrangements will be established in accordance with the JTR, Chapter 5, Section 5505.

6.11.3. OCONUS to OCONUS moves: When a candidate is recruited from an OCONUS location to another OCONUS location, the EOD for the new overseas assignment is established on a Sunday, the first day of a pay period, as documented on the PCS orders. Travel day commences on the first duty day after the EOD (Monday), and the employee reports to duty on Tuesday or Wednesday, depending on the number of travel days authorized by the most direct route as determined by the authorized mode of transportation.

6.11.4. The gaining organization can approve leave requests and extend an employee's report date (first duty day) at their new assignment beyond the normal report date, as long as the PCS travel orders authorize and reflect the approved leave. **(T-0)**

6.11.5. First Duty Station Moves: The EOD for a first duty station move is the day the employee is required to report for duty, usually a Monday. A first duty station employee for permanent change of station (PCS) purposes, is a newly appointed federal civilian employee. This also includes prior federal employees with more than three days break in service. Some examples include interns, PALACE Acquires, Copper Caps, new college graduates, retiring/separating military members, and previous government contractors.

6.11.6. Under the provisions of the JTR, new appointees are not entitled to reimbursement for other expenses incurred as a consequence of a relocation that are normally available for current employees. The employee is required to travel to their new duty station on their own time. For those reporting OCONUS, overseas allowances do not commence until the EOD date.

6.11.7. Regardless of the type of move, both EOD and report dates should be clearly communicated in advance, to prevent the employee incurring expenses that are not reimbursable.

6.11.8. Payment, expenses, and transportation arrangement will be established in accordance with the JTR, Chapter 5, Part F.

6.12. Tour Curtailment.

6.12.1. An employee serving under a service agreement in a foreign area may be released from their tour of duty for reasons beyond their control or due to extenuating circumstances. The employee must provide written justification and substantiating documentation to the CPS to support their request for an OCONUS tour curtailment. **(T-3)**

6.12.1.1. All curtailment requests will be reviewed on a case-by-case basis. The CPS must verify that the supporting documentation originates from a reliable and trustworthy source (e.g., an attending physician, or private, state, or local agencies). **(T-3)** Once verified, the CPS will route the request to the appropriate approving official. **(T-2)**

6.12.1.2. Upon receiving a final decision, the CPS will notify the employee and the applicable CONUS CPS, and, if approved, initiate the process to return the employee to the CONUS. **(T-3)**

6.12.2. An employee's OCONUS tour may be curtailed under circumstances including, but not limited to, the following:

6.12.2.1. Enlistment or call to active duty in the Armed Forces.

6.12.2.2. Release for the Government's convenience includes, but is not limited to, separation due to physical or mental disqualification, or a lack of the skills required to perform the duties of the recruited position or any other position to which the employee could be assigned. Employees separated due to misconduct, or due to an illness induced by misconduct, are not separated for the Government's convenience.

6.12.2.3. The employee's immediate presence is required in the geographical location where the actual residence is located due to an unforeseen emergency.

6.12.2.4. Completion of the agreed tour of duty would result in extreme personal hardship due to circumstances beyond the employee's control, such as conditions seriously affecting the health, welfare, and safety of the employee, serious illness or death in the immediate family, or the imminent breakup of the family group.

6.12.2.5. Significant changes occur in the civilian employee's employment situation or loss of economic benefits. Applying for and accepting a promotion is not considered a loss of economic benefit, nor is it an acceptable reason for release from an overseas tour of duty.

6.12.3. The MAJCOM commander, Career Field Manager (CFM), and AFPC will review all request for tour curtailment and determine acceptability in accordance with JTR, Chapter 5, 54912. **(T-2)**

6.13. Renewal Agreement Travel (RAT).

6.13.1. A civilian employee, and the civilian employee's accompanying dependent, may be eligible to receive travel and transportation allowances for returning home between tours of duty OCONUS.

6.13.2. DAFs leave policy applies regarding an employee's leave status while on RAT.

6.13.3. For question and inquiries regarding RAT, refer to the JTR, Chapter 5, Part H.

Chapter 7

FOREIGN AREA EMPLOYMENT LIMITATION

7.1. Information.

7.1.1. DoDI 1400.25, Volume 1230, limits civilian employment in the competitive service in foreign overseas areas to a period of five years unless interrupted by two years of physical presence in the U.S. or non-foreign overseas areas. **(T-0)**

7.1.2. Further restrictions regarding eligibility for a subsequent centrally funded PCS may be applicable in accordance with DAFMAN 36-142. **Exception:** Foreign Military Sales (FMS) approval authority is the Air Force Materiel Command, International Affairs (AFMC/IA). **(T-1)** Refer to **paragraph 7.8** for authority to approve shorter period of physical presence in U.S.

7.1.3. The 5-year limitation on foreign area employment provides management with the flexibility to accommodate evolving overseas workforce requirements, while also offering career-enhancing opportunities for employees located in the U.S. and non-foreign areas. Furthermore, this policy ensures ongoing employment opportunities for newly arriving civilian and military dependents as current employees and family members rotate out of the foreign area.

7.1.4. This manual does not guarantee any DAF employee a 5-year foreign area assignment. Consistent with the pre-overseas employment agreement, the DAF may require career or career-conditional employees to return from an overseas assignment prior to completing five years of service. **(T-3)**

7.1.5. Management may also direct an early return when it is in the best interest of the DAF and complies with the JTR. Factors influencing an early return include, but are not limited to: the exercise of return rights, mandatory placement assistance through the PPP, mobility agreement requirements, or other mission-related circumstances. **(T-3)**

7.1.6. The DoDI 1400.25, Volume 1230, 5-year limitation of foreign overseas employment does not apply to family members with personal competitive status who accompany a member of the U.S. Armed Forces or civilian employees assigned to a foreign overseas area, unless loss of dependent status occurs. **(T-0)** See **paragraph 7.4.1**.

7.1.7. Employees assigned to a Civilian Strategic Leader Program (CSLP) position, whether it is funded by the Central Salary Account (CSA) or owned by the installation, are generally not affected by the foreign area employment limitation, as they typically serve for less than five years. CSLP assignments consist of a 24 to 36-month assignment, with the option to extend for up to one additional year with approval. If an OTEX is warranted, the request should be based upon critical mission needs, such request should be coordinated with the Career Field Team (CFT), CFM, and the CSLP office at AFPC. AFPC Talent Management Division (AFPC/DPCZ) facilitates OTEX request in accordance with AFPC outplacement and extension processes. When requesting and approving an OTEX or placement to another assignment, any prior foreign overseas service subject to the limitation must be considered and may also be subjected to the foreign area employment limitation. **(T-3)**

7.1.8. Employees assigned to a Career Broadener (CB) positions funded by the CSA, are generally not affected by the foreign area employment limitation. CB assignments consist of a 30–36 month assignment with the option to extend up to one additional year with approval. If an OTEX is warranted, the request should be based upon critical mission needs, such request must be submitted by the CPS to the CB office at AFPC for approval. When requesting and approving an OTEX or placement to another assignment, any prior foreign overseas service subject to the limitation must be considered and may also be subjected to the foreign area employment limitation. **(T-3)**

7.1.9. Employees assigned to a Key Career Position (KCP) are generally not affected by the foreign area employment limitation. KCP assignments consist of 36–48-month assignments with the option to extend to not more than 60 months. If an OTEX is warranted, it should be based upon critical mission or developmental needs, requests must be submitted to the functional CFT office at AFPC for approval.

7.1.10. When requesting or approving an OTEX or subsequent overseas assignment, management must consider all prior foreign overseas tours. This cumulative service remains subject to the 5-year foreign area employment limitation. **(T-3)**

7.2. Overseas Limited Appointments.

7.2.1. The DoD policy limiting foreign area employment to five consecutive years also applies to personnel hired on overseas limited appointments. In accordance with 5 CFR § 301.201 (Appointments of United States Citizens Recruited Overseas), such appointments and their extensions are rare, and must be utilized only during a severe shortage of qualified candidates. Initial appointments should align with the established tour of duty for the location, with the possibility of extending up to the 5-year maximum. Employment will be terminated upon completion of the initial tour unless an OTEX is approved using the criteria outlined in **paragraph 7.7**. **(T-3)**

7.2.2. Recruiting career or career-conditional employees from the CONUS and subsequently converting them to any form of time-limited appointment is restricted and must not be utilized as a staffing option. **(T-1)**

7.2.3. Employees on overseas limited appointments who are exempt from the foreign employment limitation are on indefinite appointments. Exemptions are outlined in **paragraph 7.5** below.

7.3. Computing Allowable Foreign Employment Period.

7.3.1. To compute the period of allowable foreign overseas area employment remaining under a current appointment, conversion, or on reemployment, all prior civilian appropriated fund competitive service employment (i.e., temporary, term, or permanent) with the DoD in foreign areas not interrupted by at least 2 years of physical residence in the U.S. or non-foreign overseas areas (if a resident) must be counted. **(T-0)**

7.3.2. Time spent in a deployed status does not count towards foreign employment period.

7.3.3. Further restrictions regarding eligibility for a subsequent centrally funded PCS may be applicable in accordance with DAFMAN 36-142. The authority to approve a period less than the required 2 years is delegated to gaining OCONUS MAJCOM/FLDCOM Deputy Commander or equivalent (see **paragraph 8.8**.).

7.4. Employees Who Lose Family Member Status.

7.4.1. Excepted Appointments (5 CFR, Part 213 and 5 CFR, § 315.612). A family member (see definition of terms) on this appointment who loses family member status through divorce or when the sponsor transfers or separates from the service or is permanently reassigned to another location and departs the area, must be terminated within 60 calendar days from the date of divorce, transfer, separation from the service or permanent reassignment unless an extension up to one year is approved. **(T-1)**

7.4.2. Time limits on Schedule A excepted service appointments, are based on the sponsor's tour of duty and require the employee to remain a "family member." Family member status ceases to apply through divorce or when the sponsor transfers or separates from the service or the sponsor is permanently reassigned to another location and departs the area. When requested by management and determined to be in the best interest of the DAF, the Commanding Officer with appointing authority may approve an extension for up to one year beyond the sponsor's tour for employees who have lost family member status. These exceptions should be used sparingly.

7.4.3. Career or Career-Conditional Appointments. A family member on a career or career-conditional appointment, who loses family member status through divorce or the sponsor transfers or separates from the service or is permanently reassigned to another location and departs the area, becomes subject to the foreign overseas rotation policy. Tour extension approval is required for the family member to remain in the foreign overseas area. A new overseas employment agreement must be obtained when dependent becomes self-sponsored. **(T-3)** Refer to **paragraph 8.1.,** Overseas Employment Agreements. Refer to **paragraph 7.5.1** for guidance concerning authorized foreign area employment and **paragraph 7.3** for computing the allowable period.

7.5. Exemptions from Foreign Area Employment Limitation.

7.5.1. In accordance with DoDI 1400.25, Volume 1230 the 5-year limitation does not apply to:

7.5.1.1. Employees who have been continuously employed in a foreign area since 1 April 1966.

7.5.1.2. Employees who are family members accompanying military or civilian employees of the DoD Components who are stationed in the area. This exception ceases to apply upon the departure of the sponsor from the area.

7.5.1.3. Unmarried dependent children may be retained in a position past the age of 23 until such time as their sponsor departs the foreign duty station or its commuting area, or the sponsor completes the current period of service requirement, whichever occurs first. **Note:** DoDM1000.13, Volume 2, *DoD Identification (ID) Cards: Benefits for Members of the Uniformed Services*, *Their Dependents*, *and Other Eligible Individuals*, indicate once an unmarried family member reaches 21 (or 23 and a full-time student), they are not eligible for an identification card or installation access and therefore not employable. Some host country laws also conflict with this guidance, such as the United Kingdom, where the law states a 23-year-old is considered an adult and therefore complicates the visa work requirement. In the event there is a conflict with host country laws, the employee should consult with the servicing CPS and Staff Judge Advocate.

7.5.1.4. Employees who were employed before 24 August 1988, in positions at the general schedule 06 level or below or in non-supervisory wage grade positions, as long as they stay continuously employed at those grade levels.

7.5.1.5. Employees Serving on a Veterans' Recruitment Appointment (VRA). VRA employees become subject to the 5-year foreign area limitation immediately upon conversion to a career or career-conditional appointment. Upon satisfactory completion of two years of substantially continuous service, a VRA-appointed employee must be converted to a career or career-conditional appointment. **(T-0).**

7.5.1.6. The intent of this policy is to afford the VRA appointee sufficient time to complete their two years of excepted service—whether in one or multiple positions—prior to mandatory conversion. It is not intended to allow the indefinite continuation of overseas service through a succession of VRA appointments.

7.5.1.7. Prior to the initial VRA appointment, the employee must sign the DoD rotation policy agreement. This agreement acknowledges that the employee becomes subject to rotation immediately upon completing two years of excepted service and converting to the competitive service, dependent on their total computed foreign area employment (see **paragraph 7.3**.). Six months prior to reaching the 5-year mark, the employee must be registered in the DoD PPP to ensure return placement upon conversion to career-conditional status. **(T-0)**

7.5.1.8. Non-appropriated Fund employees. Employees transitioning from excepted service positions (including NAF roles) into competitive service positions immediately become subject to the DoD rotation policy and the 5-year foreign area employment limitation. When computing this 5-year period, all preceding civilian appropriated fund service with the DoD that was not interrupted by at least two years of physical presence in the U.S. or a non-foreign area must be included. The authorized period of foreign area employment will terminate either:

7.5.1.8.1. After a period equivalent to one renewal agreement tour of duty, beginning on the date of the conversion to the competitive service; or

7.5.1.8.2. After a total of five years of overseas service (including the continuous service immediately prior to the conversion), whichever is later.

7.6. Impact of Extensions on Return Rights. Employees granted statutory return rights must exercise their return rights within 5-year unless a short-term extension of return rights is approved by the CONUS activity where the employee has return rights. **(T-0)** If an extension beyond the 5 years is approved by the OCONUS local Command, return placement will be in accordance with the provisions of the DoD PPP. **(T-0)** The CONUS owning command where return rights exist will advise the OCONUS local CPS in writing when return rights are forfeited. **(T-0)** Employees may not elect to forfeit return rights prior to expiration of return rights so they can register in PPP.

7.7. Requests for OTEX in Foreign Areas.

7.7.1. When granting OTEX for employees serving in foreign overseas areas whose employment is limited by the DoD rotation policy, Commander and approving officials must ensure OTEX comply with DoDI 1400.25, Volume 1230 and are approved by the appropriate delegated official. **(T-0)**

7.7.2. OTEX beyond the five years are designed to enable management to meet defined mission requirements and maintain readiness capabilities that cannot otherwise be met due to unavailability of suitable candidates. Extensions are never intended to allow employees to stay in the foreign area for indefinite periods of time. Employees do not have an inherent right to such extensions.

7.7.3. The 5-year overseas employment limitation policy does not guarantee any DAF employee a 5-year assignment overseas. Management is not required to extend an employee beyond the initial tour of duty and does not have to justify reasons for disapproving an employee's request for tour extension. Accordingly, both the employee and management must agree to any extension of foreign overseas tour. **(T-3)**

7.7.4. Extensions are granted on a case-by-case-basis. If an OTEX is granted, it will normally be a single extension beyond the 5-year limitation. The approving authority may grant extensions only for mission-related reasons and only if the employee demonstrates acceptable performance and possesses the required knowledge, skills, and abilities for the position. **(T-1)**

7.7.5. OTEX beyond the 5-year overseas limitation, will be initiated no later than 12 months before an employee's DEROS and will include a written business and readiness case analysis that articulates the mission-based reasoning for needing to retain the employee in the overseas area. **(T-3)** The business case will include the potential impact to the squadron, group, wing, MAJCOM/FLDCOM if the OTEX is disapproved, any recruitment challenges or difficulties, and a workforce succession plan for replacing the employee after the end of the overseas tour extension. **(T-3)**

7.8. OTEX Approval Authorities.

7.8.1. Short-Term OTEX for Centrally Managed and Non-Centrally Managed Positions. OTEX may be requested for extenuating and unforeseen circumstances (such as to allow children to complete the current school year, delay in receiving orders, processing visas, emergency family or medical issues). Employees may request a short-term overseas tour extension of 6 months or less beyond the initial 5-year foreign area limitation if the extension is advantageous to the Government, or for personal reasons based on substantial special need or hardship without loss of return rights.

7.8.1.1. The OCONUS servicing CPS must notify and coordinate with the CONUS CPS when short-term OTEX are being requested. **(T-3)** The OCONUS Installation Commander approves short-term overseas tour extensions. The CONUS installation commander approves short-term return rights where applicable. **(T-1) Note:** The approval authority for all FMS OCONUS direct case positions is the AFMC/IA. Approval of such OTEX will continue the position obligation (return rights) entitlement beyond the 5-year date for those with return rights to a DAF position. **(T-1)**

7.8.1.2. The CONUS servicing CPS will ensure the position obligation/return rights extensions are appropriately documented and the employee is notified of this return rights extension. For centrally managed positions, notification to the appropriate CFT is required for situational awareness. **(T-3)** Reference **Attachment 3**, **Figure A3.1** "Tour Extension Requests Beyond Initial Overseas Tour (Up to Five Years and Beyond Five Years, but Less Than 6 Months)" and **Figure A3.5** for the routing guidance.

7.8.2. OTEX Request up to Five Years.

7.8.2.1. OCONUS Installation Commanders are delegated the authority to approve extensions of an initial overseas tour up to a maximum of five years for all employees on centrally and non-centrally managed positions. This authority may be further delegated. For all centrally managed FMS OCONUS direct hire positions, AFMC/IA holds approval authority and must notify the appropriate CFT for situational awareness. **(T-2)** Any approved extensions up to five years remain in effect with movement of the employee on the installation where approval was granted. This approval authority does not apply to CSA funded positions, CSLP positions, CB, or KCP. The OTEX request must be coordinated and approved with the appropriate CSA, CSLP, CB or KCP CFT at AFPC. The final approval for extension will be approved in accordance with DAFMAN 36-142 and not the organization. **(T-1)**

7.8.2.2. For employees with return rights, the OCONUS servicing CPS will inform the CONUS owning CPS of the pending OTEX approval and final decision. **(T-2)** The CONUS owning CPS supporting the activity to which an employee has return rights and the OCONUS servicing CPS supporting the overseas activity, shall keep each other informed regarding any action that affects an employee's return rights. **(T-3)** Local commanders are responsible for ensuring workforce succession plans are properly developed and executed.

7.8.2.3. When an employee's initial or renewal tour, is not extended, submission of an RPA is required no later than 180 days prior to the expiration of the overseas tour, or as soon as an employee without return rights is selected or registered/placed through PPP or other means is highly encouraged to minimize mission gaps. **(T-1)** Reference **Attachment 3**, **Figure A3.1**, **and Figure A3.4** for the routing guidance**.**

7.8.3. OTEX Request Beyond Five Years (up to 7 years).

7.8.3.1. The authority to approve civilian OTEX requests for up to two years beyond 5-year overseas limitation is delegated to the OCONUS MAJCOM/FLDCOM deputy commander (or civilian equivalent) for positions that are not included in centrally managed developmental program portfolio (e.g., CB, CSLP, KCP, Palace Acquire (PAQ), etc.). **(T-2**) The authority may be further delegated, in writing.

7.8.3.2. For Centrally-Managed Positions: When a position is coded as centrally managed and not in one of the centrally-managed programs, the requestor must provide notification to the owning 2-digit MAJCOM/FLDCOM Functional Manager (FM), MAJCOM/A1K or FLDCOM/S1C, CFT, CFM prior to submitting the OTEX request to the delegated official for final decision as outlined in **Attachment 3**, **Figure A3.2**, "Tour Extension Requests Beyond Initial Overseas Tour (5 Years to 7 Years)" and **Figure A3.6**. CSA funded positions, CSLP positions, CB, or KCP, OTEX requests must be coordinated and approved with the appropriate CSA, CSLP, CB or KCP CFT at AFPC.

7.8.3.3. CFTs and managers are a critical part of the extension process and should provide their recommendation from a force development perspective. The functional perspective is unique and provides an important data point in the decision-making process from a force management perspective. A functional analysis should be provided from a "develop the force posture," to prevent stagnation and minimize loss of return rights, whether a concur or non-concur is received from the CFM. Ultimately, coordination should be viewed with emphasis on returning employees within the 5 years, in accordance with DoDI 1400.25, Volume 1230. Reference **Attachment 3, Figure A3.2**, and **Figure A3.6** for the routing guidance

7.8.3.4. The installation's servicing CPS must coordinate all OTEX requests no later than 12 months before an employee's DEROS. **(T-2)** When applicable, the OCONUS servicing CPS must advise and coordinate any request for OTEX with their respective MAJCOM/FLDCOM, 2-digit FM and the servicing CONUS CPS. **(T-2)**

7.8.3.5. The OTEX request package must include the local installation commander's (or civilian equivalent) detailed workforce succession plan to prevent subsequent extensions. **(T-3)** For employees in centrally managed positions seeking extensions beyond five years, OTEX requests must include MAJCOM/FLDCOM and 2-digit FM recommendations, along with the FM's force development perspective. **(T-3)** The succession plan should address potential impacts to mission provided from a develop the force posture and to prevent stagnation, recommended courses of action for backfilling the position, and plan to return the employee CONUS at the end of the extension. Renewal tour agreement extensions after five continuous years overseas may not exceed two years. **(T-1)**

7.8.4. When adequate PCS funds are not available, notification to the servicing CONUS CPS must occur and the employee must remain in the overseas area until funds become available. The gaining CONUS MAJCOM/FLDCOM, 2-digit FM may approve a one year or less extension in coordination with the losing OCONUS MAJCOM/FLDCOM, to allow time to resolve PCS funding issues. This authority may not be further delegated and only one extension per employee is allowed under this provision. **(T-1)** A business case analysis is not required. Reference **Attachment 3**, **Figure A3.3** "Tour Extension Requests Beyond Initial Overseas Tour (Inadequate PCS Funds)" and **Figure A3.7** for routing guidance.

7.8.5. OTEX Request at 7 Years and Beyond.

7.8.5.1. The authority to approve OTEX request at 7 years and beyond is delegated to the OCONUS MAJCOM/FLDCOM deputy commander for positions that are not included in centrally managed developmental program portfolio (e.g., CB, CSLP, KCP, PAQ, ETC.). The delegating official may further delegate this authority in writing. **(T-2**)

7.8.5.2. For Centrally-Managed Positions: The OTEX request must be coordinated with the owning MAJCOM/FLDCOM CFM, MAJCOM/FLDCOM, A1K, S1C, CFT, CFM, and AFPC/DPCZ prior to submitting to the OCONUS MAJCOM Deputy Commander for final decision.

7.8.5.3. An OTEX for an employee beyond 7 years should be rare and only for specific mission requirements and not for individual convenience. The installation's servicing CPS must coordinate all OTEX requests no later than 12 months before an employee's DEROS. **(T-2)** If the MAJCOM/FLDCOM Deputy Commander disagrees with the decision from the CFM for centrally managed positions, then the MAJCOM Commander will serve as the final deciding official. **(T-2)** Reference **Attachment 3**, **Figure A3.4** "Tour Extension Requests beyond Initial Overseas Tour (7 years and beyond)" and **Figure A3.8** for routing guidance.

7.8.5.4. OTEX request for both centrally managed and non-centrally managed positions must include the following justification:

7.8.5.4.1. A timeline detailing previous recruitment efforts. **(T-2)**

7.8.5.4.2. An updated written business case analysis describing the mission critical need for the extension. **(T-3)**

7.8.5.4.3. An explanation of the unanticipated events or circumstances that caused the previous workforce succession plans not to succeed and why it cannot be accomplished in the next 6 months**. (T-3)**

7.8.5.4.4. A revised and enhanced workforce succession plan addressing the identified gaps of the previous approaches for filling the position that includes a RPA that was submitted 180 days prior to the employee's DEROS or the renewal tour agreement. **(T-3)**

7.8.5.4.5. A plan to return the employee at the end of the extension. **(T-3)**

7.8.6. Authority to Approve Shorter Period of Physical Presence in the U.S. and the Impact to the Service Agreement in accordance with DoDI 1400.25, Volume 1230 and DAF Centrally Managed CONUS Employment Agreement.

7.8.6.1. The gaining OCONUS MAJCOM/FLDCOM will be responsible for waiver approval and funding of the PCS move for employees serving a period of less than 2 years. For candidates selected for OCONUS positions not within DAF(e.g., Defense Logistics Agency, Army, Navy, etc.) approval of the 2-year physical presence requirement defers to the employee's owning CONUS command or non-foreign area MAJCOM/FLDCOM or equivalent.

7.8.6.2. The gaining OCONUS MAJCOM/FLDCOM deputy commander (CONUS/non-foreign area) or equivalent may approve and fund a PCS for an employee who serves less than the required two years without an acceptable release reason per the DAF Employment Agreement. **(T-2)**. Further restrictions regarding eligibility for a subsequent centrally funded PCS may be applicable in accordance with DAFMAN 36-142. **(T-1)**

7.8.6.3. MAJCOM approved waiver moves are funded from MAJCOM/FLDCOM budgets. This authority may not be further delegated. **(T-2)**

7.8.6.4. Employees must complete their overseas tour agreement in order to be eligible for a paid PCS return to CONUS, unless released in accordance with the provisions in the JTR, Chapter 5, paragraph 054912 and DAFMAN 36-142, for centrally managed positions.

7.8.6.5. Employees should be advised of approval of shorter period of physical presence in the U.S. and the Impact to Service Agreement.

7.8.7. The JTR restricts any employee who is serving under a service agreement due to a government sponsored PCS move from a second PCS move within a 12-month period, unless:

7.8.7.1. Employee (or re-employed former employee) is affected by RIF/transfer of function.

7.8.7.2. Employee has a move in connection with a DoD Component-directed placement.

7.8.7.3. Employee moves from actual residence to a new permanent duty station (PDS) after exercising return transportation rights from an OCONUS PDS under an OCONUS tour agreement, provided the employee was not furnished PCS allowances Temporary Quarters Subsistence Expenses & Miscellaneous Expense Allowance in connection with the return to the actual residence.

7.8.8. The DAF requires a minimum 48-month tour length in CONUS for centrally managed positions and completion of the applicable OCONUS tour length before a second DAF paid PCS will be funded, unless a waiver is submitted and approved. **(T-1)**

7.8.9. An approved waiver releases the employee from all financial liabilities associated with failure to complete the service agreement (DD Form 1618, *Department of Defense (DOD) Transportation Agreement: Transfer of Civilian Employees to and Within Continental United States (CONUS*)).

7.8.10. If a waiver is not approved and the employee fails to complete the terms of the service agreement, the employee will be in violation of the agreement (JTR, Chapter 5, paragraph 054912). The employee must reimburse the government the costs paid for relocation expenses based on that service agreement and is not eligible for subsequent travel and transportation allowances. **(T-3)**

7.8.11. The DAF Employment Agreements.

7.8.11.1. CONUS employees in centrally managed (CM) positions selected for an OCONUS CM or non-CM position who have not fulfilled the applicable DAF CONUS Employment Agreement must meet the requirements of DAFMAN 36-142 waiver procedure. **(T-1)** If the gaining OCONUS supervisor selects an employee under such restriction, the supervisor, not the employee, must provide sufficient justification to support a waiver request for another paid PCS move prior to the completion of the DAF CONUS Employment Agreement. **(T-3)** Gaining OCONUS management should determine if the proposed transfer is in the Government's interest; an equally qualified employee is not available within the commuting area of the activity concerned; the losing activity agrees to release the employee; the need to select the employee outweighs the additional cost of a second PCS before completion of the DAF CONUS Employment Agreement; and sufficient efforts were made to locate a candidate from the position who would not require a waiver. The gaining OCONUS must fund the move. **(T-3)** The waiver request must be submitted to the selectee's losing commander for awareness. **(T-3)**

7.8.11.2. Candidates who are physically in the U.S. and were selected from a "certificate of eligibles" to fill foreign OCONUS vacancies must meet the 2-year physical U.S. presence requirement if the 5-year overseas limit has been reached. **(T-2)**

7.8.11.3. OCONUS employees in CM positions selected for a CONUS CM or non-CM position who have not fulfilled the applicable OCONUS Service Agreement (DD Form 1617) tour of duty must obtain a tour curtailment waiver from AFPC/DP2Z. **(T-0)** Tour curtailment approval may result in another paid PCS or no paid PCS (i.e., a release from OCONUS tour). **(T-1)** Prior to a curtailment waiver request submission, management should determine if:

7.8.11.3.1. An exception is required for the OCONUS Service Agreement tour length. **Note:** This would not require a waiver.

7.8.11.3.2. The employee was selected for transfer to another DoD Component or non-DoD agency after initial 12-month time on station. **Note:** The gaining organization funds the transfer.

7.8.11.3.3. The employee was separated as a result of RIF.

7.8.11.3.4. The employee was called to active duty or enlistment in the Armed Forces.

7.8.11.3.5. The employee participating in a centrally funded civilian development programs where PCS is required as part of the program, provided the employee has met the minimum 12 months of the JTR requirement and transportation agreement.

7.8.11.3.6. The employee was released for the government's convenience (e.g., separation because of physical/mental disqualification, lack of skill to perform duties for which recruited or any other duties to which the employee could be assigned). **Note:** An employee cannot be separated for the government's convenience because of illness induced by misconduct or because of misconduct.

7.8.11.3.7. The employee requested tour curtailment for humanitarian reasons. Management must receive verification of the nature and extent of the "unforeseen emergency" or "extreme personal hardship" from a reliable and trustworthy source such as private, state, or local welfare agencies; an attending physician; or a legally binding document. **T-0**

Chapter 8

OVERSEAS EMPLOYMENT AGREEMENTS

8.1. General Information.

8.1.1. DoDI 1400.25, Volume 1230 established the DoD rotation policy for employees assigned to positions in the competitive service in the foreign overseas areas within the DoD. This rotation policy limits authorized foreign area employment to five years unless an exemption or extension is granted. **(T-1)** The DAF requires a minimum 48-month tour length for employees in CONUS centrally managed positions before being eligible for another DAF-funded PCS.

8.1.2. The gaining CPS, in conjunction with the losing CPS, must ensure the candidate signs the appropriate Overseas Employment Agreement upon appointment, assignment, or conversion to an appropriated fund position. This requirement applies to assignments:

8.1.2.1. From CONUS to a non-foreign OCONUS area (e.g., Alaska, Hawaii, or U.S. territories and possessions);

8.1.2.2. From a non-foreign area to a foreign area; or

8.1.2.3. Between foreign areas.

8.1.2.4. The Overseas Employment Agreement establishes the specific conditions and entitlements related to the assignment. **(T-3)** This agreement is mandatory regardless of whether the position is subject to the rotation policy, and regardless of whether the relocation is funded via government PCS or at the employee's personal expense. To document the employee's understanding of the overseas rotation requirement, the CPS must file the executed agreement in the employee's electronic Official Personnel Folder. **(T-3)**

8.1.3. The Overseas Employment Agreement established at the time of hire is binding and cannot be unilaterally amended **(T-1)**. It governs the employee under the following conditions:

8.1.3.1. Change in Status and DEROS Adjustments: If a self-sponsored employee's status changes (e.g., marriage to a military member), management may approve a DEROS adjustment to align with the spouse's PCS date. The employee remains subject to transfer and is not guaranteed a DEROS adjustment based solely on the spouse's tour extension.

8.1.3.2. Transfers Between OCONUS Locations: The original agreement remains in full effect when an employee transfers between overseas locations.

8.1.3.3. Requirement for a New Agreement: A new agreement must be executed only upon a qualifying change in status, such as when a career or career-conditional family member loses dependent status and becomes self-sponsored.

8.1.4. An employee is not exempt from the rotation policy due to a failure to sign the Overseas Employment Agreement or a failure by the CPS to provide the appropriate document. If an agreement was not signed at the time of appointment or conversion, the CPS must notify the employee in writing of the rotation requirements and their obligation to return to the U.S. upon completion of their authorized foreign area service. **(T-1)**

8.1.5. The CPS must utilize the specific Overseas Employment Agreements found in **Attachment 4**, Figures **A4.1** through **A4.13**, when employees are appointed, assigned, or converted to OCONUS positions. **(T-1)**

8.1.6. The CPS must coordinate with the servicing labor-management and employee relations office to develop and finalize any location-specific OCONUS agreements before they are implemented. Additionally, personnel shall consult the "Terms and Definitions"' section of this manual to verify classifications for foreign or non-foreign areas.

Chapter 9

MEDICAL STANDARDS AND PHYSICAL REQUIREMENTS

9.1. Medical Standards and Physical Requirements.

9.1.1. Individuals assigned overseas—including those assigned through a position change or transfer—must meet the physical and medical requirements of their respective positions. Selectees and current employees must be able to perform the essential functions of their roles, with or without reasonable accommodation. **(T-2)**

9.1.2. Physical requirements for positions in foreign areas are subject to the same medical standards as similar positions within the U.S. When evaluating potential undue hardship, management must consider both the nature of the requested accommodation and the specific location of the position. For further guidance on disability-related reasonable accommodations, refer to DAFI 36-2710, *Equal Opportunity Program*.

9.1.3. Tentatively selected candidates for positions with physical requirements must undergo a physical examination. This evaluation must be completed on the Standard Form 78, *Certificate of Medical Examination*, by an authorized Federal medical officer. **(T-1)**

9.1.4. To ensure selectees can determine if an OCONUS assignment is suitable for their dependents, the CPS must provide detailed guidance on available overseas resources. For selectees with special-needs family members, this package must include the provisions of DoDI 1342.12, *Provision of Early Intervention and Special Education Services to Eligible DoD Dependents* and DoDI 1315.19, *Exceptional Family Member Program*.

9.1.5. Medical examinations revealing that the selectee does not meet the minimal medical functional physical requirement necessary to successfully perform the duties of the position for which they are being considered, should be documented on the appropriate form by the medical official performing the evaluation.

9.1.6. Any limiting physical condition(s), or any condition(s) requiring continuous medical care require the medical officer to forward supporting documentation to the CPS or appropriate official for review and decision on whether the selectee can successfully perform the duties of the position.

9.2. Available Medical Care in the Foreign Area.

9.2.1. Selectees will be informed on the availability of medical and dental care within the local commuting area for which they were selected. Employees are to complete the statement of understanding and to make an informed decision whether to continue with their move to the foreign area. **(T-3)**

9.2.2. Selectees with limiting physical conditions requiring a reasonable accommodation may submit their request orally or in writing at any time. The request may be presented to their immediate supervisor, any supervisor or manager in their chain of command, the installation Disability Program Manager, or any agency representative involved in the application process—such as the CPS. For detailed procedures on processing these requests, refer to DAFI 36-2711, *Equal Employment Opportunity: Affirmative Employment and Disability Programs*. **(T-0)**

9.2.3. If the selectee has a medical condition that needs continuous monitoring or periodic treatment, the selectee will be provided with comprehensive medical information about care in the overseas community where the position is located, to help the selectee make an informed choice about accepting the position. **(T-1)**

9.2.4. The non-availability of health-care providers, medical facilities, medications and treatments are important considerations for the selectee to consider in determining whether to accept an overseas assignment.

9.2.5. For tour curtailment due to preexisting medical conditions or new medical diagnosis, employees are required to provide written justification with supporting documentation (from an attending physician) to the local CPS. **(T-3)** The CPS will route the request for tour curtailment to the appropriate approving official established at the time of hiring. Tour curtailment may be granted in accordance with (IAW) JTR, Chapter 5, paragraph 054912.

9.3. Evaluating Special Needs of Family Members.

9.3.1. Employee's family members with medical, educational, or other special needs that may require accommodation will be requested through the DoDI 1315.19, Section 11, EFMP process. **(T-3)**

9.3.2. Prior to finalizing any selection involving a PCS move to an overseas location, the gaining CPS must engage the tentative selectee regarding family member care requirements. The CPS will evaluate the availability of local facilities and services against any identified special needs. In accordance with DoDI 1315.19, tentative selectees are responsible for providing all relevant information and documentation concerning any medical, educational, or other special needs of their family members that may require accommodation at the overseas location.

9.3.3. The overseas gaining CPS should address correspondence concern (s) in writing to allow tentative selectees to make informed decisions regarding the needs and well-being of their family members.

9.4. Inadequate Medical Facilities.

9.4.1. Employees requesting tour curtailment due to a lack of adequate facilities or services to support a family member with special needs, should obtain supporting documentation from the attending provider.

9.4.2. The supporting documentation should show evidence of the lack of adequate facilities or non-availability of service at the OCONUS location. Employees are required to provide written justification with supporting documentation (from an attending physician) to the local OCONUS CPS for all tour curtailment requests.

9.4.3. The CPS will route the request to the appropriate approving official. **(T-3)** Tour curtailment may be granted IAW JTR, Chapter 5, paragraph 054912.

9.5. Adequacy of Medical Facilities and Services.

9.5.1. When determining the number and type of U.S. civilian employees needed to support overseas areas, commanders must ensure that essential facilities and services are available. These include adequate housing, subsistence, medical care, commissary, exchange, laundry, and transportation. Except during emergency conditions, an overseas command may not initiate recruitment from the CONUS unless the command or the local community can provide these essential services. **(T-0)**

9.5.2. Specifically, if U.S. civilian employees are restricted from using local community services, or if appropriate and adequate facilities do not exist in the local area, the overseas command itself must be able to provide these essential services before recruitment can proceed.

Chapter 10

RETURN RIGHTS

10.1. General Information.

10.1.1. Employees serving under a career or career-conditional appointment in the competitive service, recruited from a non-foreign overseas area for assignment outside the continental U.S. (including Alaska and Hawaii) are granted statutory return rights in accordance with DoDI 1400.25, Volume 1230, paragraph 4.i and **Enclosure 3** as actual resident of the nonforeign area. **(T-0)**

10.1.2. Statutory return rights are granted for a period of five years.

10.1.3. Annually, MAJCOM/A1/FLDCOM/S1 directorates must submit a report detailing all civilian employees whose overseas tours exceed five years, utilizing the Business Objects report (Overseas Employees) located in the Corporate Documents library. The report must detail the justification for exceeding the 5-year limitation and include a comprehensive workforce succession plan to prevent further extensions. **(T-1)**

10.1.4. This report is due on 1 October of each year to the AFPC Directorate of Personnel Programs, Policy and Operations, and to the Deputy Chief of Staff for Manpower, Personnel and Services, Civilian Force Management Directorate (AF/A1C). AF/A1C will provide the reporting template for MAJCOMs, while SF/S1C will provide the template for FLDCOMs.

10.1.5. The MAJCOM/FLDCOM will report the PPP status of all civilian employees that are beyond 6 months of their original DEROS and the actions being taken by the Command and employee to secure CONUS or non-foreign placement.

10.2. When Return Rights are Authorized.

10.2.1. Return rights are granted to DAF employees serving under career or career-conditional appointments in the competitive service, under the following circumstances:

10.2.2. Employees recruited from the 50 States and the District of Columbia that accepts an assignment with DAF or DoD as identified in **paragraph 10.4.1** in foreign overseas areas.

10.2.3. Employees recruited from Guam, the Virgin Islands, or the Commonwealth of Puerto Rico for assignment with the DAF or DoD in a foreign overseas area or a U.S. territory or possession.

10.2.4. Employees residing in Guam, who accept either a foreign overseas assignment or an assignment to Alaska or Hawaii, will have return rights to Guam provided the employee is a resident of Guam. Employees in Guam serving on an Overseas Employment Agreement with return rights to a position in the U.S., will continue having return rights to the position in the U.S. for remainder of the five years. **(T-0)**

10.2.5. Statutory return rights are forfeited unless the employee's original U.S. activity grants administrative return rights beyond the 5-year limit. If an employee has already completed five years in a foreign area, they will not be granted return rights upon a subsequent assignment to a foreign duty station. **(T-0)**

10.2.6. Employees recruited from Alaska, Hawaii, Guam, or non-foreign overseas areas for OCONUS assignments may not be granted statutory return rights, if they are not an actual resident of those areas as defined in Appendix A, Part 1 of the JTR, or if they have existing return rights elsewhere. **(T-0)**

10.2.7. Employees accepting overseas Special Investigations positions will have return placement under their mobility agreements. Special Investigation positions will have return placement centrally managed by Headquarters AF Office of Special Investigations in coordination with the Special Investigations CFT.

10.2.8. Auditors will have their return placement managed by the AF Audit Agency in coordination with the Audit CFT and the signed mobility agreement.

10.2.9. Defense Civilian Intelligence Personnel System (DCIPS) employees accepting an overseas position are entitled to return placement procedures in accordance with DoDI 1400.25, Volume 2005, *DoD Civilian Personnel Management System: Defense Civilian Intelligence System (DCIPS) Employment and Placement.* Cyber Excepted Service (CES) employees accepting an overseas position are entitled to administrative return rights in accordance with DAFI 36-141, *Cyber Excepted Service (CES).*

10.2.10. Exceptions. The following employees are not granted return rights:

10.2.10.1. Employees assigned to or from a position in the Senior Executive Service. **(T-2)**

10.2.10.2. Employees whose employment will be terminated, voluntarily or involuntarily. **(T-2)**

10.2.10.3. Employees who have declined functional transfer and have not been assigned to another position. **(T-2)**

10.2.10.4. Employees who are serving in a non-foreign overseas area with an identified place of residence outside that area to which return travel is authorized, or for whom return travel entitlement will accrue on completion of an agreed upon period of overseas service. **(T-2)**

10.2.10.5. Employees assigned in a position identified for return (obligation) of another employee previously assigned overseas (obligated position). **(T-2)**

10.3. Administering Return Rights.

10.3.1. Procedures for exercising overseas return rights are outlined in **paragraph 10.7**, with additional requirements for centrally managed positions specified in DAFMAN 36-142.

10.3.2. A short-term extension of 180 days or less beyond the 5-year limit may be granted due to unforeseen circumstances (e.g., delays in receiving travel orders or visa processing, or emergency family and medical issues). During an authorized short-term extension, the employee's return rights will remain in effect, provided those rights are to a DAF position.

10.3.3. The DAF CONUS organization where the return rights are held must formally agree to the short-term extension. Following coordination, the CONUS CPS will notify the employee in writing regarding the approval or disapproval of the extension.

10.3.4. If a long-term extension beyond the 5-year limitation is disapproved, the employee's return rights are forfeited for the duration of that extended period. Return rights not exercised by the end of the 5-year period will be forfeited, and subsequent placement will be processed in accordance with the DoD PPP Handbook. **(T-0)**

10.3.5. The servicing CONUS CPS must notify the employee in writing if their return rights have been forfeited. **(T-3)**

10.3.6. An employee may exercise return rights after completing their initial tour of duty. However, initial OCONUS tours must be completed prior to a government-funded PCS return to the CONUS, unless the employee is released early in accordance with JTR Chapter 5, paragraph 054912, *Acceptable Reasons for Release from a Tour of Duty* **https://www.defensetravel.dod.mil/Docs/perdiem/JTR.pdf**. **(T-0)**

10.3.7. An employee's failure or refusal to exercise return rights, register in the PPP, or accept a valid job offer constitutes a basis for separation due to non-compliance with the signed Overseas Employment Agreement. **(T-3)**

10.3.8. The OCONUS installation commander or equivalent may grant one short-term extension (up to 6 months) beyond the initial 5-year period, if advantageous to the Government or based on special needs or hardship. This approval authority may not be further delegated. The CONUS activity to which return rights have been granted must be notified by the servicing overseas CPS, in writing, of the short-term return rights extension. **(T-3)**

10.3.9. Installation commanders at overseas locations may require an employee to exercise return rights at any time during the OCONUS assignment to avoid or reduce the effect of a RIF.

10.3.10. An employee completing one or more tours will exercise return rights when the position to which they have return rights is abolished.

10.3.11. The CONUS and OCONUS CPS shall keep each other informed regarding any action that affects an employee's return rights. Employees will be given written notification in a timely manner when the position to which they have return rights is changed, moved, or abolished; or when an extension of the overseas tour and/or return rights is approved or disapproved. **(T-3)** 10.3.12. Unless the activity where return rights exist, formally agree to grant the employee administrative return rights beyond five years, the return rights shall be forfeited if not exercised prior to expiration of tour (i.e., if short-term extension is not previously approved). **(T-3)**

10.4. Granting Return Rights Within DoD.

10.4.1. Career and career-conditional employees in the competitive service who are employed in the U.S. or in a non-foreign area and who accept an assignment in a foreign area or in a non-foreign area different from the one in which they are currently employed shall be granted return rights for a period of five years in accordance with DoDI 1400.25, Volume 1230, if continuously employed in a foreign or non-foreign area. **(T-0)** The losing CPS must obligate the position for return of the employee, unless return rights cannot be granted in accordance with this manual. **(T-3)**

10.4.2. Return rights apply to both the initial movement and any subsequent movement within the 5-year period (for example: the employee initially moves to a position with the same DoD Component, and subsequently moves to another foreign area position with a different DoD Component). These return rights shall continue for the duration of the 5-year period. **(T-0)**

10.4.3. A CONUS organization may grant administrative return rights that do not meet the parameters of **paragraph 10.4.1**. or **paragraph 10.4.2** above (for example: Excepted Service positions).

10.4.4. The CONUS and OCONUS activities must coordinate overseas tour extensions beyond the 5-year limit. The organization where the employee holds statutory return rights must approve these extensions in writing. **(T-3)** If administrative return rights are not granted for the period of the extension, return rights will be forfeited. If return rights are forfeited, return placement will be in accordance with the applicable provisions of the DoD PPP Handbook. **(T-0)** Refer to **Figure 10.1.**.

Figure 10.1. Applicability of 5-Year Foreign Area Limit and Return Rights.

Employee Is Assigned		5 Year Foreign Area Limit Applies		Return Rights Applies. See notes: 1,2	
From	To	Yes	No	Yes	No
Continental United States	Foreign Area	X		X	
	Alaska/Guam/ Hawaii		X	X	
Alaska/Guam/Hawaii	Foreign Area	X		X	
Alaska	Guam or Hawaii		X	X	
Guam	Alaska or Hawaii		X	X	
Hawaii	Alaska/Guam		X	X	

NOTES:

1. Career and career-conditional employees in the competitive service who are employed in the United States or in a non-foreign area and who accept an assignment with the Air Force or Department of Defense outside the United States or in Alaska, Hawaii, or Guam are granted statutory return rights for a period of 5 years only if he or she is an actual resident of the non-foreign area as defined in Appendix a of the Joint Travel Regulation.

2. While employed in Alaska, Hawaii, or Guam if an employee is on an Overseas Employment Agreement with return rights to a base in the CONUS, those return rights will be retained for 5 years, even if the employee accepts a foreign area assignment. After that, return rights are forfeited, unless the base in the United States base extends the return rights. Example: An employee with return rights to Wright-Patterson Air Force Base, Ohio goes on a PCS move to Alaska and is subsequently selected for a position in Japan. If at the time of selection the employee had completed 3 of the 5-year period (to retain the return rights entitlement to Wright Patterson), the employee will retain those return rights to Wright Patterson for the remainder of the 5 year return rights obligation.

10.5. Conditions Under Which Return Rights Are Lost. Return rights are terminated under the following circumstances:

10.5.1. Resignation.

10.5.2. Separation for cause.

10.5.3. Assignment to another DoD activity in CONUS.

10.5.4. Transfer to any agency outside DoD.

10.5.5. Failure to accept the position to which return rights apply.

10.6. Return Rights for Former Participants of the Centrally Managed Force Renewal Intern and Leadership Development Programs.

10.6.1. Career and career-conditional employees selected for an overseas assignment directly from a centrally managed CSA-funded Force Renewal Intern (Palace Acquire, Copper Cap, Pathways Intern, Post-Secondary Student, Recent Graduate Direct Hire Authority) or Leadership Development Program (Career Broadener, Key Career Position, Civilian Developmental, CSLP) position will have return placement under their mobility agreement and the primary method of return. CFT coordination begins 9-12 months before the end of the overseas tour. Upon departure, CSA-funded positions are canceled and return entitlement is managed in accordance with DAFMAN 36-142. Return placement will be accomplished under the conditions set forth under their mobility agreement. **(T-3)** These agreements apply to those situations where there is not an obligated position at the location from which recruited, after completion of the overseas assignment. Those who are not actual residents should sign the Overseas Employment Agreement without Return Rights to Current Position at **Attachment 4** and **Figure A4.12**. Any employee failing to request and accept return assignment under the conditions of the return rights agreement may face separation from DAF employment.

10.6.2. Assignment after completion of an overseas tour is normally accomplished through exercise of return rights or through the DoD PPP. However, management directed reassignment or placement through competitive merit promotion procedures may also be used in facilitating placements. If a management directed reassignment is the option used for placement, efforts will be made to accommodate employee's personal geographic preferences where possible, in the interest of DAF mission requirements. **(T-3)**

10.6.3. When placement is not possible under the mobility agreement, return rights will be exercised as outlined in **paragraph 10.7**. Employees must request to exercise their return rights, when completing an overseas tour, by notifying the servicing CONUS CPS at least 6 months in advance of the employee's DEROS. **(T-3**) If an appropriate vacancy is available at the activity from which the employee was recruited for the overseas assignment, the gaining and losing CPS and AFPC will coordinate the placement of the employee to the position. If no appropriate vacancy exists at the activity from which the employee was recruited, the employee will be returned to an established position (for at least 90 days) at the same grade level or pay band equivalent to the position the employee held prior to the assignment. After 90 days if no suitable vacancy exists, assignment rights will be determined by RIF procedures. The 90-day period and the required RIF notice period may run concurrently. Employees are eligible to register in the DoD PPP when notified their return would result in a RIF situation. Career Broadeners or interns selected from Alaska, Hawaii, or Guam for overseas assignment who are not actual residents of those locations must register in the DoD PPP at least 6 months prior to completing an overseas tour when requesting return assignment to the U.S. **(T-0)**

10.6.4. The CFT and gaining MAJCOM/FLDCOMs should both take an active role in the assignment process. At least 6 months before the end of the overseas tour, the OCONUS CPS will notify AFPC and the MAJCOM/A1K or FLDCOM/S1C of the employee's interest in exercising return rights as well as any other geographic and assignment preferences of the employee. For employees occupying centrally managed positions, the appropriate CFT Manager will assess other projected vacancies within the career field and recommend a management-directed reassignment to the vacancy. The gaining MAJCOM/A1K, FLDCOM/S1C and servicing MAJCOM/FLDCOM FM have a comparable role for non-centrally managed positions and should take a proactive approach in identifying vacancies for placement.

10.6.5. Career or career-conditional former KCP members vacate their KCP when selected for overseas assignments based on the their KCP memorandum of agreement. However, because they vacate their KCP upon their departure and their return entitlement is managed in accordance with **paragraph 10.6**and the above, these employees must sign the Overseas Employment Agreement without Return Rights to Current Position at **Attachment 4** and **Figure A4.10**. **to Figure A4.13**, whichever is applicable. **(T-3)** These agreements apply to those situations where there is not an obligated position at the location from which recruited, after completion of the overseas assignment. Those who are not actual residents should sign the Overseas Employment Agreement without Return Rights to Current Position at **Attachment 4** and **Figure A4.12**. Any employee failing to request and accept return assignment under the conditions of the return rights agreement may face separation from DAF employment.

10.7. Procedures for Effecting Overseas Return Rights.

10.7.1. DoDI 1400.25, Volume 1230, provides return rights to employees on Career or Career-Conditional appointments in the competitive service who have accepted a position in the overseas area. It outlines actions and responsibilities of the releasing activity, the overseas employing activity, and the employee entitled to return rights. It covers procedures for identifying a position to which an employee has return rights, maintaining the return rights obligation, and effecting placement of an employee who applies to exercise those rights or whose return is management-initiated.

10.7.2. Action Required at the Time the Employee Leaves for Overseas Duty:

10.7.2.1. Identifying the vacated position. To comply with requirements for the return of assigned employees, the releasing activity must identify the position to which return rights apply and notify the servicing classification authority to update the position obligation in the Defense Civilian Personnel Data System, if assigned to an overseas DAF activity. **(T-1)**

10.7.2.2. Maintenance of Records. The releasing activity should establish and maintain an individual folder for each employee granted return rights The folder should include:

10.7.2.2.1. Copy of the SF50.

10.7.2.2.2. Copy of the Overseas Employment Agreement.

10.7.2.2.3. Copy of the Core Document or position description to which the employee has return rights.

10.7.2.2.4. Copy of the DD Form 1617.

10.7.2.2.5. Any document which affects return rights, such as RPA, changing the classification of, or abolishing the position; and copies of any correspondence between the activity which granted return rights and the activity to which assigned.

10.7.2.2.6. Any other document or item determined to be of benefit in assuring the employee's entitlement to return placement is honored.

10.7.3. Action on the Return Obligation.

10.7.3.1. Filling a position with a return rights obligation. Before placement, the agency must advise the selectee in writing that the position is "obligated to the former employee" and explain how the former employee's return may affect their assignment to that position. **(T-2)**

10.7.3.2. Maintaining the return rights obligation identified with a position. The position's return obligation must remain in effect for the duration of the return rights, regardless of any changes in command authority over the position. **(T-3)** The following requirements are observed in order to maintain the return rights as changes occur to the position:

10.7.3.2.1. Transfer of Function. The returns obligation is transferred with the position in a transfer of function between DoD activities when the position is identifiable as appearing at the new location. It may appear as a vacancy or by movement of the present incumbent with the position. If the position cannot be identified, and the functional transfer offer to the present incumbent is to a different position, the return obligation is transferred to the gaining activity and the procedures of **paragraph 10.7.3.3**. Appropriate documentation will be made part of the record folder established in accordance with **paragraph 10.7.2.2**.

10.7.3.2.2. Re-Classified Position. The obligation remains with the position when it is upgraded or downgraded without significant change in duties and responsibilities because of classification error or change in classification standards; or due to accretion of duties when there is clear evidence that the new position is a successor position that absorbed the major duties of the former position and, had the overseas employee not accepted the overseas assignment, could have been non-competitively placed in the position.

10.7.3.2.3. If a position with an attached return obligation is cancelled or restructured, a record of this action must be placed in the employee's folder, as described **in paragraph 10.7.2.2**. An employee does not lose their return rights if their original position is cancelled. The agency will not transfer the return obligation to a different position. Instead, the DAF will retain the obligation associated with the original position until the employee is scheduled to exercise their return rights. **(T-3)** At that time, the position the employee is entitled to will be determined in accordance with **paragraph 10.7.5**. If the original position is later re-established, the return obligation must be immediately re-attached to it.

10.7.3.2.4. Termination of the Activity. Unless paragraph **10.7.3.2.1**, **10.7.3.2.2**, or **10.7.3.2.3,** are applicable, the return rights obligation is transferred to a DAF activity in the commuting area. The return obligation will not be identified with a specific position at the activity to which it is transferred until the employee is scheduled to exercise those rights. If there are no DAF activities in the commuting area, the MAJCOM/FLDCOM that had jurisdiction over the activity the employee left for the overseas assignment will assume the return obligation.

10.7.3.3. Notification Requirements. When a return obligation is transferred under **paragraph 10.7.3.2.1**. or **paragraph 10.7.3.2.4**, both the gaining activity and the OCONUS activity to which the employee is assigned will be officially notified. When the return rights position is changed under **paragraph 10.7.3.2.2**. or **paragraph 10.7.3.2.3** above, the OCONUS activity will be notified.

10.7.4. Actions by the CONUS/OCONUS Activity.

10.7.4.1. The CPS servicing the OCONUS activity maintains a record of each newly assigned employee to identify those who have been granted return rights. These records are used to advise each employee of their eligibility to exercise those rights 9-months prior to completion of a period of their service agreement or prior to completion of the 5-year foreign area limit. **(T-3)** The content of the notice to the employee will vary depending on the individual circumstances involved.

10.7.4.2. The OCONUS CPS will advise the CONUS CPS which granted return rights:

10.7.4.2.1. If the employee is assigned to another DoD activity overseas. **Note:** The OCONUS CPS will provide a copy of the SF 50 to the CONUS CPS.

10.7.4.2.2. Of any approved extensions.

10.7.4.2.3. Of any requested extensions beyond five years in order to determine if return rights will be preserved.

10.7.4.2.4. Of any decision by the employee to remain OCONUS without an approved extension of return rights.

10.7.4.2.5. Of any action identified in **paragraph 10.5**, that terminates return rights.

10.7.5. Position Entitlements. An employee granted return rights is entitled to a position at the activity to which return rights apply in the following order:

10.7.5.1. The position last held prior to assignment overseas. A vacant position at the same grade or pay band equivalent for which qualified may be offered; however, the employee may decline that alternate assignment and elect to return to their former position if it still exists.

10.7.5.2. If the former position does not exist, the employee is entitled to a vacant position for which qualified, at the same grade level or pay band equivalent as the former position.

10.7.5.3. If placement cannot be made under **paragraph 10.7.5.1**. or **paragraph 10.7.5.2**, a position is established for 90 calendar days at the same grade level or pay band equivalent and in the same competitive level of the position held before assignment overseas. The employee is assigned to that position. During the 90 calendar days, the employee is entitled to a vacant DAF position for which qualified within the commuting area, which may become available at the current grade or pay band. If a vacant position does not become available, the employee is entitled to the best position that can be offered under RIF procedures. The 90-day period and the required RIF notice period may run concurrently.

10.7.6. Processing a Return at the Employee's Request.

10.7.6.1. Employees are expected to exercise their return rights no less than 6 months prior to their DEROS to allow for necessary PCS processing and the arrangement of return transportation. Less than 6 months' notice may be accepted by mutual agreement between the CPS. On receipt of the employees' request to exercise their return rights, the overseas activity must first determine that the required period of overseas service will be completed on the date return is requested. If not, the activity commander must determine if the employee is to be released from any remaining period of obligated service under criteria in JTR, Chapter 5, 054912. **(T-0)**

10.7.6.2. If the return is authorized, the activity that granted the return rights must be notified of the employee's request to return. This notification must include the employee's current position title, series, grade (or pay band), and the requested return date. **(T-3)**

10.7.6.3. The activity to which the employee is returning must determine the specific position to be offered and subsequently advise the overseas activity. If any position other than the employee's former position is offered, the activity must explicitly state the reason for the alternate offer. **(T-3)** If the former position has been abolished and the employee's return would necessitate a RIF, this information must also be furnished to the overseas activity. **(T-3)**

10.7.6.4. Once a return position has been identified, the overseas activity must notify the employee in writing. **(T-3)** An employee whose former position has been abolished, and whose return would trigger a RIF, must be advised of their option to register for priority return placement in the DoD PPP. **(T-0)** The activity where the return rights apply must then receive formal notification of the employee's decision. **(T-3)**

10.7.7. The losing and gaining CPS must coordinate a mutually agreeable timeframe for the overseas return. **(T-3)** The personnel action will be effective the date the employee is scheduled to arrive at the CONUS activity. **(T-3)** However, the effective date can be set to allow for delays enroute requested by the employee for personal reasons, if concurred by the gaining activity and authorized in the travel at **paragraph 7.6**. **(T-3)**

10.7.8. Displacement Actions. When an employee exercises return rights to their former position and displaces another employee, RIF procedures may be necessary to determine the displaced employee's assignment rights. The returning employee does not compete for placement under RIF procedures unless their former position has been canceled and their return is to a temporary position established for a 90-day period. **(T-0)**

Chapter 11

MANAGEMENT DECISION TO INVOKE RETURN OBLIGATION

11.1. Official Notification.

11.1.1. Applicability. Management should utilize the procedures in this chapter when initiating an early return action for an employee. Management must not rely solely on this policy to execute the early return of any employee facing performance-based or disciplinary actions. **(T-1)** Supervisors must consult their servicing labor and employee relations section prior to initiating any management-directed early return from an overseas area.

11.1.2. Management-Initiated Early Return. Management-initiated early returns may be appropriate under the following circumstances:

11.1.2.1. An employee subject to the DoD rotation policy who is approaching the expiration of their authorized overseas service has failed to voluntarily apply to exercise return rights or register for priority return placement in the DoD PPP. **(T-0)**

11.1.2.2. An employee serving under a service agreement is released early from their tour of duty due to reasons beyond their control that are acceptable to the DoD component. This includes instances when the employee's services are no longer required for the remainder of the tour of duty.

11.1.2.3. Through no fault of the employee, their training and experience are determined to be mismatched with the position for which they were recruited, and no other suitable position is available at the OCONUS activity. (**Note**: This action must be coordinated with the appropriate CFT for centrally managed positions.) In this situation, the employee may:

11.1.2.3.1. Exercise their statutory return rights.

11.1.2.3.2. Request assistance from the servicing command and the CONUS organization from which they departed. These entities (in coordination with the appropriate CFT, if centrally managed) will attempt to identify an alternate assignment at an equivalent grade level or pay band acceptable to the employee. If necessary, the servicing MAJCOM/FLDCOM and/or CFT may seek resolving assistance from the Civilian Force Management Directorate, Force Shaping Division (AF/A1C), or the USSF Director of Civilian Policy and Programs (SF/S1C).

11.1.2.3.3. Apply the provisions of **paragraph 11.3.1**. in Alaska, Hawaii, or a U.S. territory or possession when an employee lacks return rights, or when a supervisor elects not to renew an employee's overseas tour during the 5-year return-rights period.

11.1.3. Exclusions. This chapter does not apply to:

11.1.3.1. Any employee who has served continuously in a foreign area since prior to 1 April 1966.

11.1.3.2. An employee as a means of management avoiding responsibility for taking appropriate action based on misconduct or unacceptable performance.

11.2. Informal Actions. Before initiating the procedures that follow, the appropriate management official will advise the employee of the circumstances on which the return placement

action is based. **(T-0)** If the employee is willing to initiate the return, no further action under this chapter will be necessary.

11.3. Return Placement Procedures at the Expiration of Overseas Service.

11.3.1. The supervisor or other management official must notify an employee of a decision not to extend overseas service beyond their current tour of duty no later than 12 months before the tour expiration date. The supervisor or management official must remind the employee of their obligation to immediately notify their servicing CPS of their return assignment decision, and arrange an appointment for the employee with the CPS to discuss return placement options. The servicing CPS must immediately notify the CONUS CPS where the employee holds return rights regarding the non-extension decision and the potential for return placement. **(T-3)**

11.3.2. If the employee fails to take action to request a return assignment within 7 workdays from the date of the non-extension notification, the servicing CPS must provide written notification to the employee. This notification must include:

11.3.2.1. Confirmation of the decision not to extend the tour of duty and the date the employee was originally advised. **(T-3)**

11.3.2.2. The obligation to initiate a return assignment by exercising return rights or, for those without return rights, registering in the DoD PPP. **(T-3)**

11.3.3. The following guidance applies to employees completing authorized overseas service who hold return rights at their current (or higher) grade or pay band:

11.3.3.1. Within 6 months of the expiration of the authorized overseas service, the OCONUS CPS must advise the applicable CONUS CPS that return rights will be exercised, and request identification of the position to which the return rights apply. **(T-3)**

11.3.3.2. The agency must advise the employee in writing of their authorized overseas service expiration date and return obligation, citing the original Overseas Employment Agreement that established the requirement. **(T-3)** The agency must identify the applicable return-rights position and offer the assignment to the employee. **(T-3)** The letter must also inform the employee that failure to accept the offer may result in separation proceedings for failure to comply with the return assignment requirement, per DoDI 1400.25, Volume 1230, and the DoD PPP Handbook. **(T-1)**

11.3.4. The following guidance applies to employees completing authorized overseas service who hold return rights at a lower grade or pay band:

11.3.4.1. The employee must be advised in writing of their DEROS and their obligation to return to the CONUS, citing the original Overseas Employment Agreement. The letter must present the employee with the following options:

11.3.4.1.1. Immediate application to exercise return rights. **(T-1)**

11.3.4.1.2. Registration in the DoD PPP for return placement. **(T-1)**

11.3.4.1.3. The letter must also explicitly advise the employee that failure to accept a position offer at their current grade/pay band and registered location may result in separation from DAF employment. **(T-1)**

11.3.4.1.4. If the employee fails to select either option within 7 workdays, the OCONUS CPS must register the employee in the PPP and provide written notification to the employee. Job offers resulting from PPP registration must be made to the employee in writing. If a job offer is the result of the employee's request to exercise their return rights, the employee must be advised that failure to accept the offer will terminate their return rights, and subsequent return placement will be processed through the PPP. The employee must be notified in writing that failure to accept a valid job offer made due to registration in the PPP may result in separation proceedings. **(T-1)**

11.3.5. The following guidance applies to employees completing allowable foreign service without return rights:

11.3.5.1. No later than 7 months before the tour expiration date (unless an OTEX decision is pending), the employee must be advised in writing of their DEROS and their obligation to return to the CONUS, citing the original Overseas Employment Agreement. The letter must identify DoD PPP return placement as the means by which the return will be processed, and advise the employee to contact the servicing OCONUS CPS for specific details. **(T-0)**

11.3.5.2. A job offer resulting from PPP registration must be made in writing. If the offer is at the employee's current grade or pay band equivalent, the employee must be advised that failure to accept the offer will result in the initiation of separation proceedings from the DAF to comply with the DoD rotation policy. **(T-0)**

11.3.5.3. An early return deemed to be in the "best interest of the DAF" must be proposed by the supervisor and approved or disapproved at the discretion of management. **(T-3)**

11.3.5.3.1. The employee must be advised in writing of the decision, the reasons for it, and the means by which the return is to be effected (e.g., exercise of return rights or registration in the DoD PPP for priority return placement, if eligible). **(T-3)**

11.3.5.3.2. Depending on the urgency of the situation, expanded PPP registration may be required.

11.3.5.3.3. Any return to a lower grade or pay band equivalent must be effected in accordance with DAFI 36-120, *Civilian Personnel Management Workforce Shaping Policy Guidance for Reduction in Force and Transfer of Function*, and DoDI 1400.25, Volume 351, *DoD Civilian Personnel Management System: Reduction in Force*. **(T-0)**

11.3.5.4. Employees whose skills do not match the overseas position. If the employee does not possess return rights, their return must follow the procedures outlined in **paragraph 11.1.2**. Return registration must not include the series, grade, or pay band equivalent of the current overseas position, unless alternate options are available for which the employee is determined to be well-qualified. **(T-3)**

11.4. Failure to Request Return Assignment.

11.4.1. Failure to request a return assignment upon notification that overseas service will not be extended (or that allowable service under the DoD rotation policy is complete) constitutes a breach of the Overseas Employment Agreement and DoDI 1400.25, Volume 1230. Commanders must propose action to remove the employee for failure to comply with the Overseas Employment Agreement, or for failure to request a return assignment in accordance with the DoD overseas rotation policy and the implicit conditions of their employment agreement. **(T-0)** This mandate applies to all employees covered by the policy, including those who did not sign a formal agreement but received notification of the policy and its return obligations (see **Figure A4.5**). **(T-0)**

11.5. Management-Initiated Returns.

11.5.1. An employee serving under a service agreement at any permanent duty station may be released from the tour of duty requirement specified in the agreement for reasons beyond the employee's control that are acceptable to the DAF. This includes a release when the employee's services are no longer required for the entire tour of duty period, in accordance with JTR Chapter 5, paragraph 054912. If the employee is serviced by a CPS of a DAF command other than the one to which they are assigned, the servicing command must consult with the employee's parent command prior to making any such determination.

11.5.2. A determination for early release must be made solely for reasons that justify the return as being in the best interest of the DAF. Management must consult with their servicing Labor and Employee Relations Representative prior to making any early-return decision regarding an employee who is facing, or has faced, performance-based or disciplinary actions. Managers and supervisors should also refer to DoDI 1400.25, Volume 431_DAFI 36-1002, *Performance Management and Appraisal Program Administration in the Department of the Air Force*, and DAFI 36-148, *Discipline and Adverse Actions of Civilian Employees*. **(T-1)**

Chapter 12

PHYSICAL PRESENCE REQUIREMENTS BETWEEN FOREIGN OVERSEAS TOURS

12.1. Residency and Physical Presence Requirements.

12.1.1. Applicants must complete a 2-year physical presence requirement in the U.S. or a non-foreign area between foreign area tours. **(T-2)** Additional restrictions regarding eligibility for a subsequent centrally funded PCS may apply in accordance with DAFMAN 36-142.

12.1.2. This guidance applies to employees who have returned to the CONUS or a non-foreign area from a foreign OCONUS DoD assignment, as well as to employees or CONUS applicants currently residing in a foreign area who are seeking subsequent employment with the DAF in foreign areas.

12.1.3. Employees who have served in a foreign area for five or more continuous years are ineligible for subsequent foreign-area employment until they have resided in the CONUS or a non-foreign area for a minimum of two continuous years, or have received an approved waiver to this requirement. Employees with prior foreign area service must be counseled on the 2-year (24-month) physical presence requirement.

12.1.4. AFPC and the CPS are highly encouraged to counsel applicants who are currently in a foreign area (or have previously served there for four years or less) and have not met the 2-year physical presence requirement. These applicants may only apply for other foreign-area positions if they can complete a full initial tour of duty at the new OCONUS permanent duty station without exceeding a cumulative total of five years of foreign service.

12.1.5. Recognizing the time required to fill positions, applicants may apply for OCONUS DAF positions after residing in the U.S. or a non-foreign area for at least 18 months. However, if selected, the employee cannot be appointed or assigned to the foreign-area position until they have completed the full two years of physical presence, unless a waiver is approved.

12.1.6. For centrally managed employees serving under a CONUS service agreement, a subsequent government-funded PCS will not be authorized unless a waiver is approved. The gaining CPS or appropriate CFT must screen each selectee to verify they have resided in the CONUS or a non-foreign area for the minimum 18-month period (or 30 months for centrally managed positions) and have fulfilled their CONUS service agreement, if applicable. **(T-2)**

12.2. Residency Requirement Waiver Requests.

12.2.1. The owning CONUS MAJCOM deputy commander (or equivalent) may grant exceptions to the 2-year physical presence requirement for non-centrally managed positions on a case-by-case basis. These waivers are restricted to hard-to-fill, mission-critical, or emergency-essential occupations. **Note:** Approval of a residency waiver resets the calculation of the employee's DEROS for the 5-year limitation, beginning on the entrance-on-duty date of the position for which the waiver was secured. The career field manager (CFM) may request exceptions for centrally managed career field positions (refer to DAFMAN 36-142 for information on authorizing a second government-funded PCS within an active service agreement in addition to a residency waiver). Before submitting a waiver request, the CFM must evaluate the following:

12.2.1.1. Whether there is a documented, mission-based need that cannot otherwise be met;

12.2.1.2. Whether denying the waiver would cause significant adverse impacts to mission accomplishment; and

12.2.1.3. Whether there are other particularly urgent, unique, or extenuating circumstances that justify the exception.

12.2.2. Physical presence waiver request packets must include:

12.2.2.1. A justification memorandum identifying the employee or selectee by name;

12.2.2.2. The candidate's current position title, series, grade (or pay band), organizational assignment, and duty location;

12.2.2.3. The position title, series, grade (or pay band equivalent), organizational assignment, and duty location of the position for which they were selected;

12.2.2.4. Copies of the vacancy announcements, requests for personnel actions (RPAs), and any other documentation demonstrating recruitment difficulties or failure to fill the position through standard methods; and

12.2.2.5. Supporting documentation identifying the position as a DoD/DAF mission critical occupation, or other relevant market data that justifies the waiver.

12.2.3. The CPS must ensure all criteria for the physical presence waiver are met prior to submitting requests to AFPC for a decision. **(T-3)** The CPS will annotate and return any non-compliant waiver requests to the requesting manager for correction and resubmission. **(T-3)** If the criteria are met, the waiver request for non-centrally managed positions must be forwarded through the installation commander (or equivalent) to:

12.2.3.1. The OCONUS MAJCOM/A1 and the CONUS MAJCOM Deputy Commander (or equivalent) for DAF positions; or

12.2.3.2. The OCONUS FLDCOM/S1 and the CONUS FLDCOM Deputy Commander (or equivalent) for USSF positions. **(T-2)**

12.2.3.3. For centrally managed positions, the waiver request must be coordinated through the installation commander (or equivalent) and the CFT prior to submission to the appropriate CFM for coordination. **(T-1)**

12.2.4. The DAF does not require a formal waiver approval process when an employee is participating in a centrally funded civilian professional development program where a PCS is a mandatory program requirement, provided the employee has not received a government-funded PCS within the preceding 12 months.

Chapter 13

DEPARTMENT OF DEFENSE PRIORITY PLACEMENT PROGRAM AND RETURN PLACEMENT PROCEDURES FOR NON-DISPLACED FOREIGN OVERSEAS EMPLOYEES

13.1. Overview.

13.1.1. The PPP is an administrative program governed by DoD policy and procedures. Although it is the primary vehicle for placing employees who have been adversely affected through no fault of their own, it does not supersede the statutory or regulatory rights of employees or former employees.

13.1.2. PPP Registration Procedures for Non-Displaced Overseas Employees. This section does not apply to displaced overseas employees, nor to displaced or non-displaced overseas family-member employees. PPP registration eligibility and procedures for NDOS employees are outlined in the DoD PPP Handbook, Chapter 5. For specific DAF guidance, refer to the DAF Priority Placement Supplement for Managing NDOS Employees in the DoD PPP.

13.2. General PPP Registration Procedures.

13.2.1. PPP registration eligibility and registration periods are based on the length of time served on an overseas tour, including any authorized extensions. Refer to the DoD PPP Handbook, Chapter 5, Section C1 for registration eligibility, and Chapter 5, Section C2 for timelines.

13.2.2. As indicated in the DoD PPP Handbook (Chapter 5, Section C1, Item C), eligible employees must register within 7 workdays of declining a tour extension or being notified that their tour will not be extended. Failure to register will subject the employee to separation if no return rights exist. **(T-0)**

13.2.3. The CPS must complete the PPP Registration and Counseling Checklist (DoD PPP Handbook, Chapter 7, Appendix H) for each PPP registrant. The CPS must ensure the checklist is signed by both the employee and the registering Human Resources Representative. Additionally, the CPS must counsel registrants (and document this in Appendix H) regarding all automatic registration expansions, ensuring that all file maintenance requirements outlined in Appendix H are strictly followed. **(T-0)**

13.2.4. NDOS employees who have successfully completed one or more overseas tours—or who are within 7 months of reaching the 5-year overseas employment limitation and have no specific return rights (or hold return rights to an abolished position)—will be placed in accordance with the DoD PPP Handbook.

13.2.4.1. The employee's initial registration must occur 6 months prior to their DEROS. **(T-0)** During the initial 60 days of registration, NDOS employees must be registered for a minimum of one entire CONUS region. This region must be located in the CONUS zone where the employee last resided, the zone where they were recruited (or home of record, if former military), or a zone closer to the employee's overseas duty station. **(T-1)**

13.2.4.2. The employee must be registered for all skills (up to five) for which they are qualified. **(T-3)** If a valid offer is not received within 90 days of registration, the registration will be amended to include one grade interval below the employee's current grade, in accordance with the DoD PPP Handbook (Chapter 5, Section C4) and the Overseas Employment Agreement, if indicated. **(T-0)**

13.2.4.3. If a PPP registrant is not placed during the initial 90-day period, their area of registration will be expanded to include at least two full zones (the initial registration zone plus one adjacent zone). This expansion is an automatic administrative action executed by the registering Human Resources Representative and does not require the concurrence of the employee.

13.2.4.4. If a PPP registrant is not placed within 120 days, their area of registration will be expanded to include all four zones. There are no exceptions to this guidance. Registrants will be allowed to remain in the PPP until they are placed, decline a valid offer, renew their agreement (provided they are within their initial 5-year tour and eligible for a single extension), or are directed to return—whichever occurs first. **(T-1)**

13.2.5. Employees without specific return rights must register for a minimum of one entire U.S. region when initially enrolled in the PPP. This region must be located in the CONUS zone where the employee last resided (or home of record, if former military) or a zone closer to their overseas duty station. After 60 days without a valid job offer, the employee's registration must be expanded to two full zones. **(T-1)**

13.2.5.1. If a PPP registrant is not placed within 120 days, their area of registration will be expanded to include all four zones. Beginning with the initial registration, employees must be registered for all skills for which they are well-qualified. **(T-1)** The registration will automatically expand to include all DoD activities in all zones at the employee's last duty location prior to their overseas assignment. The employee will remain registered in the PPP until their DEROS or the expiration of the 6-month registration period, whichever occurs first. There are no exceptions to this guidance.

13.2.5.2. Registrants will be allowed to remain in the PPP until they are placed, decline a valid offer, renew their agreement (provided they are within their initial 5-year tour and eligible for a single extension), are directed to return, or are matched for a position via the DAF NDOS supplement program—whichever occurs first, in accordance with the DoD PPP Handbook (Chapter 5, Section C, Item 2.b.(2)). **(T-0)**

13.2.6. When an employee is placed through the PPP, the losing command in the foreign area shall fund the employee's PCS expenses. Temporary quarters subsistence expenses and miscellaneous expenses at the location of the gaining activity will be paid by the gaining activity. **(T-0)**

13.3. Non-Displaced Overseas Employees.

13.3.1. DAF NDOS employees must respond to job offers within three business days of receipt, barring extenuating circumstances outside of the employee's control. Failure to receive a timely response is not a valid reason to consider a PPP registrant unavailable; gaining activities will take no further placement action until the outstanding offer is definitively resolved.

13.3.2. If reasonable efforts fail to produce a timely response, the gaining activity should contact the assigned workforce shaping administrator for resolution. This procedure also applies to job offers extended from other DoD Components through the PPP. Depending on the nature of the offer (e.g., a valid PPP job offer or one from staffing teams), declining or failing to respond to a valid PPP job offer may result in removal from federal service for failure to comply with the terms of the rotation agreement.

13.3.3. If management requests an OTEX while the employee is actively registered in the PPP (or while the PPP Registration Unit is actively searching for a placement position) and the extension is approved, the OCONUS CPS will immediately remove the employee from the PPP and notify the PPP Registration Unit to discontinue their search. However, if an employee receives a valid offer through the PPP or the Staffing Team prior to the final approval of an OTEX request, the tour extension request will be canceled. An OTEX request will only be honored if it is fully approved before a valid PPP job offer is made or a job placement is directed by the PPP Registration Unit. An employee will not be permitted to decline a valid PPP job offer or directed job placement pending the approval of an OTEX. **(T-0)**

Chapter 14

NON-FOREIGN OVERSEAS AREA POLICIES

14.1. Alaska, Hawaii. Guam or U.S. Territory or Possession.

14.1.1. A career or career-conditional employee who relocates from the CONUS or another non-foreign OCONUS area to Alaska, Hawaii, or Guam may be authorized return rights under **paragraph 10.2**. These return rights are retained for five years unless extended by the former organization (i.e., administrative return rights). This policy applies regardless of whether a service agreement (e.g., transportation) exists, or if the employee pays for their own travel and transportation to the duty station. **(T-0)**

14.1.2. In accordance with the Overseas Employment Agreements at **Attachment 4,** Figures **A4.8** and **A4.9**, management may initiate an employee's return when it is in the best interest of the DAF. This authority applies during the 5-year return-rights period, and for those without return rights, during the initial 5-year overseas assignment.

14.1.3. Employees assigned in Alaska, Hawaii, or Guam who hold return rights to a different location and subsequently accept an assignment at another overseas location will continue to maintain those return rights for the remainder of the initial 5-year return-rights period.

14.1.4. Following the expiration of the 5-year return-rights period (including any authorized extensions), employees with return transportation entitlements are authorized to register in the DoD PPP for return placement to the CONUS as a NDOS employee. **(T-0).**

Chapter 15

SCHEDULE A APPOINTMENTS

15.1. Applicability and Purpose.

15.1.1. This chapter establishes procedures for the employment of family members of active-duty military and civilian personnel assigned to foreign areas, in accordance with DoDI 1400.25, Volume 1232, and Volume 315.

15.1.2. The DAF promotes employment opportunities for qualified family members of military and U.S. citizen civilian personnel to the maximum extent possible. This promotion is subject to appropriations, manpower resources, host-nation agreements, and veterans' preference entitlements. Employment opportunities include consideration for non-U.S. citizen third-country national family members, provided such employment is permitted by host-nation and local tri-service agreements in accordance with IAW 22 USC § 3968, *Local compensation plans*.

15.1.3. While 22 USC § 3968 applies to military spouses, this section remains distinct from the specific preferences a military spouse may be entitled to under DoDI 1400.25, Volume 315.

15.2. General Requirements.

15.2.1. An employee serving under an Excepted Appointment may be promoted, demoted, or reassigned to another position for which this appointment authority is authorized.

15.2.2. To be eligible for promotion, excepted service family-member employees appointed under Schedule A authority must meet the same time-in-grade requirements as competitive service employees.

15.3. Uses and Prohibitions.

15.3.1. This appointing authority is designed to remove certain competitive service restrictions when filling positions locally in foreign areas, thereby providing employment opportunities for family members of military and civilian personnel of U.S. Government agencies. Eligibility is not restricted to family members who accompanied the sponsor to the area on official travel orders; family members who are subsequently authorized logistical support are also eligible. However, to remain eligible for initial appointment and continuous employment, the family member must reside with the sponsor within the commuting area of the employing activity. **(T-0)**

15.3.2. This appointing authority does not apply to family members of locally hired civilian employees (whether appropriated or non-appropriated fund), nor to family members with personal competitive status. To qualify, the civilian employee's sponsor must be on official travel orders. **(T-0)** Additionally, this appointing authority does not apply to family members of personnel assigned to the Red Cross, United Service Organizations, DoD contractors, Army and Air Force Exchange Service concessionaires, military banking facilities, or universities.

15.3.3. Unmarried dependent children who are employed under this authority, and who remain entitled to a DoD identification card and logistical support under their sponsor's orders, may continue their employment until their 23rd birthday, until the sponsor departs the area, or until the sponsor completes their current period of service requirement—whichever occurs first.

15.3.4. The retention of a family member under this appointment authority requires that the employee maintains their "family member" status and that the sponsor remains within the commuting area. Employment must be terminated within two months of the employee ceasing to be a family member, or when the sponsor separates, transfers, or permanently departs the commuting area. **(T-0)** The Notification of Personnel Action (SF 50) must be documented to reflect that the appointment is limited based on the projected duration of the sponsor's assignment.

15.3.5. DoDI 1400.25, Volume 1232, states that DoD Component heads may permit employment extensions of up to one year for any family member when the Component determines the extension is in the best interest of management or is justified for humanitarian reasons (e.g., adjustment following the death of a sponsor, or allowing a dependent to complete the school year). (**See Chapter 7, paragraph 7.8** for exceptions).

15.3.6. This authority does not inhibit management's right to recruit and select candidates from internal recruitment sources (i.e., non-competitive actions).

15.4. Appointment Procedures and Requirements. (Refer to **Attachment 2**):

15.4.1. Eligible family members must apply for employment through USAJOBS. The applicant must upload all required documents to the USAJOBS website, including a resume and the military or civilian sponsor's PCS orders confirming relocation to the new active-duty station. Eligible family members should create a comprehensive USAJOBS profile containing all documents required for employment verification. Recommended documentation includes college transcripts, a well-written and supported resume, professional certifications, licenses, specialized training certificates, the sponsor's PCS orders, and a Member-4 copy of the DD Form 214 (if claiming veterans' preference in addition to family-member preference). Applicants may not receive consideration without proper documentation. Applicants must meet the qualification, experience, training, and medical requirements established for comparable positions in the competitive service. **(T-0)**

15.4.2. Appointments:

15.4.2.1. Family members with personal competitive status are given career or career-conditional appointments when selected for non-temporary appointments, or for positions normally occupied by foreign national employees under **paragraph 15.3**. Family members subsequently selected for a CONUS position will be processed as a "conversion to reinstatement."

15.4.2.2. Family members without personal competitive status are given an Excepted Appointment Not-to-Exceed or an Excepted Appointment, as appropriate.

15.4.3. When an Excepted Appointment is utilized, a one-year trial period is required.

15.4.4. This appointment authority is not to be used to employ locally available family member personnel to professional staff positions.

15.5. Procedural Requirements.

15.5.1. Family members may apply for vacancies through USAJOBS immediately after their sponsor receives PCS orders or a formal job offer. However, family members may not receive preference until they physically arrive at the overseas location. **(T-0)**

15.5.2. Family members with less than 6 months remaining in the overseas area may be bypassed (non-selected) for continuing positions.

15.6. Overseas Employees Eligible for Non-Competitive Appointment Upon Return to the U.S.

15.6.1. Family members employed overseas under the Schedule A appointing authority are eligible to be non-competitively appointed to competitive service positions (e.g., career or career-conditional appointments) after returning to the U.S., under Executive Order (EO) 12721, *Eligibility of Overseas Employees for Noncompetitive Appointments*. This applies provided they meet the eligibility conditions outlined in 5 CFR § 315.608, *Noncompetitive appointment of certain former overseas employees*.

15.7. Extending/Waiving Service Requirement.

15.7.1. EO 12721 authorizes the non-competitive appointment of certain family members who have been employed in a foreign area (5 CFR § 315.608). The authority to approve extensions of the 3-year appointment eligibility period has been delegated to the appointing authority or their designee (refer to **paragraph 15.8**.). This authority may be used by family members multiple times within the 3-year period for non-continuing positions, until eligibility is lost due to the acceptance or declination of an offer for a continuing position.

15.7.2. The authority to approve a waiver for up to 26 weeks of the 52-week service requirement rests with the Deputy Assistant Secretary of Defense for Civilian Personnel Policy. The waiver request must formally certify that the family member's expected 52 weeks of employment were cut short due to a non-personal situation that necessitated their relocation from the overseas area. **(T-0)**

15.7.2.1. A "non-personal" situation includes disasters, conflicts, terrorism or the threat of terrorism, and situations where a family member is forced to return to the U.S. due to military deployments, drawdowns, or other management-initiated actions. A non-personal situation does not include circumstances specifically related to the individual.

15.7.2.2. Fully documented and justifiable DAF waiver requests must be forwarded through the servicing CPS to the owning MAJCOM/FLDCOM, SF/S1C, AFPC (Program Oversight), and AF/A1C for review and final decision. **(T-0)**

15.8. Extending Time Limitation on Executive Order (EO 12721) Non-Competitive Appointing Authority.

15.8.1. Extensions beyond the standard three years may be granted by the appointing authority or their designee, in accordance with the provisions of 5 CFR § 315.608.

15.9. Summer and Student Employment of Family Members in Foreign Areas.

15.9.1. MAJCOMs/FLDCOMs may authorize local activities to establish full-time summer and part-time student employment programs for college and high-school-age family members of military and civilian employees under the following conditions:

15.9.1.1. The operation of the employment program is permitted under local host-nation agreements.

15.9.1.2. The program can be established within authorized manpower and budgetary ceilings.

15.9.1.3. Work assignments are strictly controlled to ensure no student is assigned to duties exceeding their physical capabilities. Appropriate medical examinations and professional opinions must be secured to determine the physical qualifications of the youth if the work assignment involves any potential hazard to their health or the health of others.

15.9.1.4. Parental consent must be obtained for children under the age of 16. **(T-2)** Parents must be provided with detailed information regarding the specific type of work to which the youth will be assigned.

15.9.1.5. Local school or administration authorities must approve the student's participation in the part-time student employment program. **(T-2)**

15.9.2. Non-U.S. citizen family-member youth may be employed under this program under the following conditions:

15.9.2.1. Where arrangements with the host nation permit the hiring of non-U.S. citizens accompanying the U.S. Armed Forces.

15.9.2.2. If arrangements with the host nation permit the hiring of certain nationalities but exclude the employment of other non-U.S. citizens, this employment authority will be strictly limited to U.S. citizen family-member youth.

15.9.2.3. This appointing authority, rather than 5 CFR 8.3 (which governs the appointment of third-country nationals), must be used for such employment.

15.9.2.4. The DoD Wage Fixing Authority for the specific type of employment establishes the wage rates for summer and student employment programs. A CPS desiring to establish these programs for the first time must recommend and request special wage rates through their MAJCOM/FLDCOM to AF/A1C or SF/S1C. **(T-2)**

15.10. Foreign National Positions.

15.10.1. In the absence of qualified foreign nationals, vacant positions designated for foreign nationals may be identified and filled with family members under the following conditions:

15.10.1.1. Filling the position can be accomplished using current appropriations and resources.

15.10.1.2. Filling the position does not violate applicable international and bilateral agreements, host-nation laws, or labor agreements.

15.10.1.3. Appointments are made under the Excepted Appointment NTE authority, including for those family members who hold personal competitive status. Initial appointments should not exceed one year. If appropriate, the appointment may be extended for a maximum of one additional year (for a total of 24 months of service).

15.10.1.4. The appointment action must not change the position's official designation, nor require an adjustment to U.S. citizen manpower authorizations. **(T-3)**

15.10.2. To the maximum extent possible, family members should not be appointed to positions dedicated for FNs. Family members appointed to FN-designated positions may be separated or reassigned to another position if the billet is subsequently needed for the placement of a current foreign national.

15.10.3. Applicable federal personnel laws and implementing regulations regarding pay and other benefits must be strictly applied to this employment. **(T-0)**

15.11. Extension of Appointments. The provisions of 5 CFR § 213.104, *Special provisions for temporary*, *time-limited*, *intermittent*, *or seasonal appointments in Schedule A*, *B*, *C*, *D*, *or Policy/Career*, which limit the extensions of temporary appointments, apply to the Schedule A appointing authority for those positions filled for one year or less. These provisions do not apply to positions that are filled for periods longer than one year or for indefinite periods.

15.12. Termination of Appointments.

15.12.1. A non-preference employee serving under an Excepted Appointment must complete a 2-year trial period before becoming eligible for appeal rights, as prescribed in DAFI 36-148. A preference-eligible employee serving under an Excepted Appointment must complete a 1-year trial period before becoming eligible for appeal rights. However, these appeal rights are not applicable if the termination is executed because the conditions established for this appointment authority are no longer met (e.g., when the employee ceases to be an eligible family member).

15.12.2. The notice of termination must be provided to the employee in writing prior to the effective date, and documented via an SF 50.

Chapter 16

16. SPECIAL REDUCTION-IN-FORCE PLANS

16.1. Applicability and Purpose.

16.1.1. Special RIF plans may be developed for all non-U.S. citizen employees in foreign areas under the authority of 5 CFR § 351.201, *Use of Regulations*, subparagraph (d). When special plans are developed and executed, the administrative return rights normally granted to U.S. citizens employed by the DAF do not apply unless explicitly incorporated into the plan.

16.2. Coordination.

16.2.1. Special plans must be coordinated with other DoD activities in the locality to ensure consistency across the host nation or regional area. Management must not implement these plans until all coordination is complete, the plans are formally entered into the record, an effective date is established, and the affected employees have been notified of the plan's provisions. **(T-0)**

16.3. Requirements of Plans. Plans should be simple, easy to understand, and easy to administer. However, all plans must include provisions for the recognition of veterans' preference (resulting from service in the U.S. Armed Forces), length of service, and type of appointment. **(T-0)** Additionally, clear tie-breaking provisions must be incorporated into the plan. **(T-0)**

RICHARD L. ANDERSON
Assistant Secretary of the
Air Force for Manpower and Reserve Affairs

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

5 CFR Part 213, *Excepted Service*

5 CFR Part 301, *Overseas Employment*

5 CFR Part 302, *Employment in the Excepted Service*

5 CFR Part 315, *Career and Career Conditional Employment*

5 CFR Part 316, *Temporary and Term Employment*

5 CFR Part 335, *Promotion and Internal Placement*

5 CFR Part 351, *Reduction in Force*

22 USC Part 3968, *Local compensation plans*

EO 12721, *Eligibility of Overseas Employees for Non-competitive Appointments*, 30 July 1990

DoD Priority Placement Program Handbook, 1 October 2023

DoDD 1400.5, *DoD Policy for Civilian Personnel*, 12 January 2005

DoDI 1315.19, *Exceptional Family Member Program*, 23 June 2023

DoDI 1342.12, *Provision of Early Intervention and Special Education Services to Eligible DoD Dependents*, 17 June 2015

DoDI 1400.25, *Department of Defense Civilian Personnel Management System*

DoDI 1400.25, Volume 315, *Department of Defense Civilian Personnel Management System*, *Employment of Spouses of Active Duty Military*, 19 March 2012

DoDI 1400.25, Volume 351, *Department of Defense Civilian Personnel Management System*, *Reduction in Force*, 24 June 2021

DoDI 1400.25, Volume 431_DAFI 36-1002, *Performance Management and Appraisal Program Administration in the Department of the Air Force*, 9 July 2025

DoDI 1400.25, Volume 1230, *DoD Civilian Personnel Management System: Employment in Foreign Areas and Employee Return Rights*, 26 July 2012

DoDI 1400.25, Volume 1231, *Department of Defense Civilian Personnel Management System Employment of Foreign Nationals*, 5 July 2011

DoDI 1400.25, Volume 1232, *Department of Defense Civilian Personnel Management System Employment of Family Members in Foreign Areas*, 5 January 2012

DoDI 1400.25, Volume 1250, *Department of Defense Civilian Personnel Management System Overseas Allowances and Differentials*, 23 February 2012

DoDI 1400.25, Volume 1261, *Department of Defense Civilian Personnel Management System Observance of Holidays in Foreign Areas*, 25 March 2015

DoDI 1400.25, Volume 2005, *Department of Defense Civilian Personnel Management System: Defense Civilian Intelligence System (DCIPS) Employment and Placement*, 3 March 2012

DoDI 5400.11, *DoD Privacy and Civil Liberties Programs*, 29 January 2019

DoDM 1000.13, Volume 2, *DoD Identification (ID) Cards: Benefits for Members of the Uniformed Services*, *Their Dependents*, *and Other Eligible Individuals*, 23 January 2014

DAFPD 38-1, *Manpower and Organization*, 20 February 2024

DAFI 36-128, *Pay Setting and Allowances*, 9 January 2026

DAFI 38-101, *Manpower and Organization*, 29 August 2019

DAFI 36-120, *Civilian Personnel Management Workforce Shaping Policy Guidance for Reduction in Force and Transfer of Function*, 5 May 2026

DAFI 36-141, *Cyber Excepted Service (CES)*, 3 August 2022

DAFI 36-148, *Discipline and Adverse Actions of Civilian Employees*, 15 January 2026

DAFI 36-2710, *Equal Opportunity Program*, *20 January 2026*

DAFI 36-2711, *Equal Employment Opportunity: Affirmative Employment and Disability Programs*, 21 January 2026

DAFMAN 36-142, *Civilian Career Field Management and Centrally-Managed Programs*, 4 October 2022

DAFMAN 36-203, *Staffing Civilian Positions*, 30 July 2019

DAFMAN 90-161, *Publishing Processes and Procedures*, 18 October 2023

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

JTR, *Joint Travel Regulations*, 1 May 2026

Prescribed Forms

None

Adopted Forms

DAF Form 153, *Department of the Air Force Civilian Centrally Managed Career Development Mobility Agreement*

DAF Form 679, *Department of the Air Force Publication Compliance Item Waiver Request/Approval*

DAF Form 847, *Recommendation for Change of Product*

DD Form 214 , *Certificate of Release or Discharge from Active Duty*

DD Form 1617, *Department of Defense (DoD) Transportation Agreement: Transfer of Civilian Employees Outside the Continental United States (OCONUS)*

DD Form 1618, *Department of Defense (DoD) Transportation Agreement: Transfer of Civilian Employees to and Within Continental United States (CONUS)*

SF 50, *Notification of Personnel Action*

SF 1190, *Foreign Allowances Application*, *Grant and Report*

Abbreviations and Acronyms

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFPC—Air Force Personnel Center

AFPD—Air Force Policy Directive

ANG—Air National Guard

AOC—Area of Consideration

BQ—Best Qualified

CB—Career Broadener

CCMD—Combatant Command

CFM—Career Field Manager

CFR—Code of Federal Regulations

CFT—Career Field Team

CM—Centrally Managed

CONUS—Continental United States

CPO—Civilian Personnel Officer

CPS—Civilian Personnel Section

CSA—Central Salary Account

CSLP—Civilian Strategic Leader Program

DAF—Department of the Air Force

DAFI—Department of the Air Force Instruction

DAFMAN—Department of the Air Force Manual

DAV—Disabled Veteran

DCPAS—Defense Civilian Personnel Advisory Service

DCIPS—Defense Civilian Intelligence Personnel System

DEROS—Date Expected Return from Overseas

DoD—Department of Defense

DoDD—Department of Defense Directive

DoDI—Department of Defense Instruction

DoDM—Department of Defense Manual

DRU—Direct Reporting Unit

DSSR—Department of State Standardized Regulations

EFMP—Exceptional Family Member Program

EOD—Entrance on Duty

E-SSS—Electronic Staff Summary Sheet

EUCOM—Europe Command

FLDCOM—Field Command

FM—Functional Manager

FMS—Foreign Military Sales

FMVP—Family Member Veteran's Preference

FN—Foreign National

FOA—Field Operating Agency

HR—Human Resources

IAW—In Accordance With

IWD—Individuals with Disabilities

JTR—Joint Travel Regulations

KCP—Key Career Position

MAJCOM—Major Command

MSP—Military Spouse Preference

MSPVP—Military Spouse Preference with Veteran Preference

NAF—Non-Appropriated Fund

NDOS—Non-Displaced Overseas

NPA—Notification of Personnel Action

OCONUS—Outside the Continental United States

OPM—Office of Personnel Management

OTEX—Overseas Tour Extension

PACAF—Pacific Air Forces

PACOM—Pacific Command

PAQ—Palace Acquire

PCS—Permanent Change of Station

PDS—Permanent Duty Station

PDTATAC—Per Diem, Travel and Transportation Allowance Committee

PPP—Priority Placement Program

RAT—Renewal Agreement Travel

RIF—Reduction in Force

RPA—Request for Personnel Actions

SES—Senior Executive Service

SF—Standard Form

SOFA—Status of Forces Agreement

SORN—System of Record Notices

U.S.—United States

USAF—United States Air Force

USAFE-AFRICA—United States Air Force in Europe – Air Forces Africa

USC—United States Code

USSF—United States Space Force

VRA—Veterans' Recruitment Appointment

Office Symbols

AF/A1—United States Air Force, Deputy Chief of Staff, Manpower, Personnel and Services

AF/A1C—United States Air Force, Deputy Chief of Staff for Manpower, Personnel and Services, Civilian Force Management Directorate

AF/RE—Chief of Air Force Reserve

AFPC/DPCZ—Air Force Personnel Center Directorate of Civilian Personnel Operations

AFMC/IA—Air Force Materiel Command, International Affairs

NGB/CF—Director of the Air National Guard

PACAF—Pacific Air Force

SAF/MR—Assistant Secretary of the Air Force for Manpower and Reserve Affairs

SF/S1—United States Space Force, Chief Human Capital Officer

SF/S1C—United States Space Force, Director, Civilian Policy and Programs

Terms

Actual Residence—The fixed or permanent domicile, also referred to as the home of record, of a civilian employee that can be justified as a bona fide residence. For a separation after an OCONUS assignment, the actual residence is the residence occupied at the time the civilian employee received the assignment. This residence is listed in the service agreement signed by the civilian employee before departure to an OCONUS PDS. The civilian employee is authorized return travel and transportation expenses to the actual residence.

Centrally Managed Position—A position that is governed by DAFMAN 36-142 and administered by a DAF Career Field Management Team. The positions are of prime importance to the DAF mission and are centrally managed.

Civilian Component—The civilian employees employed by, and accompanying, the U.S. Armed Forces.

Commander—The installation commander or equivalent with oversight responsibility for civilian personnel matters.

Component—The Military Departments, Defense Agencies with independent appointing authority, and the Office of Secretary of Defense Administration and Management.

Days—Calendar days (as opposed to duty or work days).

Direct Hire Employee—A non-U.S. citizen employee hired directly by the U.S. government and paid directly for services from appropriated funds.

Displaced Overseas Employee—A DoD employee working in an overseas area, who is scheduled for a displacement action, such as involuntary separation or demotion by reduction-in-force, as a result of management action being taken on the position the employee encumbers in the overseas area.

DoD Rotation Policy—The DAF guidance for overseas recruitment and rotation provides for the orderly movement of employees to and from overseas areas and is in accordance with DoDI 1400.25, Volume 1230. It is designed to provide expanded career opportunities, broaden experience, provide special skills where needed, and to return employees from overseas areas after an agreed period of service.

Family Member—For a military member whose duty station is in a foreign area, the member's spouse or unmarried dependent child. For a civilian employee of a U.S. government Agency, including Non-appropriated Fund activities: the employee's spouse, domestic partner, or unmarried dependent child, or an unmarried dependent child of the employee's spouse or domestic partner. A dependent child includes a stepchild, adopted child, foster child, and a child under legal guardianship residing with a military member or U.S. citizen civilian employee who was not locally hired. **Note:** In some nations, pursuant to status of forces agreements or other similar agreements, the definition of "dependent" omits any reference to age, but rather, depends upon the amount of support provided by the member of the U.S. Armed Forces or civilian component sponsoring the dependent. Consult with the servicing staff judge advocate for clarification.

Foreign Areas—Any area or country outside the 50 States, District of Columbia, the Commonwealths of Puerto Rico and the Northern Mariana Islands, Guam, and U.S. territories and possessions.

Foreign National Employee—A non-U.S. citizen employee who is a national of the host country or is ordinarily resident there or is otherwise employed under the same conditions as host country employees.

Gaining CPS—Refers to the human resources office responsible for onboarding and the management of civilian personnel actions for the organization where the employee will be assigned.

Host Country—A country other than the U.S. its territories, and possessions where U.S. Armed Forces are present.

Indirect Hire Employee—A non-U.S. citizen employee hired in a foreign area under the terms of an agreement between the host country and the U.S.

Local Commuting Area—The geographic area that usually constitutes one area for employment purposes. It includes any population center (or two or more neighboring ones) and the surrounding localities in which people live and can reasonably be expected to travel back and forth daily to their usual employment; 5 CFR § 351.203.

Local Hire/Applicant—Any U.S. citizen recruited from a geographic locality, not directly from the U.S. (including the District of Columbia, and the territories and possessions of the U.S.) for a position in the same geographic locality.

Losing CPS—Refers to the human resources office responsible for onboarding and the management of civilian personnel actions for the organization where the employee is currently assigned.

Military Spouse Preference Eligible—A spouse who married the military sponsor before the military sponsor's reporting date to the new duty station or, for spouses whose only eligibility is under the Executive Order 13473 appointing authority, the marriage to the sponsor must have occurred on, or prior to, the date of the military sponsor's orders authorizing the PCS or amended orders authorizing the spouse to travel as a dependent.

Military Spouse—A spouse of an active-duty military member of the armed forces including a member of the U.S. Coast Guard.

Non-displaced Overseas Employee—An employee satisfactorily completing a tour of duty in a foreign area, a U.S. territory or possession, or in the states of Alaska and Hawaii, who is not affected by reduction-in-force or Transfer of Function, and whose overseas tour is not being extended and they do not have return rights.

Non-foreign OCONUS—The States of Alaska, and Hawaii, the Commonwealths of Puerto Rico and the Northern Mariana Islands, Guam, and other U.S. territories and possessions.

Ordinarily Resident—A U.S. citizen who has resided in a foreign area for more than 1 year without being a member of the U.S. Armed Forces or having civilian component status, or after obtaining a work permit. Note: Timeframe is dependent on host nation. Confirm with the servicing staff judge advocate on the timeframe that has been agreed upon with the host nation.

Overseas Area—Includes both foreign and non-foreign overseas areas, unless otherwise indicated.

Owning FLDCOM—Refers to the employee's command that has administrative and statutory responsibility specifically over the employee's return rights (this could be the CONUS, non-foreign area or OCONUS depending on where the employee is currently assigned).

Owning MAJCOM—Refers to the employee's command that has administrative and statutory responsibility specifically over the employee's return rights (this could be the CONUS, non-foreign area or OCONUS depending on where the employee is currently assigned).

Return Obligation—The requirement to accept return assignment after duty in a foreign area to comply with the terms of an employment agreement, or with the DoD rotation policy. An employee

may be serving in a foreign area with a return obligation and have no return rights. A return obligation limits employment in a foreign area to the initial tour of duty, to a subsequent tour of duty mutually agreed upon, or to five years if serving in a position subject to the DoD rotation policy. Extensions beyond those time limits may be authorized by mutual agreement or as outlined in this instruction.

Return Rights—Rights granted an employee under Title 10, USC or other legal, administrative or regulatory authority, to return to the position last held before assignment to duty in a foreign or non-foreign area, or to another position with rights, benefits and grade or pay band equal to the position last held.

RIF Notice—A written communication from an agency official to an individual employee stating that the employee will be reached for a RIF action.

Service Agreement—Specifies the entitlement of an employee to certain travel and transportation allowances incident to overseas rotation in return for which the employee agrees to remain in government service for a specified period, such as tour of duty. Service agreements are separate and distinct from the terms of a return obligation or return rights as specified in an Overseas Employment Agreement.

Servicing CPS—The CPS responsible for processing request for personnel actions of positions assigned to the installation.

Stateside Hire—An employee recruited from the U.S. for overseas employment who is on a service agreement. Stateside hires are normally restricted to status applicants.

Status Applicant—A current or former Federal employee who has served under a career or career-conditional appointment in the Federal civil service system. Normally, authority to reinstate a former career-conditional employee (except those with veterans' preference) terminates three years after separation. However, the 3-year period is extended for a family member who left career-conditional employment to accompany a sponsor to a foreign area.

Status as a Parent—The status of an individual who, with respect to an individual who is under the age of 18 or who is 18 or older but is incapable of self-care because of a physical or mental disability, is: a biological parent, an adoptive parent, a foster parent, a stepparent, a custodian of a legal ward, in loco parentis over such individual, or actively seeking legal custody or adoption of such an individual as defined by Executive Order 13152.

Status of Forces Agreement—An international agreement negotiated between the host country and the U.S. that governs many of the rights, obligations, and privileges of U.S. DoD military and civilian personnel present in the territory of that host country.

Tour of Duty—The minimum period specified for the overseas area. See JTR, Appendix Q, for tour of duty requirements.

Visa—A conditional authorization granted by a country (typically to a foreigner), allowing them to enter and temporarily remain within, or to leave that country. They include limits on the duration of the foreigner's stay, territory within the country they may enter, the dates they may enter, or the number of permitted visits.

Well-Qualified Employee—An eligible employee who possesses knowledge, skills, and abilities that clearly exceed the minimum qualification requirements for the vacant position.

Attachment 2

OCONUS ORDER OF REFERRAL LOGIC TABLE

A2.1. Recruitment Source and Area of Consideration. Positions may be filled from any recruitment source or area of consideration consistent with DAFMAN 36-203 subject to the requirements of DAFMAN 36-162 and other pertinent OPM, DoD, and DAF procedures or special employment programs.

A2.1.1. Spouses and other family members will be given an appointment appropriate to their appointment eligibility, such but not limited to, reinstatement, excepted service, and transfer. It is the responsibility of AFPC to determine appointment type. Family members will be granted the appointment for which they are entitled and based on how they were referred for consideration. Family members with personal competitive status will be appointed to a career or career-conditional appointment. Family members without personal competitive status will be appointed to an Excepted Service Schedule A appointment.

A2.1.1.1. Military spouses and family members with veterans' preference who are entitled to preference under the provision of applicable public laws and instructions and who are among the "best qualified" on a competitive referral, will be selected before any other competitive candidates. **(T-3)**

A2.1.1.2. Exceptions to mandatory placement. The authority to approve an exception to the mandatory selection of a Military Spouse Preference eligible is the installation commander to whom the appointing authority is delegated (where vacancy is located). **Note:** This applies to foreign OCONUS locations only. Bypass/exception will be based on compelling hardship to the organization mission or applicant. That authority may be re-delegated in writing. **(T-3)**

A2.2. Order of Referral. When the priorities in DAFMAN 36-203 are unclear, See **Figure A2.1**. *Order of Referral Logic Table*, for competitive and non-competitive procedures.

Figure A2.1. OCONUS Order of Referral Logic Table.

Referral and Selection Logic Table	Competitive Referral	Non-Competitive Referral	Remarks	Action
If eligible: Best Qualified (BQ) Military Spouse Preference with Veteran Preference (MSPVP) and Family Member Preference with Veteran Preference (FMVP) candidates. See note 5 for MSPVP/FMVP qualification requirements. Then, *the following eligible candidates are permitted:* Best qualified (BQ) Military Spouse Preference with Veteran's Preference (MSPVP) Family Member Preference with Veteran's Preference (FMVP) *AND*	 X X	 X X X	**Note:** Family Member Preference **with** Veteran Preference (FMVP) – (Spouse) or (Dependent) candidates do not block each other as Veterans' Preference is absolute. **Note:** If VRA is included in the Area of Consideration (AOC) only 10PT VRA candidates may be referred and/or selected	Any candidate referred on the competitive or non-competitive certificate may be selected. See Note 4 DoDI 1400.25 Volume 315 provides for possible pass over exceptions for MSP. DoDI 1400.25 Volume 1232 does not permit pass over of FMVP.

In-service placement (Reassignment, Change to lower grade, Re-promotion) 30 Percent Disabled Veterans (30% DAV) 10 PT- Veterans Recruitment Authority (VRA) Individuals with Disabilities (IWD) - Schedule A		X		
If eligible: Best Qualified (BQ) Military Spouse Preference **without** Veterans Preference (MSP) and Family Member Preference **without** Veterans Preference (FMVP-Spouse) candidates. **Then,** *the following eligible candidates are permitted:* Best qualified (BQ) Military Spouse Preference **without** Veteran's Preference (MSP) Family Member Preference **without** Veteran's Preference (FMP – Spouse) ***AND*** In-service placement (Reassignment, Change to lower grade, Re-promotion) 30 Percent Disabled Veterans (30% DAV) 10 PT- Veterans Recruitment Authority (VRA) Individuals with Disabilities (IWD) - Schedule A	 X X	 X X X X	**Note: (**FMP – Spouse) and/or (MSP) (BQ) applicants block all (FMP- Dependent) (BQ) applicants **without** veterans preference. **Note:** If VRA is included in the AOC only 10PT VRA candidates may be referred and/or selected	Any candidate referred on the competitive or non-competitive certificate may be selected. See Note 4: DoDI 1400.25 Volume 315 provides for possible pass over exceptions for MSP. DoDI 1400.25 Volume 1232 does not permit pass over of FMVP.
If eligible: referrals containing only Best Qualified (BQ) Military Spouse Preference **with** Veteran's Preference (MSPVP). **Then,** *the following eligible candidates are permitted:* Best qualified (BQ) Military Spouse Preference MSP **with** Veteran's Preference (MSPVP) **AND** Reinstatement to the same or lower grade DOD Transfer to the same or lower grade NON-DOD Transfer to the same or lower grade Reassignment Change to lower grade Re-promotion 30 Percent of More Disabled Veterans (30% DAV) Veterans Recruitment Authority (VRA) Individuals with Disabilities (IWD) - Schedule A **N**on-Appropriated Fund (NAF) Interchange	X	 X X X X X X X X X	If the referral certificate only contains MSP eligibles, ALL competitive sources included in the competitive referral (rated/ranked) are blocked	Any candidate referred on the competitive or non-competitive certificate may be selected. See Note 4: DoDI 1400.25 Volume 315 provides for possible pass over exceptions for MSP.
If eligible: referrals containing only Best Qualified (BQ) Military Spouse Preference (MSP).			If the referral certificate only contains MSP eligibles, ALL competitive sources included in	Any candidate referred on the competitive or non-competitive certificate may be selected.

Then, *the following eligible candidates are permitted:* Best qualified (BQ) Military Spouse Preference MSP **AND** Reinstatement to the same or lower grade DOD Transfer to the same or lower grade NON-DOD Transfer to the same or lower grade Reassignment Change to lower grade Re-promotion 30 Percent of More Disabled Veterans (30% DAV) Veterans Recruitment Authority (VRA) Individuals with Disabilities (IWD) - Schedule A Non-Appropriated Fund (NAF) Interchange	X	 X X X X X X X X X X X	the competitive referral (rated/ranked) are blocked	See Note 4: DoDI 1400.25 Volume 315 provides for possible pass over exceptions for MSP.
If eligible: referrals containing only Family Member Preference **with** Veterans' Preference (FMVP). **Then**, *the following eligible candidates are permitted:* Family Member Preference **with** Veterans' Preference (FMVP) Current DAF employees for promotion **AND** In-service placement (Reassignment, Change to lower grade, Re-promotion) 30 Percent Disabled Veterans (30% DAV), 10 PT - Veterans Recruitment Authority (VRA) Individuals with Disabilities (IWD) - Schedule A	 X X	 X X X X	**Note:** Family Member Preference **with** Veteran Preference (FMVP) – (Spouse) or (Dependent) candidates do not block each other as Veterans' Preference is absolute. **Note:** If VRA is included in the AOC only 10PT VRA candidates may be referred and/or selected	Any candidate referred on the competitive or non-competitive certificate may be selected.
If eligible: referrals containing only Family Member Preference **without** Veterans' Preference (FMVP - Dependent). **Then**, *the following eligible candidates are permitted:* Family Member Preference **without** Veterans' Preference (FMVP - Dependent) Current DAF employees for promotion **AND** In-service placement (Reassignment, Change to lower grade, Re-promotion) 30 Percent Disabled Veterans (30% DAV), 10 PT - Veterans Recruitment Authority (VRA) Individuals with Disabilities (IWD) - Schedule A	 X X	 X X X X	**Note:** (FMP – Spouse) (BQ) applicants **with** or **without** veterans' preference block all (FMP- Dependent) (BQ) applicants **without** veterans' preference. **Note:** If VRA is included in the AOC only 10PT VRA candidates may be referred and/or selected	Any candidate referred on the competitive or non-competitive certificate may be selected.
If *the absence of* BQ MSP, MSPVP, FMVP, or FMP: **Then** ALL recruitment sources are referred on appropriate referral	X	X		
Definitions/Notes: Competitive procedures (application of specific qualification factors to rate, rank, or otherwise categorize candidates) or equivalent merit promotion program consideration process or under Direct Hire Authority				

Noncompetitive procedures (consideration of candidates without rating, ranking, or another categorization without determining whether the military spouse is among the best qualified. The consideration of candidates without rating, ranking, or other categorization; includes such actions ***as appointment/conversion to or placement*** in a position in the competitive service by reinstatement, repromotion to a grade previously held, and appointment under the authority of sections 315.608 or 315.612 without determining whether the military spouse is among the best qualified.
External placement procedures. External placement procedures provide **for the appointment of an applicant** under other than merit promotion or internal placement as described in part 335 of Reference (g) of Volume 1232.
IAW DoDI 1400.25, Volume 315 – MSP **Exceptions** must be based on compelling hardship to the organization's mission or the applicant and document in writing.
MSP: "Best qualified" for hiring preference purposes means, as qualified as the lowest ranking referable candidate IAW DoDI 1400.25-Volume 315. FMP: "qualified" when meeting the minimum OPM qualification requirements.

AFPC Civilian One Link - OCONUS - Order of Referral (dps.mil)

Attachment 3

PROCESSING OVERSEAS TOUR EXTENSIONS (OTEX)

A3.1. Checklists for submitting and processing OTEX. Figures A3.1 through **A3.8** should be used for submitting and processing OTEX.

Figure A3.1. Tour Extension Requests beyond Initial Overseas Tour (Up to Five years and beyond Five years, but less than 6 months).

PURPOSE:
DoDI 1400.25, Volume 1230, Employment in Foreign Areas and Employee Return Rights, establishes policy for rotating DoD civilian employee from foreign areas and limits civilian employment in the competitive service in foreign areas to a period of five continuous years unless interrupted by at least two years of physical presence in the U.S. or non-foreign area. Reference DAFMAN 36-162, Civilian Career Field Management and Centrally-Managed Positions, **paragraph 7.7.3** and **Figure A3.5** for routing guidance.

Overseas Initial Tour Extension (centrally and non-centrally managed positions):
Installation commanders may approve extensions of **up to a maximum of five years**. This approval authority does not apply to CSA funded positions, CSLP positions, Career Broadener, or Key Career Positions, which must be coordinated with the appropriate CSA, CSLP, Career Broadener or Key Career Position CFT at AFPC prior to AF/A1's or SF/S1's approval. **Note:** The approval authority for all Foreign Military Sales (FMS) OCONUS direct case positions is the Air Force Materiel Command Director of International Affairs (AFMC/IA).

Or

Short-term Extensions (centrally and non-centrally managed positions):
Employees may request **6 months or less extension beyond 5-year** foreign area limitation for unforeseen circumstances (such as but not limited to medical issues, allowing children to complete current school year, to reach retirement eligibility). Reference DAFMAN 36-162, paragraph 7.8.2.1.

Reason for Extension:

Local Commander's Succession Plan (to prevent subsequent extensions):
- What is the workforce succession plan to meet the organization's requirements after the extended tour?
- What efforts have been taken to reallocate the work or explain why reallocation is not feasible?
- Identify the gaps of the previous approaches for filling the position.
- What caused the previous workforce succession plans not to succeed?

_____
Servicing OCONUS CPS Coordination (notify CONUS CPS)

_____
CFT Notification Attached (Centrally Managed Positions)

_____

Approval Authority: OCONUS Installation Commander or equivalent (May be further delegated to lowest practicable commander)

Figure A3.2. Tour Extension Requests Beyond Initial Overseas Tour (Five years to Seven years).

PURPOSE:
DoDI 1400.25, Volume 1230, *Employment in Foreign Areas and Employee Return Rights*, establishes policy for rotating DoD civilian employee from foreign areas and limits civilian employment in the competitive service in foreign areas to a period of five continuous years unless interrupted by at least two years of physical presence in the U.S. or non-foreign area.

First Tour Extension beyond Five years (up to Seven years): Initiate the OTEX request no later than 12 months prior to an employee's DEROS. Extension requests to the foreign area beyond the initial 5-year overseas limitation are prepared on e-SSS and initiated by supervisor and will include a written business case that articulates retaining the employee in the overseas area. The business case will include a succession plan for replacing the employee after the end of the extension. Reference DAFMAN 36-162, *Civilian Career Field Management and Centrally-Managed Positions* and **paragraph 7.7.4** and **Figure A3.6** for routing guidance**.**

Business Case Analysis: At a minimum, analysis must include the following:
- Purpose/Name/Position/Duty Location
- Overseas Arrival Date/Proposed date of estimated return from overseas/Chronology of Position Changes
- Justification for Extension and Timeframe
- Explain why the loss of the employee will degrade the mission.
- What current and past recruitment efforts have been taken to locate a replacement?
- Describe employee's performance during overseas assignment.
- Does employee have return rights to CONUS activity? (If yes, provide location. If employee does not have return rights, provide reason).

Local Commander's Succession Plan (to prevent subsequent extensions):
- What is the workforce succession plan to meet the organization's requirements after the extended tour?
- What efforts have been taken to reallocate the work or explain why reallocation is not feasible?
- Identify the gaps of the previous approaches for filling the position.
- What caused the previous workforce succession plans not to succeed?

CPS Analysis: Include detailed analysis of business case request (address management's justification and ensure requirements of DAFMAN 36-162, paragraph 7.7.4, have been met). Coordinate on local commander's succession plan, likelihood of PPP match if employee does not have return rights, and historical recruitment efforts.

CFTs/Functional Managers (FM) Perspective: The functional perspective is unique and provides an important data point in the decision-making process from a force management perspective. The functional analysis should be expounded from a "develop the force posture," to prevent stagnation and minimize loss of return rights. A rationale should be provided whether a concur or non-concur is submitted. Ultimately, coordination should be viewed with emphasis on returning within five years in accordance with DoDI 1400.25, Volume 1230 from any respective functional viewpoint that provides coordination.

Servicing OCONUS CPS Coordination

CONUS CPS Coordination

MAJCOM/FLDCOM FM Coordination (with separate narrative)
(Centrally Managed and Non-Centrally Managed Positions)

MAJCOM/A1K/FLDCOM/S1C (with separate narrative)
(Centrally Managed and Non-Centrally Managed Positions)

CFT Coordination (with separate narrative) (Centrally Managed Positions)

CFM Coordination (with separate narrative) (Centrally Managed Positions)

MAJCOM/A1/FLDCOM/S1 Coordination (Centrally Managed and Non-Centrally Positions)

Approval Authority: OCONUS MAJCOM/FLDCOM/Deputy Commander or equivalent (may be further delegated to a senior executive)

Figure A3.3. Tour Extension Requests Beyond Initial Overseas Tour (Inadequate PCS Funds).

PURPOSE:
DoDI 1400.25, Volume 1230, establishes policy for rotating DoD civilian employee from foreign areas and limits civilian employment in the competitive service in foreign areas to a period of five continuous years unless interrupted by at least two years of physical presence in the U.S. or non-foreign area.

Tour Extension – Inadequate PCS Funds: If funds are not available and the employee must remain in the overseas area until funds become available, the gaining CONUS MAJCOM/FLDCOM may approve a one year or less extension in coordination with the **Owning MAJCOM/FLDCOM—** Refers to the employee's command that has administrative and statutory responsibility specifically over the employee's return rights (this could be the CONUS, non-foreign area or OCONUS depending on where the employee is currently assigned) until funding issues are resolved. Business case analysis not required; however, only one extension per employee is allowed. Reference **paragraph 7.7** and **Figure A3.7** for routing guidance.

_____
Servicing OCONUS CPS Coordination

_____
CONUS CPS Coordination

_____
CFT Coordination (Centrally Managed Positions)

_____
CONUS MAJCOM/FLDCOM/Deputy Commander Coordination

_____
Approval Authority: OCONUS MAJCOM/FLDCOM/Deputy Commander (May not be further delegated)

Figure A3.4. Tour Extension Requests beyond Initial Overseas Tour (7 years and beyond).

PURPOSE:
DoDI 1400.25, Volume 1230, establishes policy for rotating DoD civilian employee from foreign areas and limits civilian employment in the competitive service in foreign areas to a period of five continuous years unless interrupted by at least two years of physical presence in the U.S. or non-foreign area.

Tour Extension at year 7 year and beyond: An overseas extension beyond seven years should be rare and only for specific mission requirements and not for individual convenience. Extension requests to the foreign area beyond the initial 5-year overseas limitation are prepared on e-SSS and initiated by supervisor 12 months prior of the employee's DEROS and will include a written business case that articulates retaining the employee in the overseas area. The business case will include a succession plan for replacing the employee after the end of the extension. Overseas employment agreement required on date of the change. Reference **paragraph 7.7.5.** and **Figure A3.8** for routing guidance**.**

Business Case Analysis: At a minimum, analysis must include the following:
- Purpose/Name/Position/Duty Location
- Overseas Arrival Date/Proposed date of estimated DEROS/Chronology of Position Changes
- Justification for Extension and Timeframe
- Explain why the loss of the employee will degrade the mission.
- What current and past recruitment efforts have been taken to locate a replacement?
- No advance recruitment without a request for personnel action. RPA must be submitted in advance to provide ample time for recruitment. Results of recruitment must provide a justification in the event of non-selection or not including alternate selections on referral certificates.
- Describe employee's performance during overseas assignment.
- Does employee have return rights to CONUS activity? (If yes, provide location. If employee does not have return rights, provide reason).

Local Commander's Succession Plan: (to prevent subsequent extensions). The recruitment RPA number and analysis of advanced recruitment must be referenced in the request for extension to include a timeline enumerating previous recruitment efforts, an explanation of the unanticipated events or circumstances that cased the previous workforce succession plans not to succeed and a plan to return the employee at the end of the extension:
- What is the workforce succession plan to meet the organization's requirements after the extended tour?
- What efforts have been taken to reallocate the work or explain why reallocation is not feasible?
- Identify the gaps of the previous approaches for filling the position.
- What caused the previous workforce succession plans not to succeed?

CPS Analysis: Include detailed analysis of business case request (address management's justification and ensure requirements of **paragraph 7.7.5** have been met). Coordinate on local commander's succession plan, likelihood of PPP match if employee does not have return rights, and historical recruitment efforts, and the advanced recruitment effort associated with this extension request.

CFTs/Functional Managers (FM) Perspective: The functional perspective is unique and provides an important data point in the decision-making process from a force management perspective. The functional analysis should be expounded from a "develop the force posture," to prevent stagnation and minimize loss of return rights. A rationale should be provided whether a concur or non-concur is submitted. Ultimately, coordination should be viewed with emphasis on returning within five years in accordance with DoDI 1400.25, Volume 1230 from any respective functional viewpoint that provides coordination.

_____

Servicing OCONUS CPS Coordination (Notify CONUS CPS, if applicable)

_____

MAJCOM/FLDCOM FM Coordination (with separate narrative)
(Centrally Managed and Non-Centrally Managed Positions)

_____

MAJCOM/A1K/FLDCOM/S1 (with separate narrative)
(Centrally Managed and Non-Centrally Managed Positions)

_____

CFT Coordination (with separate narrative)
(Centrally Managed Positions)

_____

CFM Coordination (with separate narrative)
(Centrally Managed Positions)

_____

AFPC/DPCZ Coordination (Centrally Managed Positions)

_____

AFPC/DPC Coordination (Centrally Managed Positions)

_____

MAJCOM/A1/FLDCOM/S1 Coordination (Centrally Managed and Non-Centrally Positions)

_____

Approval Authority: OCONUS MAJCOM/FLDCOM/Deputy Commander or equivalent (may not be further delegated)

_____

Final Approval Authority: AF/A1 or equivalent
(Only if OCONUS MAJCOM/FLDCOM/Deputy Commander disagrees with FM's recommendation)

Figure A3.5. Tour Extension Quick Reference Guide (Up to Five Years) and Short-Term Extensions less than Six months, Beyond Five years.

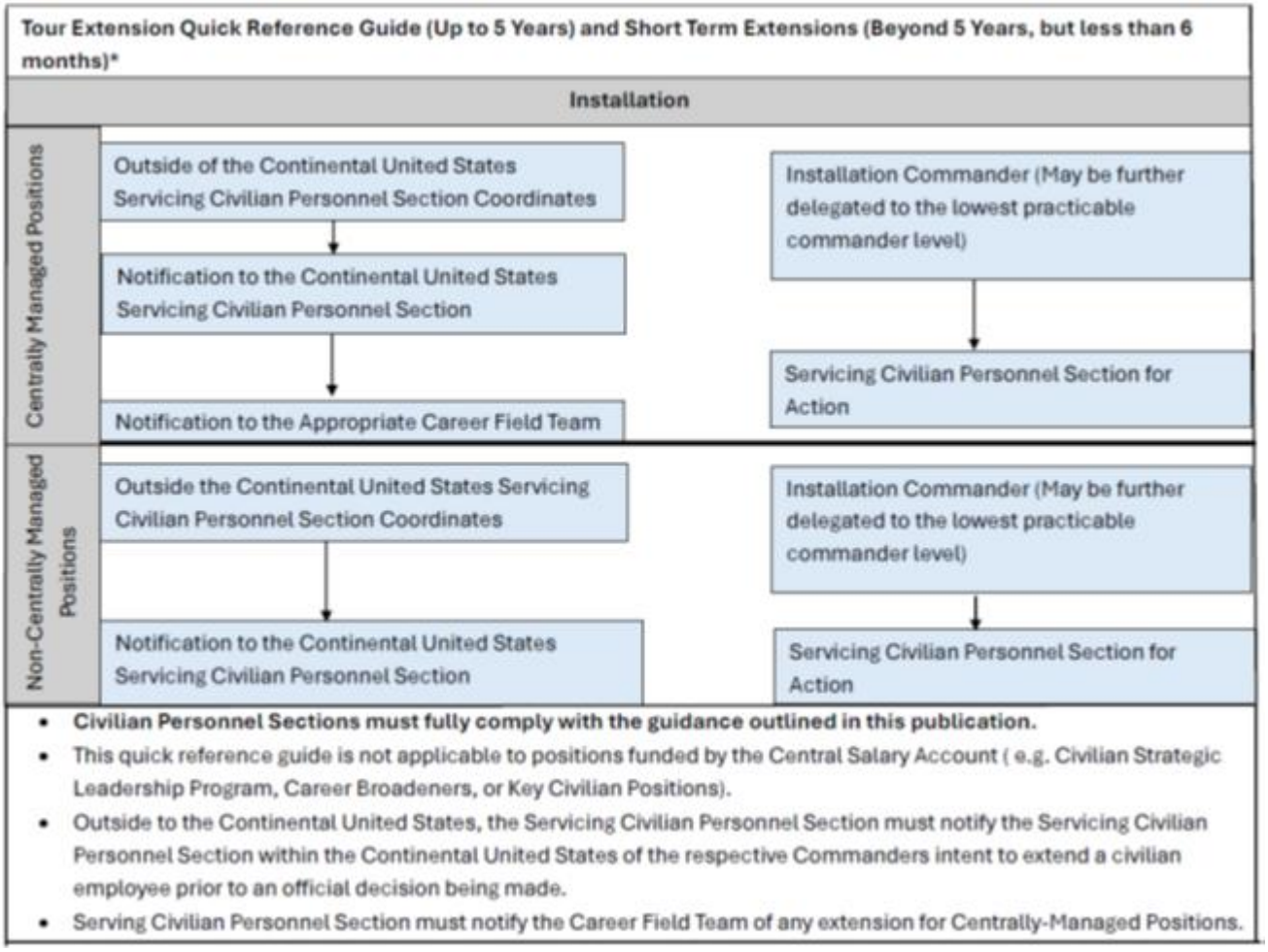


Figure A3.6. Tour Extension Quick Reference Guide (Five Years to Seven Years).

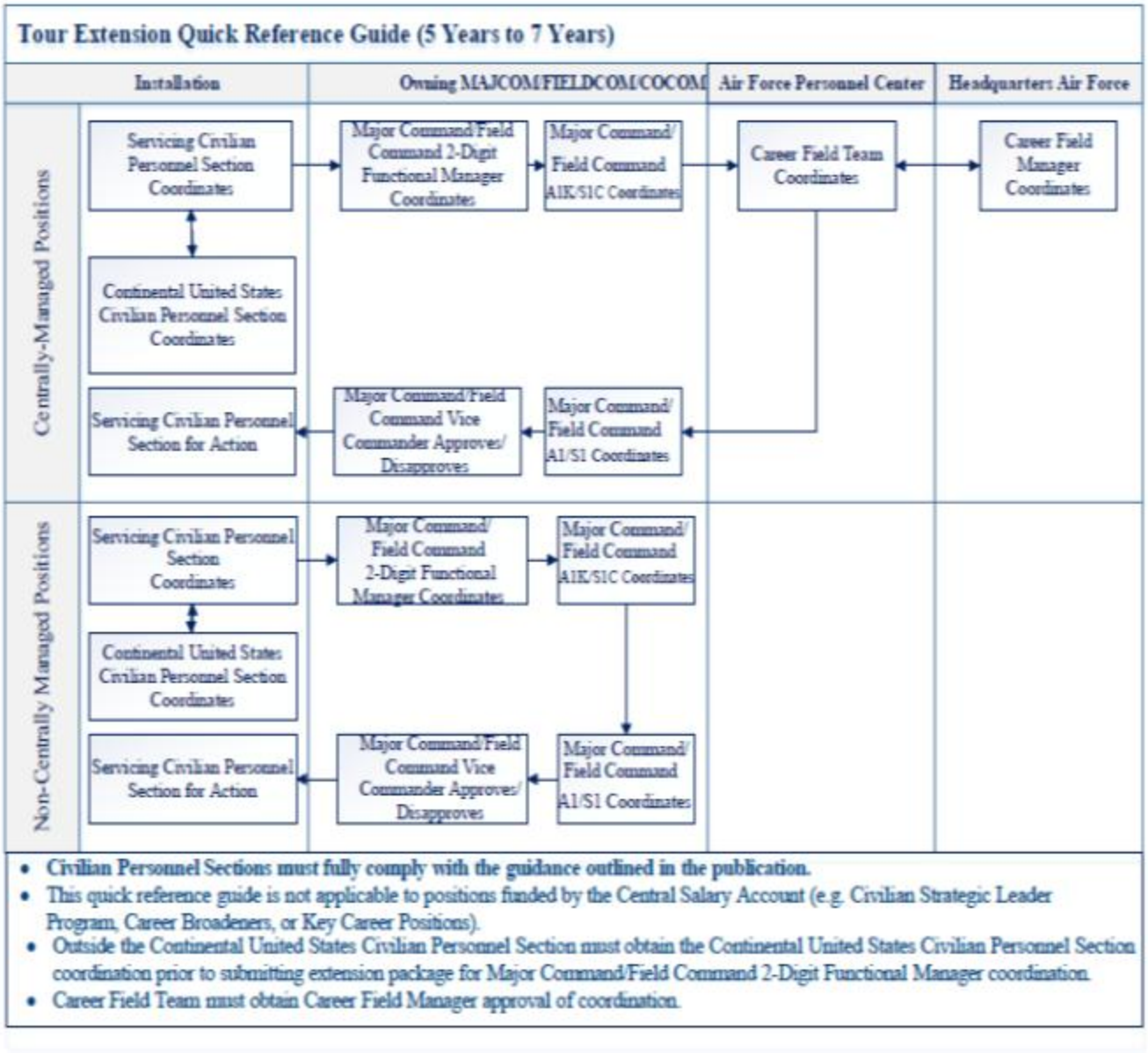


Figure A3.7. Tour Extension Quick Reference Guide (Inadequate PCS Funds).

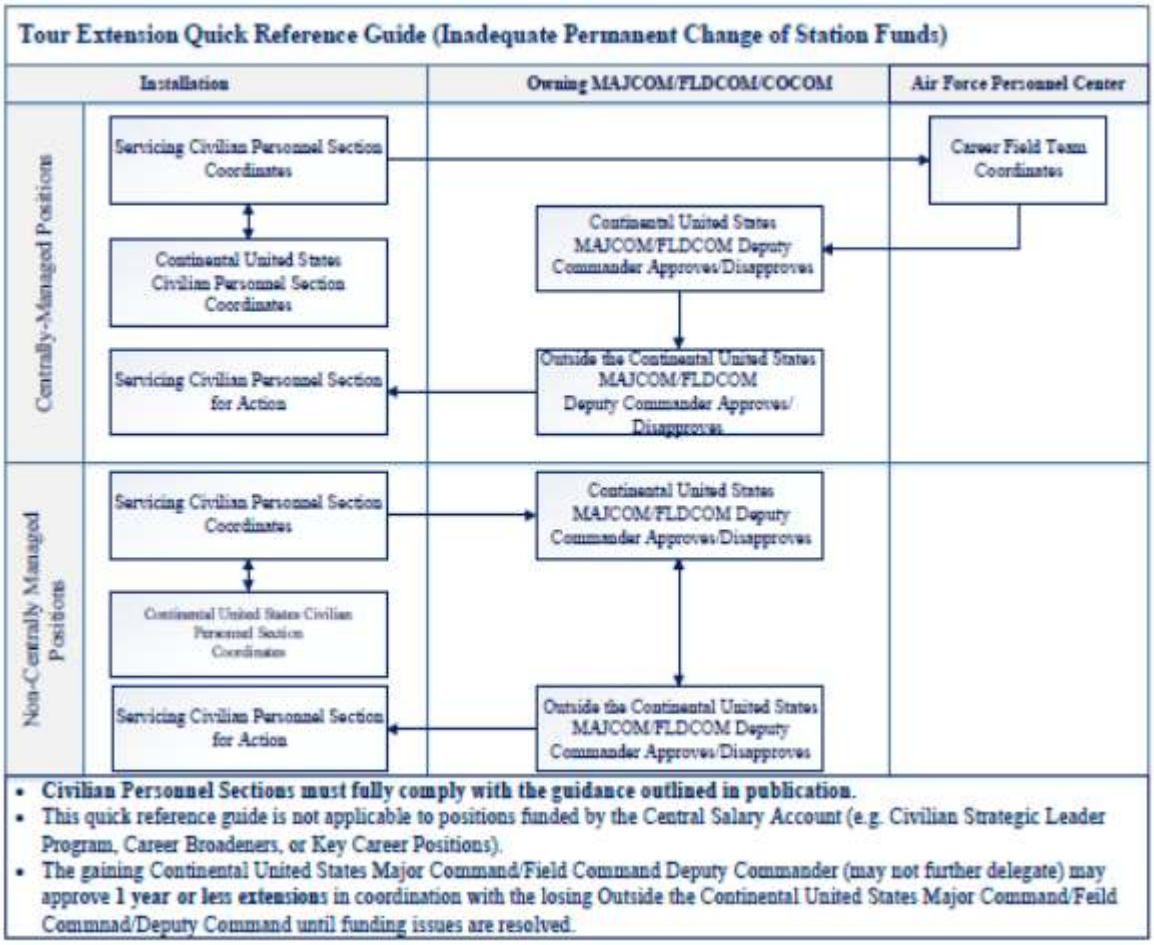
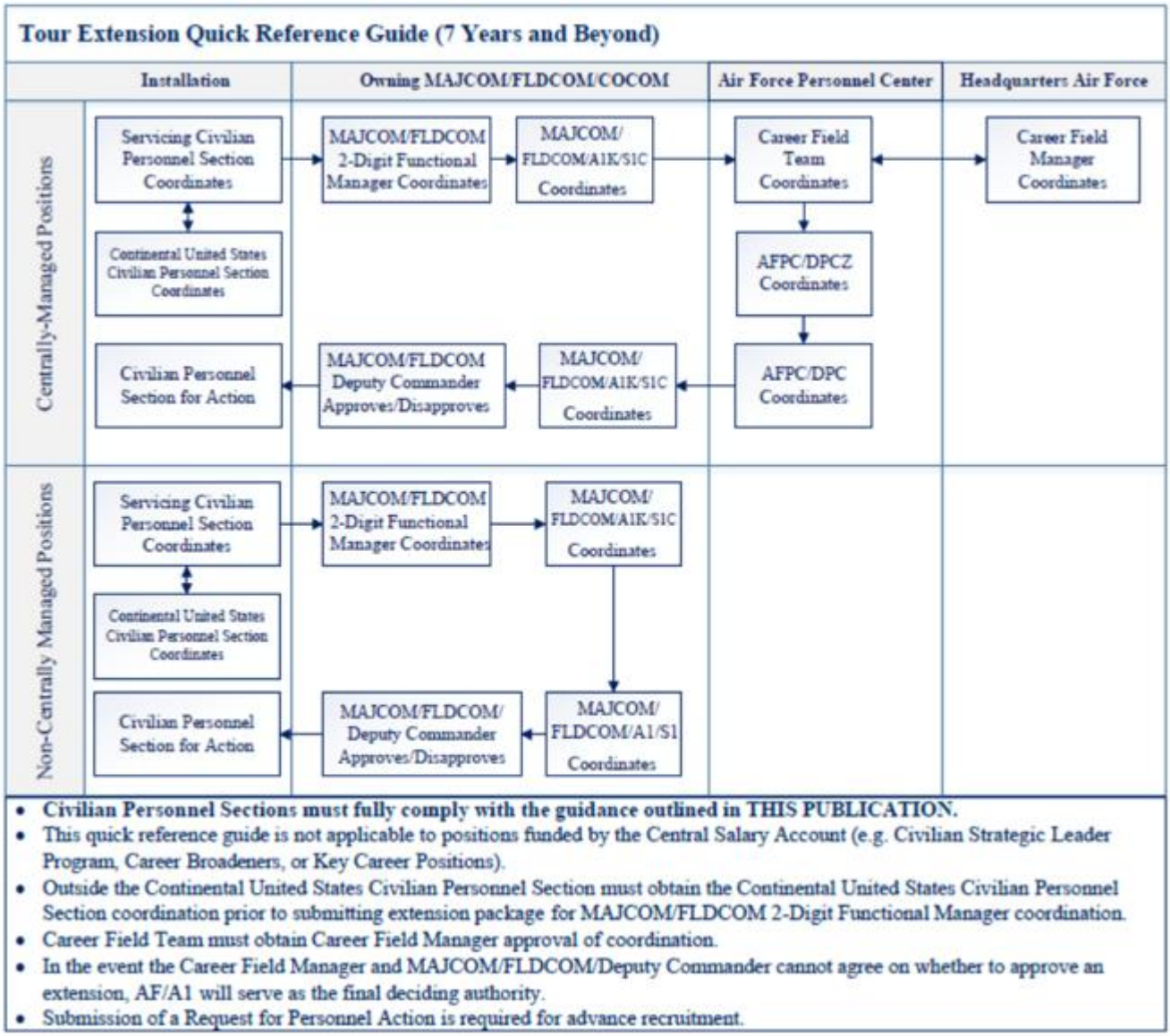


Figure A3.8. Tour Extension Quick Reference Guide (7 Years and Beyond).



Attachment 4

OVERSEAS EMPLOYMENT AGREEMENTS

A4.1. Overseas Employment Agreements. Required for use when employees are assigned, appointed or converted to positions overseas. (See Figures **A4.1** through **A4.13**.)

Figure A4.1. Overseas Employment Agreement for Assignment to a Foreign Area (With Return Rights).

This agreement must be signed by an employee serving on a career or career-conditional appointment selected for assignment to a Department of the Air Force position in a foreign area who has return rights. (**Note:** Refer to **Figure A4.8** of this manual for employees who have return rights and are assigned to Alaska, Hawaii, and United States (U.S.) territories and possessions).

1. This document represents an agreement between the DAF and the undersigned and becomes effective upon my assignment to:

Name (Last, First, Middle Initial): _____Position Title: _____

Pay Plan/Series/Grade or Pay Band: _____Organization: _____

Location: _____

Effective date: _____Tour Length: _____

2. By accepting this assignment to a foreign area, I understand and agree to the following:

a. My initial period of foreign service is limited to the established tour of duty for the area to which assigned. Any extension beyond the initial period of foreign service is subject to management's approval and my concurrence. Any prior Department of Defense (DoD) foreign service not interrupted by a 2-year period of physical residence in the U.S. or non-foreign area will reduce the allowable period of service I am authorized to be employed in a position subject to the rotation policy.

b. If I am authorized and elect to exercise renewal agreement travel for the purpose of serving subsequent tour of duty in the same or another foreign area, my period of service will then be limited to the prescribed tour required by such agreement. Any extension beyond that period is subject to management's approval and my concurrence.

c. DoDI 1400.25 Volume 1230, DoD Civilian Personnel Management System; Employment in Foreign Areas and Employee Return Rights, limits foreign area service to five years for employees assigned to positions subject to the (DoD) rotation policy. My foreign service will be limited by that policy if, after completion of five years of foreign area service, I am serving in or assigned to a position subject to the DoD rotation policy.

d. When notified that my foreign service will not be extended beyond the initial or subsequent

tour of duty, or when advised that my return is required because of the DoD rotation policy, I agree to request return assignment by applying to exercise my return rights, or, if those rights have expired, by my registration in the DoD Priority Placement Program (PPP), and in conjunction with the DAF Non-Displaced Overseas (NDOS) employee supplemental guidance. Further, I agree to accept the position offered from such application or registration that will fulfill my obligation to return from the foreign area. I understand that if I decline a valid PPP offer, I will be removed from PPP and DAF employment. I understand that procedures for return placement through the DoD PPP are established in accordance with the DoD PPP Handbook and current DAF NDOS supplemental guidance, which requires mandatory expansion of the PPP registration, to include all DoD activities in the U.S. after the initial 60-day registration period, and amendment of registration, to include one-grade interval below my current grade if I have no return rights and do not receive a valid offer within 90 days of registration.

3. I understand that I have been granted return rights to my former position of (Position Title, Series and Grade or Pay Band) _____at (Location)_____. I understand that I must satisfactorily complete the required period of overseas service established for the area to which I am assigned. I understand that I must apply to exercise my return rights. To assure availability of return transportation at the time I desire to exercise my return rights, and to provide sufficient advance notice to the activity to which my return rights apply, I will notify my servicing Civilian Personnel Section at least 6 months in advance of the date I wish to depart from the overseas area. Any early release from the period specified in my service agreement must be approved by the overseas activity, and comply with Joint Travel Regulation, Chapter 5, Acceptable Reasons for Release of Tour, to be afforded return travel expenses at government expense. Centrally managed positions require recommended approval from the overseas activity and coordination with Career Field Team, Career Field Manager and approval by Air Force Personnel Center Directorate of Civilian Personnel Operations - Talent Management Division. Unless terminated for a reason listed below, I understand my return rights expire five years after my assignment overseas, unless an extension is granted. Return rights are terminated earlier for any of the following reasons:
a. Resignation.
b. Separation for cause.
c. The position to which return rights is authorized is being abolished.
d. Assignment to any Department of Defense activity in the Continental U.S.
e. Transfer to any agency outside Department of Defense.
f. Failure to accept the equivalent position to which return rights apply.

4. If my former position does not exist when I exercise my return rights, I understand I will be returned to a vacant position at the same grade level or pay band equivalent as that to which I have return rights or to a position at the same grade level or pay band equivalent which has been established for 90 days or register in the PPP as a priority two within my current Component or priority three outside my Component at my current grade or the grade to which return rights exist, whichever is higher, and remain in the program until placement or termination of eligibility. If I am returned to a position established for 90 days, I understand that I will be placed in a continuing position (for which I qualify), at that grade or pay band equivalent for which I held immediately before my overseas assignment, until a valid vacancy becomes available during this period. Otherwise, my assignment rights beyond that 90-day period will be determined by

reduction-in-force procedures. I also understand that my return rights may be transferred to a different geographic area in the event the function to which my return rights apply is transferred, or if my former activity has been inactivated. I understand I must be registered for a minimum of one entire U.S. region when initially enrolled in the PPP. The region must be in the U.S. zone in which I last resided or a zone closer to my overseas duty station. After 60 days without a valid job offer, I must be registered for two full zones. The area of referral must be expanded to all four zones after 120 days without a valid offer. I also understand I must be registered for all skills for which I am well qualified beginning with the initial registration. I will not be allowed to limit referral to my own Component.

5. I understand that I must complete my overseas tour agreement to be eligible for a paid Permanent Change of Station (PCS) return to Continental United States, unless released in accordance with the provisions in the Joint Travel Regulations (JTR) and DAFMAN 36-142, Civilian Career Field Management and Centrally Managed Programs. If I wish to apply for a new position, and not exercise return rights, I will not be eligible for a paid PCS to a subsequent follow-on assignment until the initial tour of duty for which I am acknowledging is completed.

6. I understand and accept the conditions established in this agreement. I understand that failure to request and accept return assignment as I have agreed to do in the paragraphs above may result in my involuntary separation from Air Force employment.

Employee Section				
Printed Name:				**Date:**
Signature:				
Losing Civilian Personnel Officer (CPO) Section				
Printed Name:				**Date:**
Signature:				
Gaining Civilian Personnel Officer (CPO) Section				
Printed Name:				
Signature:				
Agency:				
Installation:				
Human Resources Representative				
Printed Name:				
Email Address:				
Phone Numbers:	**(DSN)**		**(Commercial)**	

Figure A4.2. Overseas Employment Agreement for Assignment to a Foreign Area (Without Return Rights).

An employee or applicant on a career or career conditional appointment without return rights who was selected for assignment to a Department of Defense (DoD) position in a foreign area, who is eligible to sign a service agreement, must sign this agreement. This includes an employee hired locally in a foreign area who is eligible to sign a service agreement. Excluded are family members of military members or civilian employees who are on a Permanent Change of Station (PCS) move to the foreign area.

Note: Refer to Figure A4.9 for employees assigned to Alaska, Hawaii and United States (U.S.) territories and possessions without specific return rights.

1. This document represents an agreement between the Department of the Air Force (DAF) and the undersigned and becomes effective upon my assignment to:

Name (Last, First, Middle Initial): _____Position Title: _____

Pay Plan/Series/Grade or Pay Band: _____Organization: _____

Location: _____

Effective date: _____ Tour Length: _____

2. By accepting this assignment to an overseas area, I understand and agree to the following limitations that are imposed on the length of time that I am authorized to remain in this or another overseas area.

a. My initial period of overseas service is limited to the established tour of duty (used to establish return transportation entitlement) for the area to which assigned. Any extension beyond this period is subject to my concurrence and management approval.

b. If I am authorized and elect to exercise renewal agreement travel for the purpose of serving a subsequent tour of duty in the same or another overseas area, my period of service will then be limited to the established tour required by such agreement. Any extension beyond that period is subject to my concurrence and management approval.

c. DoDI 1400.25 Volume 1230, *DoD Civilian Personnel Management System; Employment in Foreign Areas and Employee Return Rights*, limits foreign area service to five years for employees assigned to positions subject to the DoD rotation policy. My foreign service will be limited by that policy if, after completion of five years foreign area service, I am serving in, or assigned to, a position subject to the DoD rotation policy. Any prior DoD foreign service not interrupted by a 2-year period of physical residence in the U.S. or non-foreign overseas area will reduce the allowable period of service I am authorized to be employed in a position subject to the rotation policy.
d. When notified that my foreign service will not be extended beyond the initial or subsequent

tour of duty, or when advised that my return is required because of the DoD rotation policy, I agree to request return assignment to the U.S. by registration in the DoD Priority Placement Program (PPP), and in conjunction with the Department of the Air Force (DAF) Non-Displaced Overseas (NDOS) employee supplemental guidance. Further, I agree to accept the position offered from such registration that will fulfill my obligation to return from the foreign area. I understand that if I decline a valid PPP offer, I will be removed from PPP and DAF employment. Procedures for placement through PPP are outlined in the DoD PPP Handbook and supplemented by DAF NDOS supplemental guidance. These procedures include two key requirements:

1) Mandatory Expansion of Registration. If a placement is not made within the initial 60-day registration period, the PPP registration will be automatically expanded to include all Department of Defense (DoD) activities in the Continental United States.

2) Amendment of Registration. If an individual has no return rights and does not receive a valid job offer within 90 days of registration, their PPP registration will be amended to include positions that are one grade level below their current grade.

Declination of a valid offer or failure to comply with DoD, DAF, or PPP requirements shall result in forfeiture of PPP eligibility and may be subject to separation from federal service.

3. I understand that I do not have return rights. I will be provided placement assistance for assignment in the U.S. through registration in the DoD PPP, and in conjunction with the DAF NDOS supplemental guidance after completion of the period of overseas service required for such registration. I agree to accept a "valid" position offer from such registration. Declination of a valid offer or failure to comply with DoD, DAF, or PPP requirements shall result in forfeiture of PPP eligibility and may be subject to separation. I understand I must be registered for a minimum of one entire U.S. region when initially enrolled in the PPP. The region must be in the U.S. zone in which I last resided or a zone closer to my overseas duty station. After 60 days without a valid job offer, I must be registered for two full zones. The area of referral must be expanded to all four zones after 120 days without a valid offer. I also understand I must be registered for all skills for which I am well qualified beginning with the initial registration. I will not be allowed to limit referral to my own Component.

4. If I wish to apply for a new position, I will not be eligible for a Paid PCS to a subsequent follow-on assignment until the initial tour of duty for which I am acknowledging is completed.

5. I understand and accept the conditions established in this agreement. I understand that failure to request and accept return assignment as I have agreed to do in the paragraphs above may result in my involuntary separation from DAF employment.

Employee Section		
Printed Name:		**Date:**
Signature:		
Losing Civilian Personnel Officer (CPO) Section		
Printed Name:		**Date:**

Signature:				
Gaining Civilian Personnel Officer (CPO) Section				
Printed Name:				
Signature:				
Agency:				
Installation:				
Human Resources Representative				
Printed Name:				
Email Address:				
Phone Numbers:	**(DSN)**		**(Commercial)**	

Figure A4.3. Overseas Employment Agreement for Assignment to a Foreign Area (Locally Appointed).

This agreement must be signed by an employee or applicant appointed locally or converted in a foreign area to a career or career-conditional appointment. (Excluded are family members of military or civilian members who are on a Permanent Change of Station to the foreign area).

1. This document represents an agreement between the Department of the Air Force and the undersigned and becomes effective upon my assignment to:

Name (Last, First, Middle Initial): _____Position Title: _____

Pay Plan/Series/Grade or Pay Band: _____ Organization: _____

Location: _____

Effective date: _____ Tour Length: _____

2. By accepting this assignment, I understand and agree to the limitations that are imposed on the length of time I am authorized to remain in this or another foreign area. I understand that DoDI 1400.25 Volume 1230, *DoD Civilian Personnel Management System: Employment in Foreign Areas and Employee Return Rights*, limits foreign area service of employees to a total of five years, and that I will be required to return to the United States (U.S.) at the end of that period unless an extension is granted. Any prior Department of Defense (DoD) foreign service not interrupted by a 2-year period of physical residence in the U.S. or non-foreign area will reduce the allowable period of service I am authorized to be employed in a position subject to the rotation policy.

3. I understand that I will be provided placement assistance for return to the U.S. after

completion of the prescribed tour of duty. If I am serving in a position in which foreign service is limited, I agree to request return placement to the U.S. by registration in the DoD Priority Placement Program and Department of the Air Force (DAF) Nondisplaced Overseas (NDOS) employee supplemental guidance when notified that my return is required. Further, I agree to accept the position offered which will fulfill my obligation to return from the foreign area. Procedures for placement through PPP are outlined in the DoD PPP Handbook and supplemented by DAF NDOS supplemental guidance. These procedures include two key requirements:

1) Mandatory Expansion of Registration. If a placement is not made within the initial 60-day registration period, the PPP registration will be automatically expanded to include all Department of Defense (DoD) activities in the Continental United States.

2) Amendment of Registration. If an individual has no return rights and does not receive a valid job offer within 90 days of registration, their PPP registration will be amended to include positions that are one grade level below their current grade.

Declination of a valid offer or failure to comply with DoD, DAF, or PPP requirements shall result in forfeiture of PPP eligibility and may be subject to separation from federal service.

4. I understand and accept the conditions established in this agreement. I also understand that failure to request and accept return assignment as I have agreed to do under the terms of this agreement will result in my involuntary separation from Department of the Air Force employment.

Employee Section				
Printed Name:				**Date:**
Signature:				
Losing Civilian Personnel Officer (CPO) Section				
Printed Name:				**Date:**
Signature:				
Gaining Civilian Personnel Officer (CPO) Section				
Printed Name:				
Signature:				
Agency:				
Installation:				
Human Resources Representative				
Printed Name:				
Email Address:				
Phone Numbers:	**(DSN)**		**(Commercial)**	

Figure A4.4. Overseas Employment Agreement for Assignment to a Foreign Area (Family Members of Military and Civilians With own Competitive Status).

This agreement must be signed by employees who are sponsored family members of assigned military members or civilian employees with own competitive status on Permanent Change of Station orders to the overseas location who have been appointed or converted to career or career-conditional appointments in a foreign area.

1. This document represents an agreement between the Department of the Air Force and the undersigned and becomes effective upon assignment to:

Name (Last, First, Middle Initial): _____Position Title: _____

Pay Plan/Series/Grade or Pay Band: _____Organization: _____

Location: _____

Effective date: _____ Tour Length: _____

2. As a family member of a military member or civilian employee, I understand that I am exempt from the Department of Defense (DoD) rotation policy that limits the authorized period of foreign area service. In the event I lose my status as family member, or I elect to remain in the foreign area after departure of my sponsor, I understand I will no longer be exempt from the DoD rotation policy. I understand that when I am no longer exempt from the DoD rotation policy, all prior appropriated fund employment with the DoD in foreign areas not interrupted by the required period of service or residence in the United States (U.S.) or non-foreign area is counted towards the 5-year limit. Unless an extension is granted, I understand that I will be required to return to the U.S. at the end of the authorized period on which I am serving.

3. If I lose my status as a family member and become self-sponsored, I understand that I may be provided placement assistance for return assignment to the U.S. through registration in the DoD Priority Placement Program (PPP) and in conjunction with the Department of the Air Force (DAF) Non-Displaced Overseas (NDOS) supplemental guidance after completion of the period of service required for such registration. When notified that my foreign service will not be extended, I agree to request return assignment by registration in these programs. Further, I agree to accept the position offered which will fulfill my obligation to return from the foreign area. Procedures for placement through PPP are outlined in the DoD PPP Handbook and supplemented by DAF NDOS supplemental guidance. These procedures include two key requirements:
1) Mandatory Expansion of Registration. If a placement is not made within the initial 60-day registration period, the PPP registration will be automatically expanded to include all Department of Defense (DoD) activities in the Continental United States.
2) Amendment of Registration. If an individual has no return rights and does not receive a valid job offer within 90 days of registration, their PPP registration will be amended to include positions that are one grade level below their current grade.

The declination of a valid offer or failure to comply with DoD, DAF, or PPP requirements shall

result in forfeiture of PPP eligibility and may be subject to separation.

4. I understand and accept the conditions established in this agreement. I also understand that failure to request and accept return assignment as agreed to under the conditions of this agreement will result in my separation from DAF employment.

Employee Section				
Printed Name:				**Date:**
Signature:				
Losing Civilian Personnel Officer (CPO) Section				
Printed Name:				**Date:**
Signature:				
Gaining Civilian Personnel Officer (CPO) Section				
Printed Name:				
Signature:				
Agency:				
Installation:				
Human Resources Representative				
Printed Name:				
Email Address:				
Phone Numbers:	**(DSN)**		**(Commercial)**	

Figure A4.5. Overseas Employment Policy Acknowledgement (Not Obtained at the Time of Assignment/Conversion).

This acknowledgement is to be signed by employees serving in a position in a foreign area on a career or career-conditional appointment from whom the required Overseas Employment Agreement was not obtained at the time of assignment or conversion.

1. This acknowledgement advises you of DoDI 1400.25 Volume 1230, *DoD Civilian Personnel Management System: Employment in Foreign Areas and Employee Return Rights*, that limits the duration of foreign area service in certain positions to five continuous years, unless interrupted by at least two years of physical presence in the United States (U.S.) or non-foreign overseas area. Employees who are on career or career-conditional appointments in foreign areas are required to sign, at the time of assignment or conversion, an overseas employment agreement that acknowledges the policy is a condition of employment.

Name (Last, First, Middle Initial): _____Position Title: _____

Pay Plan/Series/Grade or Pay Band: _____Organization: _____

Location: _____

Effective date: _____ Tour Length: _____

2. A review of your records reveals that the required agreement was not obtained from you on _____ the date of your assignment/conversion to a career or career conditional appointment. You are hereby advised that such administrative oversight does not exempt you from the DoD rotation policy. You will be subject to the same requirements applied to other employees from whom the agreement was obtained. Those procedures and conditions are explained in the following paragraphs.

3. As an employee serving in a position subject to the foreign area service limitation, you are required to return to the U.S. after completion of the allowable period of service. This return can be affected by exercise of return rights, if applicable, or by registration for placement through the Department of Defense (DoD) Priority Placement Program (PPP) and in conjunction with the Department of the Air Force (DAF) Non-Displaced Overseas (NDOS) supplemental guidance. Procedures for placement through PPP are outlined in the DoD PPP Handbook and supplemented by DAF NDOS supplemental guidance. These procedures include two key requirements:
1) Mandatory Expansion of Registration. If a placement is not made within the initial 60-day registration period, the PPP registration will be automatically expanded to include all Department of Defense (DoD) activities in the Continental United States.
2) Amendment of Registration. If an individual has no return rights and does not receive a valid job offer within 90 days of registration, their PPP registration will be amended to include positions that are one grade level below their current grade.

Failure to comply with DoD, DAF, or PPP requirements, such as declining a valid offer, may result in forfeiture of PPP eligibility.

4. The impact of the rotation policy as it affects you is reflected by the paragraph checked below:

a. _____You are currently assigned to a position in which foreign area service is limited. You have already completed, or are within two years of completing, the normal 5-year period. To give you sufficient advance notice for planning purposes, you are hereby advised that your allowable foreign service is extended until _____. If you are still assigned to a position subject to this limitation, you will be expected to register in the PPP for placement in the U.S. by that date. Any return rights previously granted to you will expire on the date originally scheduled unless extended by the activity that granted those rights.

b. _____You are currently assigned to a position in which foreign area service is limited. Your allowable foreign area service will be completed on _____. If on that date you are still assigned to a position subject to that limitation, you will register in the PPP, in conjunction with the DAF NDOS supplemental guidance for return placement in the

U.S. If you wish to apply for a new position, and not exercise return rights, you will not be eligible for a paid Permanent Change of Station to a subsequent follow on until the initial tour of duty, for which you are acknowledging is completed.

c. _____You are not currently assigned to a position in which foreign area service is limited by DoDI 1400.25 Volume 1230. If you are later assigned to a position subject to the limitation, all prior appropriated fund employment with the DoD in foreign areas not interrupted by the required period of service or residence in the U.S. or a non-foreign overseas area is counted towards the 5-year limit.

5. You are advised that failure to accept an offer of assignment to a position in the U.S. made to satisfy a return obligation as discussed in this acknowledgement, may result in your separation from DAF employment.

6. You should contact a representative in the Civilian Personnel Section to discuss the options available to you.

Employee Section				
Printed Name:				**Date:**
Signature:				
Losing Civilian Personnel Officer (CPO) Section				
Printed Name:				**Date:**
Signature:				
Gaining Civilian Personnel Officer (CPO) Section				
Printed Name:				
Signature:				
Agency:				
Installation:				
Human Resources Representative				
Printed Name:				
Email Address:				
Phone Numbers:	**(DSN)**		**(Commercial)**	

Figure A4.6. Overseas Employment Agreement for Family Members (5 CFR, Part 213).

This agreement must be signed by employees or applicants who are family members of military or civilian employees assigned or converted to serve under a Schedule A appointment in a foreign area.

1. This document represents an agreement between the Department of the Air Force and the undersigned and becomes effective upon my assignment to:

Name (Last, First, Middle Initial): _____Position Title: _____

Pay Plan/Series/Grade or Pay Band: _____Organization: _____

Location: _____

Effective date: _____Tour Length: _____

2. As a family member of a military member or civilian employee on a Schedule A appointment, I understand that I am exempt from the Department of Defense (DoD) rotation policy that limits the authorized period of foreign area service. In the event I lose my status as a family member through divorce, separation, death, or because my sponsor transfers or separates from the service, this appointment will be terminated. If eligible, I understand I will be granted leave without pay and provided counseling concerning placement assistance.

3. I understand and accept the conditions established in this agreement. I also understand that if I lose my status as family member, my employment will be terminated within 60 days, and I will not be eligible for severance pay.

Employee		
Printed Name:		**Date:**
Signature:		
Losing Civilian Personnel Officer (CPO) Section		
Printed Name:		**Date:**
Signature:		
Gaining Civilian Personnel Officer (CPO) Section		
Printed Name:		
Signature:		
Agency:		
Installation:		
Human Resources Representative		

Printed Name:				
Email Address:				
Phone Number	**(DSN)**		**(Commercial)**	

Figure A4.7. Overseas Employment Agreement For Overseas Limited Appointment (Not-To Exceed Five Years).

This agreement must be signed by employees or applicants appointed or converted to an overseas limited appointment Not-to-Exceed five years in a foreign area.

1. This document represents a statement of understanding between the Department of the Air Force and the undersigned and becomes effective upon my assignment to:

Name (Last, First, Middle Initial): _____Position Title: _____

Pay Plan/Series Grade or Pay Band: _____ Organization: _____

Location: _____

Effective date: _____Tour Length: _____

2. By accepting this assignment in a foreign area, I understand and agree to the following limitations that are imposed on the length of time I am authorized to remain in this or another foreign area:

a. DoDI 1400.25 Volume 1230, *DoD Civilian Personnel Management System: Employment in Foreign Areas and Employee Return Rights*, limits Civilian employment in the competitive service in foreign areas to a period of five continuous years unless interrupted by at least two years of physical presence in the United States (U.S.) or non-foreign overseas area. My overseas employment will be limited by that policy if, after completion of five years overseas service, I am serving in or assigned to a position subject to rotation. Any extension beyond five years is subject to management's approval.
b. In computing the period of allowable overseas employment, all prior appropriated fund employment with the DoD in foreign areas not interrupted by the required period of service or residence in the U.S. or non-foreign overseas area is counted.

c. I understand this assignment will not exceed and that my appointment will terminate on that date.

Employee Section		
Printed Name:		**Date:**
Signature:		

Losing Civilian Personnel Officer (CPO) Section				
Printed Name:				**Date:**
Signature:				
Gaining Civilian Personnel Officer (CPO) Section				
Printed Name:				
Signature:				
Agency:				
Installation:				
Human Resources Representative				
Printed Name:				
Email Address:				
Phone Numbers:	**(DSN)**		**(Commercial)**	

Figure A4.8. Overseas Employment Agreement Assignment to Alaska or Hawaii or United States Territories and Possessions (With Return Rights).

This agreement must be signed by an employee serving on a career or career-conditional appointment selected for assignment to a Department of Defense (DoD) position in Alaska or Hawaii, or the United States (U.S.) territories and possessions who has return rights.

1. This document represents an agreement between the Department of the Air Force (DAF) and the undersigned and becomes effective upon my assignment to:

Name (Last, First, Middle Initial): _____Position Title: _____

Pay Plan/Series/Grade or Pay Band: _____ Organization: _____

Location: _____

Effective date: _____Tour Length: _____

2. By accepting this assignment to an overseas area, I understand and agree to the following:

a. My initial period of overseas service is limited to the established tour of duty for the area to which assigned. Any extension beyond the initial period of overseas service is subject to management's approval and my concurrence.

b. If I am authorized and elect to exercise renewal agreement travel for the purpose of serving a subsequent tour of duty in the same or another overseas area, my period of service will then be limited to the prescribed tour required by such agreement. Any extension beyond that period is

subject to management's approval and my concurrence (Only applies to employees assigned to Guam).

c. When notified that my overseas service will not be extended beyond the initial or subsequent tour of duty, I agree to request return assignment by applying to exercise my return rights, or, if those rights have expired, by registration in the DoD Priority Placement Program (PPP) and in conjunction with the DAF Non-Displaced Overseas (NDOS) supplemental guidance. Further, I agree to accept the position offered from such application or registration that will fulfill my obligation to return from the overseas area. I understand that procedures for return placement through the DoD PPP are established in accordance with the DoD PPP DAF NDOS supplemental guidance which require 1) mandatory expansion of PPP registration to include all DoD activities in the Continental U.S. after the initial 60-day registration period and 2) amendment of registration to include one grade interval below my current grade if I have no return rights and do not receive a valid offer within 90 days of registration. The declination of a valid offer or failure to comply with DoD, DAF, or PPP requirements shall result in forfeiture of PPP eligibility and may be subject to separation from federal service.

3. I understand that I have been granted return rights to my former position _____of at (Location)_____. I understand that I must satisfactorily complete the required period of overseas service established for the area to which I am assigned and that I must apply to exercise my return rights In order to assure availability of return transportation at the time I desire to exercise my return rights, and to provide sufficient advance notice to the activity to which my return rights apply. I will notify my servicing Civilian Personnel Section at least 6 months in advance of the date I wish to depart from the overseas area. Any early release from the period specified in my service agreement must be approved by the overseas activity and comply with Joint Travel Regulation **Chapter 5**, Acceptable Reasons for Release of Tour, to be afforded return travel expenses at government expense. Centrally managed positions require recommended approval from the overseas activity and Career Field Team, Career Field Management and approval by Air Force Personnel Center Directorate of Civilian Personnel Operations - Talent Management Division. Unless terminated for a reason listed below, I understand my return rights expire five years after my assignment overseas, unless an extension is granted. Return rights are terminated earlier for any of the following reasons:
a. Resignation
b. Separation for cause.
c. The position to which return rights is authorized is being abolished.
d. Assignment to any Department of Defense activity in the Continental U.S.
e. Transfer to any agency outside DoD.
f. Failure to accept the equivalent position to which return rights apply.

4. If my former position does not exist when I exercise my return rights, I understand I will be returned to a vacant position at the same grade level or pay band equivalent level to which I have return rights or to a position at the same grade level or pay band equivalent level which has been established for 90 days. If I am returned to a position established for 90 days, I understand that I will be placed in a continuing position (for which I qualify), at that grade level or pay band equivalent for which I held immediately before my overseas assignment until a valid vacancy becomes available during this period. Otherwise, my assignment rights beyond that 90-day

period will be determined by reduction-in-force procedures. I also understand that my return rights may be transferred to a different geographic area in the event the function to which my return rights apply is transferred, or if my former activity has been inactivated. I understand that management may initiate my return when it is in the best interest of the DAF at any time during the 5-year return rights period.

5. I understand the 5-year foreign area limit does not apply to this assignment.

6. If I wish to apply for a new position, and not exercise return rights (if applicable), I will not be eligible for a paid Permanent Change of Station to a subsequent follow-on assignment until the initial tour of duty for which I am acknowledging is completed.

7. I understand and accept the conditions established in this agreement. I understand that failure to request and accept return assignment as I have agreed to do in the paragraphs above may result in my involuntary separation from the DAF.

Employee Section				
Printed Name:				**Date:**
Signature:				
Losing Civilian Personnel Officer (CPO) Section				
Printed Name:				**Date:**
Signature:				
Gaining Civilian Personnel Officer (CPO) Section				
Printed Name:				
Signature:				
Agency:				
Installation:				
Human Resources Representative				
Printed Name:				
Email Address:				
Phone Numbers:	**(DSN)**		**(Commercial)**	

Figure A4.9. Overseas Employment Agreement Assignment to Alaska or Hawaii or United States Territories and Possessions (Without Return Rights).

This agreement must be signed by an employee who does not have return rights serving on a career or career-conditional appointment selected for assignment to a Department of Defense (DoD) position in Alaska or Hawaii or the United States (U.S.) territories and possessions.

1. This document represents an agreement between the Department of the Air Force (DAF) and the undersigned and becomes effective upon my assignment to:

Name (Last, First, Middle Initial): _____Position Title: _____

Pay Plan/Series/Grade or Pay Band: _____Organization: _____

Location: _____

Effective date: _____Tour Length: _____

2. By accepting this assignment to an overseas area, I understand and agree to the following:

a. My initial period of overseas service is limited to the established tour of duty for the area to which assigned. Any extension beyond the initial period of overseas service is subject to management's approval and my concurrence.

b. If I am authorized and elect to exercise renewal agreement travel for the purpose of serving a subsequent tour of duty in the same or another overseas area, my period of service will then be limited to the prescribed tour required by such agreement. Any extension beyond that period is subject to management's approval and my concurrence.

c. When notified that my overseas service will not be extended beyond the initial or subsequent tour of duty, I agree to request return assignment to the U.S. by registration in the DoD Priority Placement Program (PPP) and in conjunction with the DAF Non-Displaced Overseas (NDOS) supplemental guidance. Further, I agree to accept the position offered from such application or registration that will fulfill my obligation to return from the overseas area. I understand that procedures for return placement through the DoD PPP are established in accordance with the DoD PPP Handbook and DAF NDOS supplemental guidance which require, mandatory expansion of the PPP registration to include all DoD activities in the Continental U.S. after the initial 60-day registration period and amendment of registration to include one-grade interval below my current grade if I have no return rights and do not receive a valid offer within 90 days of registration. The declination of a valid offer or failure to comply with DoD, DAF, or PPP requirements shall result in forfeiture of PPP eligibility and may be subject to separation from federal service.

3. I understand that I do not have specific return rights. I will be provided placement assistance for assignment in the U.S. through registration in the DoD PPP and in conjunction with the DAF NDOS supplemental guidance, after completion of the period of overseas service required for such registration. I agree to accept a "valid" position offer from such registration. I understand

that management may initiate my return when it is in the best interest of the DAF at any time during the initial 5-year assignment period.

4. I understand the 5-year foreign area limit does not apply to this assignment.

5. If I wish to apply for a new position, I will not be eligible for a paid Permanent Change of Station to a subsequent follow-on assignment until the initial tour of duty for which I am acknowledging is completed.

6. I understand and accept the conditions established in this agreement. I understand that failure to request and accept return assignment as I have agreed to do in the paragraphs above may result in my involuntary separation from the DAF.

Employee Section				
Printed Name:				**Date:**
Signature:				
Losing Civilian Personnel Officer (CPO) Section				
Printed Name:				**Date:**
Signature:				
Gaining Civilian Personnel Officer (CPO) Section				
Printed Name:				
Signature:				
Agency:				
Installation:				
Human Resources Representative				
Printed Name:				
Email Address:				
Phone Numbers:	**(DSN)**		**(Commercial)**	

Figure A4.10. Overseas Employment Agreement Assignment to a Foreign Area from a Centrally Managed Force Renewal or Leadership Development Program Position (Without Return Rights to Current Position).

This agreement must be signed by an employee serving on a career or career-conditional appointment who was recruited for assignment to a Department of the Air Force (DAF) position in a foreign area as outplacement from one of the following centrally-managed programs: Central Salary Account (CSA)-funded Career Broadener position, CSA-funded Pathways Intern, Post-Secondary Student and Recent Graduate Direct Hiring Authority position, Key Career Position, and Civilian Developmental program, to include Civilian Strategic Leadership Program.

These employees will have return placement coordinated in conjunction with their Career Field Team to a location based on the needs of the DAF under their mobility agreements In Accordance With (IAW) DAFMAN 36-142, Civilian Career Field Management and Centrally-Managed Positions.

1. This document represents an agreement between the DAF and the undersigned and becomes effective upon my assignment to:

Name (Last, First, Middle Initial): _____ Position Title: _____

Pay Plan/Series/Grade or Pay Band: _____ Organization: _____

Location: _____

Effective date: _____Tour Length: _____

2. By accepting this assignment to a foreign area, I understand and agree to the following limitations:

a. My initial period of foreign service is limited to the established tour of duty for the area to which assigned. Any extension beyond the initial period of foreign service is subject to management's approval and my concurrence. Any prior Department of Defense (DoD) foreign service not interrupted by a 2-year period of physical residence in the United States or non-foreign area will reduce the allowable period of service I am authorized to be employed in a position subject to the rotation policy.

b. If I am authorized and elect to exercise renewal agreement travel for the purpose of serving a subsequent tour of duty in the same or another foreign area, my period of service will then be limited to the prescribed tour required by such agreement. Any extension beyond that period is subject to management's approval and my concurrence.

c. DoDI 1400.25 Volume 123, *DoD Civilian Personnel Management System: Employment in Foreign Areas and Employee Return Rights*, limits foreign area service of employees assigned to positions subject to the DoD rotation policy to a period of five years. My foreign service will be limited by that policy if, after completion of five years foreign area service, I am serving in or assigned to a position subject to the DoD rotation policy.

3. I understand that my former position of_____at (Location)_____was cancelled/will no longer be available after my assignment overseas. The mobility agreement from my previous position is extended to cover the length of my overseas tour. This extension enables the Career Field Team to assist with my return to the Continental United States under the mobility agreement as the primary method of return (IAW DAFMAN 36-142). Career Field Team coordination begins 9-12 months before the end of the overseas tour (IAW DAFMAN 36-142).

4. When placement is not possible under the mobility agreement, return rights will be exercised under statutory rights to a vacant position (at the same or one grade lower) at the previous location or to a position established for 90 days. If I am not placed within 90 days, my assignment rights will be determined by reduction-in-force procedures. I understand that I must satisfactorily complete the required period of overseas service established for the area to which I am assigned. I understand that I must apply to exercise my return rights. To assure availability of return transportation at the time I desire to exercise my return rights, and to provide sufficient advance notice to the activity to which my return rights apply, I will notify my servicing Civilian Personnel Section at least 6 months in advance of the date I wish to depart from the overseas area. Any early release from the period specified in my service agreement must be approved by the overseas activity and comply with Joint Travel Regulation Chapter 5, Acceptable Reasons for Release of Tour, to be afforded return travel expenses at government expense centrally managed positions require recommended approval from the overseas activity and coordination with Career Field Team, Career Field Manager and approval by Air Force Personnel Center Directorate of Civilian Personnel Operations - Talent Management Division. Unless terminated for a reason listed below, I understand my return rights expire five years after my assignment overseas, unless an extension is granted. Return rights are terminated earlier for any of the following reasons:
a. Resignation.
b. Separation for cause.
c. The position to which return rights is authorized is being abolished.
d. Assignment to any DoD activity in the Continental U.S.
e. Transfer to any agency outside DoD.
f. Failure to accept the equivalent position to which return rights apply.

5. I understand and accept the conditions established in this agreement. I understand that failure to request and accept return assignment as I have agreed to do above, may result in my involuntary separation from Air Force employment.

Employee Section		
Printed Name:		**Date:**
Signature:		
Losing Civilian Personnel Officer (CPO) Section		
Printed Name:		**Date:**
Signature:		
Gaining Civilian Personnel Officer (CPO) Section		

Printed Name:				
Signature:				
Agency:				
Installation:				
Human Resources Representative				
Printed Name:				
Email Address:				
Phone Number	**(DSN)**		**(Commercial)**	

Figure A4.11. Overseas Employment Agreement Assignment to Alaska or Hawaii or Hawaii or United States Territories and Possessions from a CONUS Centrally Managed Force Renewal or Leadership Development Program Position (Without Return Rights to Current Position).

This agreement must be signed by an employee serving on a career or career-conditional appointment in the Continental United States who was recruited for assignment to a Department of the Air Force (DAF) position in Alaska, Hawaii, or U.S. territories and possessions as outplacement from one of the following centrally-managed programs: Central Salary Account (CSA)-funded Career Broadener position, CSA-funded Pathways Intern, Post-Secondary Student and Recent Graduate Direct Hiring Authority position, Key Career Position , and Civilian Developmental program, to include Civilian Strategic Leadership Program.

These employees will have return placement coordinated in conjunction with their Career Field Team to a location based on the needs of the DAF under their mobility agreements In Accordance With (IAW) DAFMAN 36-142, *Civilian Career Field Management and Centrally-Managed Positions*.

1. This document represents an agreement between the DAF and the undersigned and becomes effective upon my assignment to:

Name (Last, First, Middle Initial): _____ Position Title: _____

Pay Plan/Series/Grade or Pay Band: _____ Organization: _____

Location: _____

Effective date: _____Tour Length: _____

2. I understand that my former position of _____at (Location)_____was cancelled/will no longer be available after my assignment overseas. The mobility agreement from my former position is extended to cover the length of my overseas tour. This extension enables the Career Field Team to assist with my return to the Continental United States under

the mobility agreement as the primary method of return (IAW DAFMAN 36-142). Career Field Team coordination begins 9-12 months before the end of the overseas tour (IAW DAFMAN 36-142).

3. By accepting this assignment to a non-foreign area, I understand and agree to the following limitations:

a. My initial period of non-foreign service is limited to the established tour of duty for the area to which assigned. Any extension beyond the initial period of non-foreign service is subject to management's approval and my concurrence.

b. If I am authorized and elect to exercise renewal agreement travel (Note: authorized in Guam ONLY) for the purpose of serving a subsequent tour of duty in the same non-foreign area, my period of service will then be limited to the prescribed tour required by such agreement. Any extension beyond that period is subject to management's approval and my concurrence.

c. When placement is not possible under the mobility agreement, return rights will be exercised under statutory rights to a vacant or one grade lower position at the previous location or to a position established for 90 days. If I am not placed within 90 days, my assignment rights will be determined by reduction-in-force procedures. I understand that I must satisfactorily complete the required period of overseas service established for the area to which I am assigned. I understand that I must apply to exercise my return rights. To assure availability of return transportation at the time I desire to exercise my return rights, and to provide sufficient advance notice to the activity to which my return rights apply, I will notify my servicing Civilian Personnel Section at least 6 months in advance of the date I wish to depart from the overseas area. Any early release from the period specified in my service agreement must be approved by the overseas activity and comply with Joint Travel Regulation Chapter 5, Acceptable Reasons for Release of Tour, to be afforded return travel expenses at government expense Centrally managed positions require recommended approval from the overseas activity and coordination with Career Field Team, Career Field Manager and approval by Air Force Personnel Center Directorate of Civilian Personnel Operations - Talent Management Division. Unless terminated for a reason listed below, I understand my return rights expire five years after my assignment overseas, unless an extension is granted. Return rights are terminated earlier for any of the following reasons:
1) Resignation.
2) Separation for cause.
3) The position to which return rights is authorized is being abolished.
4) Assignment to any DoD activity in the Continental U.S.
5) Transfer to any agency outside DoD.
6) Failure to accept the equivalent position to which return rights apply.

4. I understand the 5-year foreign area limit does not apply to this assignment.

5. I understand and accept the conditions established in this agreement. I understand that failure to request and accept return assignment as I have agreed to do above, may result in my involuntary separation from DAF employment.

Employee Section				
Printed Name:				**Date:**
Signature:				
Losing Civilian Personnel Officer (CPO) Section				
Printed Name:				**Date:**
Signature:				
Gaining Civilian Personnel Officer (CPO) Section				
Printed Name:				
Signature:				
Agency:				
Installation:				
Human Resources Representative				
Printed Name:				
Email Address:				
Phone Numbers:	**(DSN)**		**(Commercial)**	

Figure A4.12. Overseas Employment Agreement for Assignment to a Foreign Area from a Centrally Managed Force Renewal or Leadership Development Program Position from Alaska, Hawaii, or Guam and Not Actual Resident (Without Return Rights to Current Position).

This agreement must be signed by an employee serving on a career or career-conditional appointment who was recruited for assignment to a Department of the Air Force (DAF) position to a foreign area as outplacement from one of the following centrally-managed programs: Central Salary Account (CSA)-funded Career Broadener position, CSA-funded Pathways Intern, Post-Secondary Student and Recent Graduate Direct Hiring Authority position, Key Career Position and Civilian Developmental program, to include Civilian Strategic Leadership Program

These employees will have return placement coordinated in conjunction with their Career Field Team to a location based on the needs of the DAF under their mobility agreements In Accordance With (IAW) DAFMAN 36-142, *Civilian Career Field Management and Centrally-Managed Positions*.

1. This document represents an agreement between the DAF and the undersigned and becomes effective upon my assignment to:

Name (Last, First, Middle Initial): _____ Position Title: _____

Pay Plan/Series/Grade or Pay Band: _____ Organization: _____

Location: _____

Effective date: _____Tour Length: _____

2. By accepting this assignment to a foreign area, I understand and agree to the following limitations:

a. My initial period of foreign service is limited to the established tour of duty for the area to which assigned. Any extension beyond the initial period of foreign service is subject to management's approval and my concurrence. Any prior Department of Defense (DoD) foreign service not interrupted by a 2-year period of physical residence in the Continental Unites States (CONUS) or non-foreign overseas area will reduce the allowable period of service I am authorized to be employed in a position subject to the rotation policy.

b. If I am authorized and elect to exercise renewal agreement travel for the purpose of serving a subsequent tour of duty in the same or another foreign area, my period of service will then be limited to the prescribed tour required by such agreement. Any extension beyond that period is subject to management's approval and my concurrence.

c. DoDI 1400.25 Volume 1230, *DoD Civilian Personnel Management System: Employment in Foreign Areas and Employee Return Rights*, limits foreign area service of employees assigned to positions subject to the DoD rotation policy to a period of five years. My foreign service will be limited by that policy if, after completion of five years foreign area service, I am serving in or assigned to a position subject to the DoD rotation policy.

d. When notified that my foreign service will not be extended beyond the initial or subsequent tour of duty, or when advised that my return is required because of the DoD rotation policy, I agree to request return assignment to the U.S. by registration in the DoD Priority Placement Program (PPP) and in conjunction with the DAF Non-Displaced Overseas (NDOS) supplemental guidance.

e. Further, I agree to accept the position offered from such application or registration that will fulfill my obligation to return from the foreign area. I understand that procedures for return placement through the DoD PPP are established in accordance with the DoD PPP Handbook and DAF guidance which require 1) mandatory expansion of the PPP registration to include all DoD activities in the CONUS after the initial 60-day registration period and 2) amendment of registration to include one grade interval below my current grade and do not receive a valid offer within 90 days of registration. The declination of a valid offer or failure to comply with DoD, DAF, or PPP requirements shall result in forfeiture of PPP eligibility and may be subject to separation from federal service.

3. I understand that my former position of_____at (Location)___was cancelled/will no longer be available after my assignment overseas. The mobility agreement from my former position is extended to cover the length of my overseas tour. This extension enables the Career Field Team to assist with my return to the Continental United States under

the mobility agreement as the primary method of return (IAW DAFMAN 36-142). Career Field Team coordination begins 9-12 months before the end of the overseas tour (IAW DAFMAN 36-142).

4. When placement is not possible under the mobility agreement, return rights will be exercised under statutory rights to an equivalent level or one grade lower position at the previous location or to a position established for 90 days. If I am not placed within 90 days, my assignment rights will be determined by reduction-in-force procedures. I understand that I must satisfactorily complete the required period of overseas service established for the area to which I am assigned. I understand that I must apply to exercise my return rights. To assure availability of return transportation at the time I desire to exercise my return rights, and to provide sufficient advance notice to the activity to which my return rights apply, I will notify my servicing Civilian Personnel Section at least 6 months in advance of the date I wish to depart from the overseas area. Any early release from the period specified in my service agreement must be approved by the overseas activity and comply with Joint Travel Regulation Chapter 5, Acceptable Reasons for Release of Tour, to be afforded return travel expenses at government expense. Centrally managed positions require recommended approval from overseas activity and coordination with Career Field Team, Career Field Management and approval by Air Force Personnel Center Directorate of Civilian Personnel Operations - Talent Management Division. Unless terminated for a reason listed below, I understand my return rights expire five years after my assignment overseas, unless an extension is granted. Return rights are terminated earlier for any of the following reasons:
a. Resignation.
b. Separation for cause.
c. The position to which return rights are being authorized is being abolished.
d. Assignment to any DoD activity in the Continental U.S.
e. Transfer to any agency outside DoD.
f. Failure to accept the equivalent position to which return rights apply.

5. I understand and accept the conditions established in this agreement. I understand that failure to request and accept return assignment as I have agreed to do above, may result in my involuntary separation from DAF employment.

Employee Section		
Printed Name:		**Date:**
Signature:		
Losing Civilian Personnel Officer (CPO) Section		
Printed Name:		**Date:**
Signature:		
Gaining Civilian Personnel Officer (CPO) Section		
Printed Name:		

Signature:				
Agency:				
Installation:				
Human Resources Representative				
Printed Name:				
Email Address:				
Phone Numbers:	**(DSN)**		**(Commercial)**	

Figure A4.13. Overseas Employment Agreement for Assignment to a Non-Foreign Area (Alaska, Hawaii, or Guam) from a Centrally Managed Force Renewal or Leadership Development Program Position from Alaska, Hawaii, or Guam and not Actual Resident (Without Return Rights to Current Position).

This agreement must be signed by an employee serving on a career or career-conditional appointment recruited for assignment to a Department of the Air Force (DAF) position to a non-foreign area as outplacement from one of the following centrally-managed programs: Central Salary Account (CSA)-funded Career Broadener position, CSA-funded Pathways Intern, Post-Secondary Student and Recent Graduate Direct Hiring Authority position, Key Career Position and Civilian Developmental program, to include Civilian Strategic Leadership Program.

These employees will have return placement coordinated in conjunction with their Career Field Team to a location based on the needs of the DAF under their mobility agreements In Accordance With (IAW) DAFMAN 36-142, *Civilian Career Field Management and Centrally-Managed Positions*.

1. This document represents an agreement between the DAF and the undersigned and becomes effective upon my assignment to:

Name (Last, First, Middle Initial): _____ Position Title: _____

Pay Plan/Series/Grade or Pay Band: _____ Organization: _____

Location: _____

Effective date: _____Tour Length: _____

2. By accepting this assignment to a non-foreign area, I understand and agree to the following limitations:

a. My initial period of non-foreign service is limited to the established tour of duty for the area to which assigned. Any extension beyond the initial period of non-foreign service is subject to management's approval and my concurrence.

b. If I am authorized and elect to exercise renewal agreement travel (**Note:** authorized in Guam ONLY) for the purpose of serving a subsequent tour of duty in the same non-foreign area, my period of service will then be limited to the prescribed tour required by such agreement. Any extension beyond that period is subject to management's approval and my concurrence.

c. When notified that my non-foreign service will not be extended beyond the initial or subsequent tour of duty, I agree to request return assignment to the Continental United States by registration in the Department of Defense (DoD) Priority Placement Program (PPP) and in conjunction with the DAF Non-Displaced Overseas (NDOS) supplemental guidance.

3. I _____ agree to accept the position offered from such application or registration that will fulfill my obligation to return from the non-foreign area. I understand that procedures for return placement through the DoD PPP are established in accordance with the DoD PPP Handbook and DAF guidance which require, mandatory expansion of the PPP registration to include all DoD activities in the Continental Unite States after the initial 60-day registration period and amendment of registration to include one grade interval below my current grade if I have no return rights and do not receive a valid offer within 90 days of registration. The declination of a valid offer or failure to comply with DoD, DAF, or PPP requirements shall result in forfeiture of PPP eligibility and may be subject to separation from federal service.

4. I understand that my former position of_____at (Location)__was cancelled/will no longer be available after my assignment overseas. The mobility agreement from my former position is extended to cover the length of my overseas tour. This extension enables the Career Field Team to assist with my return to the Continental United States under the mobility agreement as the primary method of return (IAW DAFMAN 36-142). Career Field Team coordination begins 9-12 months before the end of the overseas tour (IAW DAFMAN 36-142).

5. When placement is not possible under the mobility agreement, return rights will be exercised under statutory rights to a vacant equivalent level or one grade lower position at the previous location or to a position established for 90 days. If I am not placed within 90 days, my assignment rights will be determined by reduction-in-force procedures. I understand that I must satisfactorily complete the required period of overseas service established for the area to which I am assigned. I understand that I must apply to exercise my return rights. To assure availability of return transportation at the time I desire to exercise my return rights, and to provide sufficient advance notice to the activity to which my return rights apply, I will notify my servicing Civilian Personnel Section at least 6 months in advance of the date I wish to depart from the overseas area. Any early release from the period specified in my service agreement must be approved by the overseas activity and comply with Joint Travel Regulation Chapter 5, Acceptable Reasons for Release of Tour, to be afforded return travel expenses at government expense. Centrally managed positions require recommended approval from the overseas activity and coordination Career Field Team, Career Field Management and approval by Air Force Personnel Center Directorate of Civilian Personnel Operations - Talent Management Division. Unless terminated for a reason listed below, I understand my return rights expire five years after my assignment overseas, unless an extension is granted. Return rights are terminated earlier for any of the following reasons:

a. Resignation.
b. Separation for cause.
c. The position to which return rights are authorized is being abolished.
d. Assignment to any DoD activity in the Continental U.S.
e. Transfer to any agency outside DoD.
f. Failure to accept the equivalent position to which return rights apply.

6. I understand and accept the conditions established in this agreement. I understand that failure to request and accept return assignment as I have agreed to do above, may result in my involuntary separation from DAF employment.

Employee Section				
Printed Name:				**Date:**
Signature:				
Losing Civilian Personnel Officer (CPO) Section				
Printed Name:				**Date:**
Signature:				
Gaining Civilian Personnel Officer (CPO) Section				
Printed Name:				
Signature:				
Agency:				
Installation:				
Human Resources Representative				
Printed Name:				
Email Address:				
Phone Numbers:	**(DSN)**		**(Commercial)**	

Attachment 5

OVERSEAS PROCESSING INSTRUCTIONS CHECKLISTS

Figure A5.1. Overseas Processing Instructions Checklist (CONUS CPS).

Overseas Processing Instructions Checklist (CONUS Civilian Personnel Section)	
Name:	**DOD ID Number:**
Mailing Address:	**Work Phone:**
	Home Phone:
Email:	**Length of Tour:**
Current Position/Organization/Office Symbol:	
Overseas Position/Organization/Office Symbol:	
Overseas Location:	**Drop/Pick-up Date:**
(INITIAL AND DATE EACH ITEM COMPLETED)	

_____ Offer letter received (copy in file)

_____ Acceptance sent (copy in file)

_____ Standard Form 75 information sent

_____ Signed Service Agreement received (copy in file)

_____ Official Passport, VISA received, if applicable

_____ VISA received, if applicable

_____ Exceptional Family Member Program (if applicable)

_____ Physical completed on form for Medical Qualification Examination

_____ Health Statements for dependents received (DoDI 1315.19)

_____ Travel Orders (copy in file)

_____ Notified by current CPS/selectee of port call/pick-up/drop date (copy in file)

_____ Overseas Employment Agreement signed (copy in file)

_____ Statement of Understanding Medical & Dental Availability OCONUS

_____ Statement of Understanding signed (copy in file)

_____	Drug Testing Designated Position Requirements (if applicable)
_____	Position Obligated (Notify gaining activity of return rights) Manpower Position Control Number: _____ Position Description#_____ Copy of Position Description in return placement folder

Remarks:

_____
_____
_____
_____
_____
_____

Figure A5.2. Overseas Processing Instructions Checklist (OCONUS CPS).

Overseas Processing Instructions Checklist (OCONUS Civilian Personnel Section)	
Name:	**DoD ID Number:**
Mailing Address:	**Work Phone:**
	Home Phone:
Email:	**Length of Tour:**
Current Position/Organization/Office Symbol:	
Overseas Position/Organization/Office Symbol:	
Overseas Location:	**Drop/Pick-up Date:**
(INITIAL AND DATE EACH ITEM COMPLETED)	

_____ Offer letter sent (copy in file)

_____ Acceptance received (copy in file)

_____ Standard Form 75 information received

_____ Fund cite(s) provided

_____ Signed Service Agreement received (copy in file)

_____ Official Passport received, if applicable

_____ Visa received, if applicable

_____ Physical completed for Medical Qualification Examination

_____ Health Statements for dependents received (DoD Instruction 1315.19)

_____ Travel Orders completed & distributed (copy in file)

_____ Notified by current CPS/selectee of port call/pick-up/drop date (copy in file)

_____ Return Overseas Employment Agreement signed (copy in file)

_____ Statement of Understanding signed (copy in file)

_____ Separate Maintenance Allowance requested/approved (if applicable)

_____ Emergency Essential Statement (copy in file, if applicable)

_____ Drug Testing Designated Position Requirements (if applicable)

_____ Security Requirements

_____ Thrift Savings Plan Loan info received (if applicable)

_____	Entitlements Section notified
_____	Residency statement received from CONUS CPS or an approved exception in accordance with DAFMAN 36-162 is documented
_____	Counseling on OCONUS Environment
_____	Other:_____

Remarks:

_____

_____

_____

_____

_____

_____